

RPS v The Queen - [2000] HCA 3

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HIGH COURT OF AUSTRALIA

GAUDRON ACJ,
McHUGH, GUMMOW, KIRBY, HAYNE AND CALLINAN JJ

RPS APPELLANT

AND

THE QUEEN RESPONDENT

RPS v The Queen [2000] HCA 3
3 February 2000
S116/1998

ORDER

1. *Appeal allowed.*
2. *Set aside the order of the Court of Criminal Appeal of New South Wales made on 13 August 1997.*
3. *In place thereof, order that the appeal against convictions to the Court of Criminal Appeal of New South Wales be allowed, the convictions quashed and that there be a new trial on counts 4, 6, 7 and 8 of the indictment.*

On appeal from the Supreme Court of New South Wales

Representation:

A J Bellanto QC with B J Rigg for the appellant (instructed by Uther Webster & Evans)

M G Sexton SC, Solicitor-General for the State of New South Wales with A M Blackmore for the respondent (instructed by Solicitor for Public Prosecutions (New South Wales))

Notice: This copy of the Court's Reasons for Judgment is subject to formal revision prior to publication in the Commonwealth Law Reports.

CATCHWORDS

RPS v The Queen

Criminal law – Evidence – Silence of the accused – Directions to jury – Circumstances in which jury may take account of accused's failure to give evidence.

Criminal law – Judicial instructions – Instructions about reasoning towards guilt.

Courts and judicial system – Apprehension of judicial bias – Tension between trial judge and counsel at trial – Use of trial judge's report by appeal court.

Words and phrases – "right to silence".

Criminal Appeal Act 1912 (NSW), s 11 .

Evidence Act 1995 (NSW), s 20 .

1. GAUDRON ACJ, GUMMOW, KIRBY AND HAYNE JJ. The appellant was charged, in the District Court of New South Wales, with two counts alleging that he had had carnal knowledge [1] of his daughter and six counts alleging that he had had sexual intercourse [2] with her. The offences were alleged to have occurred between various dates, the earliest of which was 6 February 1983 (when the complainant was four years old) and the latest of which was 31 July 1993 (by which time the complainant was 14 years old). He pleaded not guilty. The trial judge directed the jury to acquit the appellant of one of the charges of sexual intercourse; the jury returned verdicts of guilty to four of the remaining five counts of sexual intercourse and verdicts of not guilty to the other count of sexual intercourse and the counts of carnal knowledge.

[1] Contrary to *Crimes Act 1900 (NSW)*, s 67 .

[2] Contrary to *Crimes Act*, s 66A (sexual intercourse with a person under the age of 10 years) or s 66C(2) (sexual intercourse with a person of or above the age of 10 years and under the age of 16 years who is under the authority of the accused).

2. The appellant appealed to the Court of Criminal Appeal of New South Wales against his convictions but that appeal, and his application for leave to appeal against sentence, were dismissed[3]. By special leave, he now appeals to this Court.

[3] *R v RPS* unreported, Court of Criminal Appeal of New South Wales, 13 August 1997.

3. The determinative issue in this appeal is what comments or directions a trial judge can make or give to a jury when an accused person does not give evidence. In order to understand the context in which that issue arises in this matter, it is necessary to say something about the

course of the appellant's trial. It is convenient, while describing what happened at the trial, to notice briefly some of the other issues that were argued in the appeal.

The trial

4. The prosecution case against the appellant depended largely on the evidence of the complainant. She gave an account of various acts of sexual misconduct by the appellant. She swore that, on a number of occasions, the appellant had had penile intercourse with her and, on other occasions, had digitally penetrated her. No other eyewitness was called; no circumstantial evidence was given; no expert evidence was adduced. Undoubtedly, then, the complainant's evidence was critical.
5. One other piece of evidence loomed large in the prosecution's case. The complainant's mother and grandmother gave evidence of conversations they had had with the appellant after the complainant first told her mother that the appellant had, as she put it, "been fingering me and ... made me have intercourse with him". The complainant's mother swore that, in one of those conversations, the appellant had said to her that "I never had intercourse with her [the complainant] but everything else she said is true." According to the complainant's mother she asked the appellant, "How long has it been going on?" and he replied, "Since she was about 10."
6. There was a deal of debate at trial and on appeal (both in the Court of Criminal Appeal and in this Court) about how the appellant's statements might properly be understood if the jury accepted that they were made. In particular, given the context in which they were alleged to have been made, what was it that the appellant referred to when he said that "everything else she said is true"? Could the appellant's statements be taken by the jury as an admission by him of some sexual misconduct towards the complainant? Could they be taken as an admission of some or all of the particular acts of digital penetration that were alleged against the appellant?
7. These were all questions for the jury and in the course of his charge the trial judge identified the relevant issues for the jury. In doing so he misquoted one part of the evidence (there being no running transcript of proceedings available to him). Trial counsel did not complain that the judge had misquoted the evidence and we are not persuaded that the Court of Criminal Appeal was wrong in holding that the misquotation was not significant. The Court of Criminal Appeal was right to conclude that the trial judge made no error in directing the jury that they could (but need not) treat the statements made by the appellant as an admission of some of the acts of digital penetration that were alleged.
8. Two other features of the trial should be mentioned. First, at the close of the prosecution's case at trial, counsel for the appellant announced his intention to call a social worker. The trial judge said, in the presence of the jury, "You must call your client before you can call any other witness. ... That's what the law says. It is customary, and the accused must be called first." The jury were then asked to leave the court and counsel for the appellant informed the judge (in the absence of the jury) that he did not propose to call the appellant to give evidence.
9. Although no separate ground of appeal was advanced in this Court that alleged the trial miscarried on this account, reference was made to the trial judge's statements in connection with the appellant's contention that the jury were misdirected about the significance to be attached to the appellant's not giving evidence. In the end, however, the statements made by

the trial judge (which, as the Court of Criminal Appeal rightly pointed out^[4], were not well founded in law) do not affect whether the trial judge erred in his directions about the appellant's not giving evidence. This matter need not be noticed further.

^[4] *RPS* unreported, Court of Criminal Appeal of New South Wales, 13 August 1997 at 23 per Hunt CJ at CL.

10. Secondly, the appellant contended (both in the Court of Criminal Appeal and in this Court) that the trial judge had interjected in the course of the proceedings in ways, and to an extent, that would have suggested to the fair-minded observer that he was biased. Particular reliance was placed in this regard upon the trial judge's report to the Court of Criminal Appeal, provided pursuant to s 11 of the *Criminal Appeal Act 1912 (NSW)*. The trial judge made very adverse comments in that report about the conduct of the appellant's trial counsel.

11. **Following paragraph cited by:**

Drummond v Canberra Institute of Technology (No 3) (23 September 2022) (Rangiah, Charlesworth and Banksmith JJ)
Gambaro v Mobycom Mobile Pty Ltd (26 August 2019) (Greenwood, Reeves and Rangiah JJ)
Jorgensen v Fair Work Ombudsman (08 July 2019) (Greenwood, Reeves and Wigney JJ)
R v Auchterlonie (27 November 2015) (Gotterson and Morrison and Philippides JJA,)

The appellant's contention was cast in terms of apparent bias but it was not clear exactly what was meant by this. In particular, it was not clear whether it was being suggested that a fair-minded observer would have concluded that the judge had predetermined some issue. And, if that was what was being suggested, it was far from clear what issue or issues that would fall for decision by the judge (as opposed to the jury) would have appeared to have been prejudged. When pressed on this aspect of the matter, counsel for the appellant suggested that the trial judge had been antagonistic to counsel who had appeared for the appellant and that the conduct of the trial generally tended to undermine the defence case and bolster that of the Crown. But these are not complaints of bias or the appearance of bias; they amount to a complaint that the conduct of the trial was unfair. That is a radically different complaint and it is wrong to seek to apply tests developed in connection with questions of apparent bias in deciding whether the trial was fair. That question will turn largely on whether the accused has had a proper opportunity to advance his or her defence to the charge.

12. It is enough to say of this aspect of the appellant's argument that the course of events at trial might be said to reveal a degree of tension between trial counsel for the appellant and the trial

judge. The analysis made by Hunt CJ at CL in the Court of Criminal Appeal of the bases put forward in that Court for the contention that the trial judge was, or appeared to be, prejudiced or biased^[5] shows that the appellant was not denied a fair trial.

^[5] RPS unreported, Court of Criminal Appeal of New South Wales, 13 August 1997 at 26-43.

13. It is, no doubt, unfortunate if tension develops between counsel and the trial judge, and judges must do their best to avoid it. But if the conduct of counsel at trial affects the proper course of proceedings the judge may find it necessary to reprove counsel or to criticise his or her conduct. Particularly in a criminal trial it will usually be appropriate to offer any sustained reproof or detailed criticism in the absence of the jury. Doing so will avoid the risk that the jury might infer from the judge's remarks an opinion about the merits of the accused's defence. In this case the trial judge thought that it was necessary to say what he did and we are not persuaded that he was wrong to reach that view.
14. The fact that the trial judge thought it desirable to go into some detail about these matters in his report to the Court of Criminal Appeal does not lead to some different conclusion about the significance of what happened at trial. The report contemplated by s 11 of the *Criminal Appeal Act* ^[6] is not a document intended to give the trial judge some opportunity to defend his or her conduct of the trial^[7]. The report provides, as the section says, an opportunity for the judge to state his or her "opinion upon the case, or upon any point arising in the case". In particular, it provides an opportunity for the trial judge to express a view upon matters that may not readily be apparent from the written record. But the fact that in this case the trial judge saw fit to comment adversely on the conduct of trial counsel when making a report to the Court of Criminal Appeal does not assist in deciding whether, in fact, the trial was conducted fairly. That depends upon what happened at trial, not upon what views the trial judge may have held (at or after the trial) about counsel's conduct. As we have said, however, the interventions made by the trial judge in this case did not deny the appellant a fair trial.

^[6] Cf, for example, *Crimes Act* 1958 (Vic), s 573 ; *Criminal Practice Rules* 1900 (Q) , O IX r 15; *Criminal Code* (WA), s 696 and *Criminal Practice Rules* (WA), O XVI; *Criminal Code* (Tas), s 408(3); *Criminal Code* (NT), s 418 .

^[7] *Ahmet* (1996) 86 A Crim R 316 at 323 per Winneke P; *R v Paxton* [1983] 1 VR 178.

The appellant's election not to give evidence

15. We turn then to deal with the central issue in the appeal: the judge's directions to the jury about the significance of the appellant's not having given evidence. In his charge to the jury on this aspect of the matter, the trial judge began by telling the jury that an accused person

may, but is not obliged to, give evidence and that the prosecution bears the onus of proof. He said that the jury "must not conclude that [the appellant] has elected not to give evidence because he is guilty of the offences charged against him". He observed that there are many reasons why an accused person may not want to give evidence and told the jury that they "must not speculate as to why [the appellant] has not given evidence". No complaint is made (or could be made) about these parts of the trial judge's charge. They have long been accepted to be an important warning to the jury (in jurisdictions where judicial comment on the accused's failure to give evidence is permitted [\[8\]](#)) against adopting an impermissible chain of reasoning [\[9\]](#) .

[\[8\]](#) Cf *Crimes Act 1958* (Vic), s 399(3) ; *Evidence Act* (NT), s 9(3) .

[\[9\]](#) See, for example, *Petty v The Queen* (1991) 173 CLR 95 at 99 per Mason CJ, Deane, Toohey and McHugh JJ; *R v Bathurst* [1968] 2 QB 99 at 107-108 per Lord Parker CJ.

16. The appellant's complaint centres upon what the judge then said to the jury. It is as well to set it out in full, numbering the paragraphs that are quoted. The trial judge said:

(1) "In the present case, however, the Crown asks you when judging the value of, the weight of, the evidence which has been put forward by the Crown as establishing its case against the accused, to take into account the accused's election not to deny or to contradict the matters about which he could have given direct evidence from his own personal knowledge. That is indeed a circumstance which you are entitled to consider in this case. That is, the fact that the accused has elected not to contradict the evidence given by [the complainant's mother] as to his alleged admission – if you construe it as such – and he has been content to rely upon that very brief statement in answer to the detailed allegations made by the complainant."

(2) "You may think that it is only common sense that in a situation where a Crown witness and the accused are directly involved in a particular incident so that they are the two persons best able to give evidence of what happened in that incident, and where the evidence of the Crown witnesses is left undenied or uncontradicted by the accused any doubts which may otherwise have been cast upon the evidence of the Crown witnesses may be more readily discounted and the evidence of the Crown witnesses may more readily be accepted as the truth. That is the approach which the Crown asks you to adopt in this case, in particular with regard to the statement made by him to [the complainant's mother], according to her evidence, in which he denied sexual intercourse but said that everything else that [the complainant] had said was true."

(3) "The accused, however, has met the complainant's allegations. He has not traversed the detail of them, but in his statement which he gave to the police (but not here by evidence) he has denied committing any of these offences. Clearly, it is upon that earlier denial that he now relies. If you are satisfied that the accused

could have given evidence from his own knowledge of the events about which [the complainant's mother and the complainant] have given evidence for the Crown, *if you are satisfied that it is reasonable, in the circumstances, to expect some denial or contradiction to be forthcoming from the accused if such a denial or contradiction is available, then you are entitled to conclude, you do not have to, but you are entitled to conclude, from the accused's election not to deny or contradict that evidence that his evidence would not have assisted him in this trial.*" (Emphasis added)

(4) *"You may use the election of the accused not to put forward any such denial or contradiction as a circumstance which leads you more readily to accept the evidence given by the witnesses for the Crown the accused was in a position to contradict of his own knowledge."* (Emphasis added)

(5) "Of course, there were a number of witnesses for the Crown and parts of the evidence which he was not in a position to contradict, things that did not take place in his presence or in which he was not engaged. But he certainly was in a position, you might think, to contradict what it was that [the complainant] said happened between him and her and also what it is [the complainant's mother] said had been said on that occasion in August of 1993 in the telephone conversation."

(6) "You cannot however use that election by the accused not to put forward any denial or contradiction in order to fill in any gaps which you think may otherwise be in the evidence upon which the Crown relies. Its relevance relates only to the value or the weight which you can give to the evidence which the Crown witnesses have given. In other words, you may feel more confident in relying upon evidence which is uncontradicted than evidence which is. I do remind you that the accused has made in that statement to the police, (although not in evidence here in Court – he did not give evidence here in Court I should say) which amounts to a general denial of all offences."

(7) "The absence of any evidence from the accused as to the circumstances and details of the incidents also means that there is no evidence to support the particular version which was put to the Crown witnesses in cross-examination by counsel for the accused. All that has been said by the accused is a flat general denial. That version, insofar as it was suggested to [the complainant] that these things had not been done or to [the complainant's mother] that what she said was said had not been said, was denied by each of them when the question was put and the accused has led no evidence to establish that it happened, that his version was correct."

17. Five particular elements of this part of the charge ("the impugned directions") should be noted.

First, the trial judge told the jury that the appellant's election not to contradict the evidence given by the complainant's mother of what was said to be a partial admission, could be taken into account by the jury in "judging the value of, the weight of" the prosecution's evidence about it (par (1)).

Secondly, he told the jury that in the absence of denial or contradiction of the evidence given of the partial admission they could "more readily" discount any doubts about that evidence and "more readily" accept the evidence (par (2)).

Thirdly, he told the jury that if it was reasonable, in the circumstances, to expect some denial or contradiction of the prosecution evidence, they were entitled to conclude that the appellant's evidence would not have assisted him in the trial and that the absence of denial or contradiction was a circumstance which could lead them more readily to accept the evidence given by the witnesses for the prosecution (pars (3) and (4)).

Fourthly, he said that the appellant's election not to give evidence could not fill any gaps in the prosecution case but could enable them to feel more confident in relying on the evidence tendered by the prosecution (par (6)).

Finally, he said that the absence of evidence from the accused meant that the version of events put in cross-examination of the witnesses for the prosecution was not supported by evidence (par (7)).

The relevant statutory provisions

18. Consideration of the trial judge's charge about the absence of evidence from the accused must begin with s 20 of the *Evidence Act 1995 (NSW)*. That section applies (and applies only) in a criminal proceeding for an indictable offence [10] and provides [11]:

"The judge or any party (other than the prosecutor) may comment on a failure of the defendant to give evidence. However, unless the comment is made by another defendant in the proceeding, the comment must not suggest that the defendant failed to give evidence because the defendant was, or believed that he or she was, guilty of the offence concerned."

The respondent submitted that the trial judge's charge was no more than a "comment" on the failure of the appellant to give evidence and was a comment which did not suggest that the appellant failed to give evidence because he was, or believed that he was, guilty of the offences of which he was charged. We do not accept that the charge should be understood in that way.

[10]. s 20(1).

[11]. s 20(2).

19. The respondent's submission seeks to distinguish between a suggestion that the appellant did not give evidence because he was, or believed that he was, guilty and the trial judge's suggestion (in par (3) of the impugned directions) that the evidence the appellant might have given "would not have assisted him in this trial". The suggested distinction is not tenable. Any belief which the appellant held, that his evidence would not have assisted him in

his trial, could proceed only from a belief that he was guilty; that is, it could proceed only from a belief that he could not deny or contradict at least some of what had been said against him. No other construction of what was said by the trial judge in that part of his charge was reasonably open to the jury.

20. Following paragraph cited by:

R v Jassar (17 May 2013) (Holmes and Fraser JJA and Peter Lyons J)

Section 20(2) should be given no narrow construction inviting the drawing of fine distinctions. In particular, the prohibition contained in the second sentence (forbidding the judge making a comment that *suggests* the accused failed to give evidence because he or she was, or believed that he or she was, guilty) must be given full operation. In that respect this prohibition should not be treated differently from the prohibition (still operative in some Australian jurisdictions [12]) against a judge making *any* comment on the failure of the accused to give evidence. To adopt and adapt what was said by Isaacs J in *Bataillard v The King* [13], if comment is made about the accused not having given evidence it must not make any "reference, direct or indirect, and either by express words or the most subtle allusion" suggesting that the accused did not give evidence because he or she was, or believed that he or she was, guilty [14]. It has been said that the line between what is permissible and what is not, under provisions which prohibit *any* comment on a failure to give evidence, may be a fine one [15]. Whether or not that is so, s 20(2) requires a line to be drawn and it should be drawn in a way that gives the prohibition against suggesting particular reasons for not giving evidence its full operation.

[12] *Crimes Act* 1958 (Vic), s 399(3) ; *Evidence Act* (NT), s 9(3) .

[13] (1907) 4 CLR 1282 at 1291. .

[14] See also *Bridge v The Queen* (1964) 118 CLR 600.

[15] *Bridge* (1964) 118 CLR 600 at 605 per Barwick CJ.

21. The directions given by the trial judge in par (3) of the impugned directions contravened s 20 (2) of the *Evidence Act* because they suggested that the appellant failed to give evidence because he believed that he was guilty of at least some of the offences concerned.

Directions contrary to fundamental features of criminal trial

22. Following paragraph cited by:

Kassam v Hazzard (08 December 2021) (Bell P, Meagher and Leeming JJA)

[R v Seller; R v McCarthy](#) (01 March 2013) (Bathurst CJ at [1]; McClellan CJ at CL at [119]; Rothman J at [121])

[NSW Food Authority v Nutricia Australia Pty Ltd](#) (06 November 2008) (Spigelman CJ ; Hidden J ; Latham J)

151. Since *Environment Protection Authority v Caltex* the characterisation of our system of criminal justice as “accusatory” has been frequently referred to in High Court jurisprudence: in the context of the principle of duplicity ([Walsh v Tattersall](#) (1996) 188 CLR 77 at [94]); to explain the right to silence and determine that the rule in *Jones v Dunkel* did not apply to a criminal trial ([RPS v The Queen](#) [2000] HCA 3; (2000) 199 CLR 620 at [22]); [Azzopardi v The Queen](#) [2001] HCA 25; (2001) 205 CLR 50 at [34], [38], [64]); [Dyers v The Queen](#) [2002] HCA 45; (2002) 210 CLR 285 at [9], [60]); to explain the inapplicability of the rule in *Brown v Dunn* to a criminal trial ([MWJ v The Queen](#) [2005] HCA 74; (2005) 80 ALJR 329 at [41]); to explain the approach a Court of Criminal Appeal should adopt when applying the proviso ([Weiss v The Queen](#) [2005] HCA 81; (2005) 224 CLR 300 at [43]); [TKWJ v The Queen](#) [2002] HCA 46; (2002) 212 CLR 124 at [109]); to determine whether or not the conduct of counsel caused a miscarriage of justice at the trial ([Ali v The Queen](#) [2005] HCA 8; (2005) 79 ALJR 662 at [25]); to identify the duties and responsibilities of the prosecution ([Libke v The Queen](#) [2007] HCA 30; (2007) 230 CLR 559 at [71]-[72]); to explain the obligation to disclose the Crown case to an accused ([Mallard v The Queen](#) [2005] HCA 68; (2005) 224 CLR 125 at [67]); to explain the obligation to provide particulars ([HML v The Queen](#) [2008] HCA 16; (2008) 82 ALJR 723 at [9], [57]).

[NSW Food Authority v Nutricia Australia Pty Ltd](#) (06 November 2008) (Spigelman CJ ; Hidden J ; Latham J)

[R v Ronen](#) (22 March 2004) (Spigelman CJ, Mason P and Kirby J)

[Adler v Australian Securities and Investments Commission](#) (08 July 2003)

[Adler v Australian Securities and Investments Commission](#) (08 July 2003)

There are other fundamental reasons why none of the five elements we have identified in the impugned directions should have formed part of the directions given in this case: reasons that do not depend upon the particular provisions of s 20 of the *Evidence Act*. At the level of principle, those reasons centre on what is usually described as the "right to silence" [16]. That expression is a useful shorthand description of a number of different rules that apply in the criminal law [17]. But referring, without more, to the "right to silence" is not always a safe basis for reasoning to a conclusion in a particular case; the use of the expression "right to silence" may obscure the particular rule or principle that is being applied. What is presently significant is that a criminal trial is an accusatorial process in which the prosecution bears the onus of proving the guilt of the accused beyond reasonable doubt. In a trial of that kind, what significance can be attached to the fact that the accused does not give evidence?

[16] *Petty* (1991) 173 CLR 95 at 99 per Mason CJ, Deane, Toohey and McHugh JJ.

[17] *R v Director of Serious Fraud Office; Ex parte Smith* [1993] AC 1 at 30-31 per Lord Mustill.

23. **Following paragraph cited by:**

Manly Council v Byrne (09 June 2004) (Beazley JA, Pearlman AJA and Campbell J)
R v Robson (13 October 2000) (Pincus JA, Chesterman and Atkinson JJ,)

It is useful to start by referring to the well-known cases of *R v Burdett* [18] and *Jones v Dunkel* [19]. *Burdett* arose from a prosecution for criminal libel. Abbott CJ said [20]:

"A presumption of any fact is, properly, an inferring of that fact from other facts that are known; it is an act of reasoning; and much of human knowledge on all subjects is derived from this source. A fact must not be inferred without premises that will warrant the inference; but if no fact could thus be ascertained, by inference in a Court of Law, very few offenders could be brought to punishment. In a great portion of trials, as they occur in practice, no direct proof that the party accused actually committed the crime, is or can be given; the man who is charged with theft, is rarely seen to break the house or take the goods; and, in cases of murder, it rarely happens that the eye of any witness sees the fatal blow struck or the poisonous ingredients poured into the cup. In drawing an inference or conclusion from facts proved, regard must always be had to the nature of the particular case, and the facility that appears to be afforded, either of explanation or contradiction. No person is to be required to explain or contradict, until enough has been proved to warrant a reasonable and just conclusion against him, in the absence of explanation or contradiction; but when such proof has been given, and the nature of the case is such as to admit of explanation or contradiction, if the conclusion to which the proof tends be untrue, and the accused offers no explanation or contradiction; can human reason do otherwise than adopt the conclusion to which the proof tends? The premises may lead more or less strongly to the conclusion, and care must be taken not to draw the conclusion hastily; but in matters that regard the conduct of men, the certainty of mathematical demonstration cannot be required or expected; and it is one of the peculiar advantages of our jurisprudence, that the conclusion is to be drawn by the unanimous judgment and conscience of twelve men, conversant with the affairs and business of life, and who know, that, where reasonable doubt is entertained, it is their duty to acquit; and not of one or more lawyers, whose habits might be suspected of leading them to the indulgence of too much subtilty and refinement."

This mode of reasoning was described by Windeyer J in *Jones v Dunkel* [21] as "plain commonsense", and so it is. But it is essential to note its limits. It relates to the drawing of inferences or conclusions from other facts. It is not a mode of reasoning that is concerned, for example, with whether the direct evidence of an eyewitness should be accepted.

[18] (1820) 4 B & Ald 95 [106 ER 873].

[19] (1959) 101 CLR 298 .

[20] (1820) 4 B & Ald 95 at 161-162 [106 ER 873 at 898].

[21] (1959) 101 CLR 298 at 321. .

24. It will be seen that Abbott CJ spoke of a "presumption" of fact. But when the passage is read as a whole, it is clear that his Lordship was using the expression to refer to those inferences that would usually be drawn from proved facts rather than in any narrower or more technical sense in which the word "presumption" is sometimes now used. It may, therefore, be doubted that analysing the problem by reference to the "presumption of innocence" or any other legal presumption is useful[22].
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[22] Cf the analysis made in *Best on Evidence*, 12th ed (1922) at 266 and following in the chapter entitled "Presumptive Evidence, Presumptions and Fictions of Law". Analysis of this kind appears to stem from Bentham's work *A Treatise on Judicial Evidence*, (1825), bk 5 and its treatment of circumstantial evidence.

25. **Following paragraph cited by:**

State Bank of NSW & Anor. v Brown (10 July 2001) (Spigelman CJ, Handley and Hodgson JJA)

It is necessary to keep at the forefront of consideration that the mode of reasoning which is described proceeds from the premise that the person who has not given evidence not only *could* shed light on the subject but also *would* ordinarily be expected to do so. That premise reflects a view of the kind held by Bentham that "between delinquency on the one hand, and silence under inquiry on the other, there is a manifest connexion; a connexion too natural not to be constant and inseparable"[23]. This view may now be open to some doubt or challenge, for example, in cases where someone of little confidence or experience is suddenly confronted by an accusation made by a person in authority[24]. It is, however, not necessary to examine in this case whether the premise is an accurate reflection of human behaviour in some or all circumstances.

[23] Bowring, *The Works of Jeremy Bentham*, (1838-1843), vol 7 at 446.

26. **Following paragraph cited by:**

Vu v New South Wales Crime Commission (30 August 2013) (McColl, Meagher and Emmett JJA)
Cooper v Hobbs (09 April 2013) (McColl and Meagher JJA, Bergin CJ in Eq)
Manly Council v Byrne (09 June 2004) (Beazley JA, Pearlman AJA and Campbell J)
State Bank of NSW & Anor. v Brown (10 July 2001) (Spigelman CJ, Handley and Hodgson JJA)

In a civil trial there will very often be a reasonable expectation that a party would give or call relevant evidence. It will, therefore, be open in such a case to conclude that the failure of a party (or someone in that party's camp) to give evidence leads rationally to an inference that the evidence of that party or witness would not help the party's case [25] and that [26] :

"where an inference is open from facts proved by direct evidence and the question is whether it should be drawn, the circumstance that the defendant disputing it might have proved the contrary had he chosen to give evidence is properly to be taken into account as a circumstance in favour of drawing the inference."

[25] *Jones v Dunkel* (1959) 101 CLR 298 at 321 per Windeyer J.

[26] (1959) 101 CLR 298 at 312 per Menzies J.

27. **Following paragraph cited by:**

Dansie v The Queen (02 November 2020) (Nicholson, Parker and Livesey JJ)
Adler v Australian Securities and Investments Commission (08 July 2003)

By contrast, however, it will seldom, if ever, be reasonable to conclude that an accused in a criminal trial would be expected to give evidence. The most that can be said in criminal matters is that there are some cases in which evidence (or an explanation) contradicting an apparently damning inference to be drawn from proven facts could come only from the accused. In the absence of such evidence or explanation, the jury may more readily draw the conclusion which the prosecution seeks. As was said in *Weissensteiner v The Queen* [27] :

"[I]n a criminal trial, hypotheses consistent with innocence may cease to be rational or reasonable in the absence of evidence to support them *when that evidence, if it exists at all, must be within the knowledge of the accused.*" (Emphasis added)

[27] (1993) 178 CLR 217 at 227-228 per Mason CJ, Deane and Dawson JJ.

28. **Following paragraph cited by:**

Crossman v Sheahan (23 August 2016) (Basten, Ward and Payne JJA)
R v C (28 April 2000) (McMurdo P, Moynihan SJA, Atkinson J, Judgment of the Court)

In a criminal trial, not only is an accused person not bound to give evidence, it is for the prosecution to prove its case beyond reasonable doubt. The observations by the Court in *Jones v Dunkel* must not be applied in criminal cases without taking account of those considerations.

29. **Following paragraph cited by:**

Macdonald, Ian v The King; Edward Obeid v The King; Moses Obeid v The King (06 October 2023) (Bell CJ, Basten AJA and Button J)
Papanikolaou v The Queen; Tomaras v The Queen (30 June 2021) (Hoeben CJ, Cl and Hamill JJ, Hidden AJ)

The ground as formulated suggested that a *Jones v Dunkel* [7] direction should have been provided. It seemed that this submission was not pressed and, if it was, it would be contrary to authority: see, for example, *RPS v The Queen* (2000) 1999 CLR 620; [2000] HCA 3 at [29] ('*RPS*'). In *RPS*, the High Court contrasted the situation that may arise in a civil case with the position of an accused person and the prosecutor in a criminal trial:

Weber v R (27 May 2020) (Simpson AJA, Rothman and Bellew JJ)

If the question concerns the calling by the defence of a witness other than the accused, it will also be necessary to recall that the prosecutor "has the responsibility of ensuring that the Crown case is presented with fairness to the accused". [28] and in many cases would be expected to call the witness in question as part of the case for the prosecution. And, if the question concerns the failure of the prosecution to call a witness whom it might have been expected to call, the issue is not whether the jury may properly reach conclusions about issues

of fact but whether, in the circumstances, the jury should entertain a reasonable doubt about the guilt of the accused.

[28] *Richardson v The Queen* (1974) 131 CLR 116 at 119 per Barwick CJ, McTiernan and Mason JJ. See also *R v Apostilides* (1984) 154 CLR 563.

30. With these propositions in mind, it is necessary to say something of the decision of the Court of Criminal Appeal of New South Wales in *R v OGD* [29] which, as we understand it, has been taken to be authority for charging juries in the way in which the trial judge did in this case. It may be doubted that, properly understood, *OGD* stands for a general proposition that, in cases like the present, directions can or should be given to the effect of those that were given here. In his reasons for judgment in *OGD*, Gleeson CJ emphasised the need for caution before giving such directions [30]. But if, contrary to the view we have expressed about *OGD*, that case is to be taken as establishing, as a general proposition, that it is proper in cases similar to the present to give directions of the kind given here, it should be overruled.

[29] (1997) 45 NSWLR 744.

[30] (1997) 45 NSWLR 744 at 752.

The present case

31. How do the principles we have described apply in the present case? We begin by considering the absence of contradiction of the complainant's evidence.
32. In this respect the prosecution case against the appellant did not depend upon the jury's drawing inferences from proved facts. The evidence of the complainant described what it was that she said the appellant had done. If that evidence was accepted to the requisite standard of satisfaction, the case against the appellant was made out. The trial judge's directions to the jury proceeded from the premise that it may be "reasonable ... to expect some denial or contradiction to be forthcoming from the [appellant] if such a denial or contradiction is available". But for the reasons given earlier, that premise is wrong. It is contrary to fundamental features of a criminal trial: features to which the trial judge alluded earlier in his charge.

33. **Following paragraph cited by:**

Adler v Australian Securities and Investments Commission (08 July 2003)

As the trial judge rightly said, the prosecution must prove the charges it makes and must do so beyond reasonable doubt; an accused person is not obliged to give evidence, and the jury must not conclude that an accused who elects not to give evidence is, for that reason, guilty of the offences charged [31]. There are, as the trial judge said, many reasons why an accused may not wish to give evidence. For present purposes, the most important among those is that the accused may consider that the evidence adduced by the prosecution does not prove the commission of each of the alleged offences beyond reasonable doubt. And although there may be many kinds of reason why that view is held, some cogent and some not, the accused is *not* bound to give evidence [32].

[31] *Tumahole Bereng v The King* [1949] AC 253 at 270. See also *May v O'Sullivan* (1955) 92 CLR 654.

[32] It is not necessary, in this case, to consider what significance an appellate court may properly give to the fact that the accused person did not give evidence. See, for example, *R v Neilan* [1992] 1 VR 57.

34. **Following paragraph cited by:**

R v Miller (08 June 2021) (Sofronoff P and Morrison JA and Ryan J)

In a case where the prosecution leads direct evidence of the accused's guilt (as will usually be the case where sexual offences against a young person are alleged) it is, therefore, not right to say that it would be reasonable to expect the accused to give evidence denying or contradicting that direct evidence. Especially will that be so where more than one count is charged. In such a case, the course which the accused takes may very well be affected greatly by whether the denial or contradiction of each charge can be maintained with the same degree of force.

35. **Following paragraph cited by:**

SK v The Queen; BK v The Queen; Ms v The Queen; Sakieh v The Queen (25 June 2021) (Bell P, Rothman and Beech-Jones JJ)

The present case (and cases of a similar kind) must be contrasted with that considered by this Court in *Weissensteiner* [33]. There the prosecution case was that the accused's guilt was to be inferred from circumstances, particularly the unexplained disappearance of those whom it was alleged he had murdered, and his possession of the boat and equipment which they owned and from which they had disappeared while on a voyage with the accused. The majority of the Court held that the trial judge in that case had made no error by directing the jury that they

could more safely draw the inferences which the prosecution alleged should be drawn "when the accused elects not to give evidence of relevant facts which can be easily perceived to be in his knowledge" [34] . But as Mason CJ, Deane and Dawson JJ pointed out in *Weissensteiner* [35] :

"Not every case calls for explanation or contradiction in the form of evidence from the accused. There may be no facts peculiarly within the accused's knowledge. Even if there are facts peculiarly within the accused's knowledge the deficiencies in the prosecution case may be sufficient to account for the accused remaining silent and relying upon the burden of proof cast upon the prosecution. Much depends upon the circumstances of the particular case and a jury should not be invited to take into account the failure of the accused to give evidence unless that failure is clearly capable of assisting them in the evaluation of the evidence before them."

And as the other members of the majority in *Weissensteiner* (Brennan and Toohey JJ) said [36] :

"The facts from which an inference of guilt may be drawn are correctly identified [in the charge to the jury] as facts which the prosecution is able to prove. The use to which the appellant's failure to give evidence may be put is correctly restricted to the strengthening of an inference of guilt from the facts proved. And the jury is told not to use the appellant's failure to give evidence unless relevant facts 'can be easily perceived to be in his knowledge'. This additional requirement, which follows a decision of the Court of Criminal Appeal of Queensland in *Reg v Whinfield* [37], ensures that the drawing of an inference of guilt will not be assisted by an accused's failure to give evidence unless it is reasonable to expect some denial, explanation or answer by the accused to the prima facie case made against him."

[33] (1993) 178 CLR 217 . See also *R v Guiren* [1962] NSW 1105.

[34] Trial judge's charge quoted in *Weissensteiner v The Queen* (1993) 178 CLR 217 at 224 per Mason CJ, Deane and Dawson JJ.

[35] (1993) 178 CLR 217 at 228. .

[36] (1993) 178 CLR 217 at 237-238 .

[37] Unreported, 16 September 1986 at 25.

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36. The present case depended ultimately upon acceptance of the complainant's evidence, supported, perhaps, by an acceptance of the partial admission allegedly made by the appellant. In those circumstances the trial judge was wrong to direct the jury that they were entitled to conclude from the appellant's election not to give evidence that his evidence would not have assisted him in the trial. The trial judge was also wrong to direct the jury that the

election not to put forward any denial or contradiction might lead them more readily to accept the evidence given by the witnesses for the Crown which the appellant was in a position to contradict of his own knowledge.

37. It is necessary, however, to say something separately about that part of the trial judge's charge which dealt with the alleged partial admission by the appellant^[38]. It was suggested that, because only the appellant knew what he meant by the words "everything else she said is true", the absence of any explanation from him might be said to reinforce a conclusion otherwise reached about what he meant. In particular, it was said that it reinforced the conclusion that he meant either that he had committed some unspecified sexual misconduct towards the complainant or had committed some of the particular kinds of misconduct alleged against him (those acts of digital penetration allegedly committed after the complainant was 10 years old). It was submitted that the trial judge made no error in putting these considerations before the jury.

^[38] Paragraphs (1) and (2) of the impugned directions.

38. We do not accept that the circumstances of this case were such as to entitle the jury to take any account of the appellant's not giving evidence in assessing what he meant by his statement to the complainant's mother (if, of course, the jury accepted that he made it). While it is true to say that only the appellant knew what he meant by saying (if he did) that "everything else she said is true", the jury should not have been directed as they were.
39. Even if the evidence of the alleged partial admission were said to require the jury to infer what the appellant meant by his statement, this was not a case in which it was reasonable to expect some denial, explanation or answer by the accused about the alleged partial admission. It is essential to recall that the appellant was charged with eight counts and that there were, therefore, in effect eight different cases which he had to meet. The alleged admission was, at its highest, an admission to some only of the charges alleged against him. That being so, there was no basis for saying that the appellant should reasonably be expected to answer the part of the prosecution case which related to those counts by giving evidence. Once in the witness box the appellant would have been exposed to examination about *all* of the counts charged and the course which he took must be understood in that light. In particular, he was entitled to say in respect of any one of the charges that the proof by the prosecution was insufficient and, if that were so, no conclusion could safely be reached for his not giving evidence beyond the conclusion that he was content to rest on the need for the prosecution to prove, beyond reasonable doubt, each of the allegations it made.

Conclusion

40. **Following paragraph cited by:**

R v Giri (12 June 2001)

It follows that the instructions given in pars (1), (2) and (4) of the impugned directions should not have been given. For the reasons stated earlier, the instructions given in par (3) should not have been given and, although it was right to say (as the trial judge did in par (6)) that the appellant's election not to give evidence could not fill any gaps in the prosecution case, it was wrong to say that his election could enable the jury to feel more confident in relying on the prosecution evidence. Finally, although it was factually accurate to say that the absence of evidence from the appellant meant that what was put in cross-examination of the prosecution witnesses was not supported, to give such a direction was, at least, unwise for it took its significance largely, if not entirely, from the other directions which we have said should not have been given.

Judicial instructions in criminal trials

41. Following paragraph cited by:

Hinrichsen v The King (12 October 2023) (Livesey P; Lovell and Doyle JJ)

JD v Tasmania (10 October 2023) (Estcourt, Pearce and Jago JJ)

Park v The King (27 March 2023) (Kirk JA, Walton and Sweeney JJ)

R v WBS (20 September 2022) (Dalton JA; Davis and Kelly JJ)

132. On any retrial, the trial judge will, in my view, not necessarily be obliged to give an *Edwards* direction in relation to the Snapchat messages. The judge will be obliged to fashion appropriate directions, the terms of which may depend upon how the Crown puts its case. [101]

via

[101] *Zoneff v The Queen* (2000) 200 CLR 234 at [23] and *RPS v The Queen* (2000) 199 CLR 620 at [41].

Haile v R (29 April 2022) (Bell CJ, Bellew and Ierace JJ)

Weragoda v The Queen (28 October 2021)

Pratten v R (25 October 2021) (Gleeson JA, Johnson and Beech-Jones JJ)

Gorge v The Queen (27 August 2021) (Hoeben CJ, Cl, Hamill and Wilson JJ)

JJP v The Queen (03 June 2021) (Kelly P; Doyle and Bleby JJ)

Trevascus v R (24 May 2021) (Hoeben CJ, Cl and Bellew JJ, Hidden AJ)

Suppressed (23 March 2021) (Mazza JA, Vaughan JA, Hall J)

Flash v The Queen (19 June 2020) (Grant CJ, Southwood and Kelly JJ)

R v Dimitropoulos (17 April 2020) (Fraser JA and Henry and Brown JJ)

Galipo v The State of Western Australia (25 November 2019) (Quinlan CJ; Mazza and Beech JJA)

R v Aprile (24 October 2019) (Philippides JA; Henry and Brown JJ)

R v Lewis (17 September 2019) (Gotterson and Philippides JJA and Burns J)

A2 v R; Magennis v R; Vaziri v R (10 August 2018) (Hoeben CJ, Cl and Ward JJA, Adams J)

Odisho v R (28 February 2018) (Price, Bellew and Hamill JJ)

R v KAP (23 December 2016) (Morrison and Philip McMurdo JJA and Mullins J.)

46. *RPS v The Queen* [34], discussed the required extent of judicial instructions in criminal trials:

“Before parting with the case, it is as well to say something more general about the difficult task trial judges have in giving juries proper instructions. The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues. It will require the judge to put fairly before the jury the case which the accused makes. In some cases it will require the judge to warn the jury about how they should *not* reason or about particular care that must be shown before accepting certain kinds of evidence.”[35].

via

[34] (2000) 199 CLR 620 at [41] per Gaudron A -CJ, Gummow, Kirby and Hayne JJ.

R v Duncan (14 December 2015) (Sulan, Peek and Stanley JJ)
TDP v R; R v TDP (03 December 2013) (Hoeben CJ, Cl, Blanch and R A Hulme JJ)
R v H, T (24 August 2010) (Gray, White and Kourakis JJ)
R v Lacey (11 September 2009) (Chief Justice, McMurdo P, Keane, Muir and Chesterman JJA, Joint reasons for judgment of Chief Justice and Keane, Muir and Chesterman JJA; separate reasons of McMurdo P, dissenting in part)
R v TP; R v SBA (25 May 2007) (McMurdo P, Jerrard JA and Jones J,)
R v Clarke (23 December 2005) (McMurdo P, Helman and Chesterman JJ,)
R v Kassulke (28 May 2004) (Davies, Williams and Jerrard JJA,)
Doughty v The Queen (28 August 2002) (Parker, Templeman and Miller JJ)
R v Lock (13 March 2001) (Williams JA, Ambrose and Douglas JJ,)

Before parting with the case, it is as well to say something more general about the difficult task trial judges have in giving juries proper instructions. The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case [39]. No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues [40]. It will require the judge to put fairly before the jury the case which the accused makes. In some cases it will require the judge to warn the jury about how they should *not* reason or about particular care that must be shown before accepting certain kinds of evidence [41].

[39] *Alford v Magee* (1952) 85 CLR 437 at 466 per Dixon, Williams, Webb, Fullagar and Kitto JJ.

[40] *Alford v Magee* (1952) 85 CLR 437 at 466 per Dixon, Williams, Webb, Fullagar and Kitto JJ.

[41] For example, *Longman v The Queen* (1989) 168 CLR 79; *Domican v The Queen* (1992) 173 CLR 555.

42. **Following paragraph cited by:**

Wiggins v R (07 October 2020) (Simpson AJA, Fagan and Ierace JJ)
Galipo v The State of Western Australia (25 November 2019) (Quinlan CJ; Mazza and Beech JJA)

45. The fundamental task of a trial judge is to ensure a fair trial of the accused. [74]. That requires the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. [75]. It also requires the judge to ensure that the respective cases for the prosecution and the accused are accurately and fairly put to the jury. [76]. While not obliged to do so, the judge may also make any observations about the evidence that the judge thinks necessary in the interests of justice. [77]. If the trial judge's comments on the facts are apt to create a danger or a substantial risk that the jury might actually be persuaded of the accused's guilt by comments in favour of the prosecution case made with the authority of the judge, there will be a miscarriage of justice. [78]. The appellant submitted that the judge's comments on the facts created such a danger in this case. That is not so. As explained below, in the passages about which the appellant complains, the judge was outlining the State case or explaining the relevant law, not advocating adoption of the State case or conveying his views as to disputed issues of fact.

via

[77] *Criminal Procedure Act 2004 (WA)*, s 112 ; **RPS** [42] .

Odisho v R (28 February 2018) (Price, Bellew and Hamill JJ)
Ahmed v The Queen (10 December 2012) (McClellan CJ, Cl, Hidden and Adamson JJ)
K R I v The Queen (16 August 2012) (Neave, Osborn JJA and King AJA)
The Queen v J O (07 May 2009) (Martin (BR) CJ, Riley J and Olsson AJ)
Channel Seven Sydney Pty Ltd v Mohammed (06 March 2008) (Giles JA at 1; Campbell JA at 92; Mathews AJA at 99)
R v TP; R v SBA (25 May 2007) (McMurdo P, Jerrard JA and Jones J.)
Christie v The Queen (24 March 2005) (McKechnie J, LE Miere J, Jenkins J)

123 Of course a Judge has a duty to put the respective cases of the prosecution and the defence to the jury in a fair and balanced way. As part of this duty a Judge may have to warn a jury about how they should or should not reason and that particular caution must be shown before accepting certain kinds of evidence. A judge may also comment on certain arguments or propositions advanced on behalf of the parties. So much may be considered uncontroversial: *Cornelius & Briggs* (1988) 34 A Crim R 49 at 65 ; *Randall v The Queen* (2002) 1 WLR 2237 at 242 ; *RPS v The Queen* (2000) 199 CLR 620 at [42] – [42] .

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R v Mong (13 December 2002) (Winneke, P., Callaway and Batt, Jj.A)

R v Hunter and Clare (10 March 2000) (Davies and Thomas JJA and Wilson J, Judgment of the Court)

But none of this must be permitted to obscure the division of functions between judge and jury. It is for the jury, and the jury alone, to decide the facts. As we have said, in some cases a judge must give the jury warnings about how they go about that task. And, of course, it has long been held that a trial judge may comment (and comment strongly) on factual issues [42] . But although a trial judge *may* comment on the facts, the judge is not bound to do so except to the extent that the judge's other functions require it. Often, perhaps much more often than not, the safer course for a trial judge will be to make no comment on the facts beyond reminding the jury, in the course of identifying the issues before them, of the arguments of counsel.

[42] See, for example, *Tsigos v The Queen* (1965) 39 ALJR 76 (note).

43. To attempt to instruct the jury about how they may reason towards a verdict of guilt (as distinct from warning the jury about impermissible forms of reasoning) leads only to difficulties of the kind that have arisen in the present case. Had the judge's instructions about the significance of the appellant not giving evidence stopped at pointing out that he was not bound to do so, that there may have been many reasons why he did not do so (and the jury should not speculate about those reasons), that it was for the prosecution to prove its case beyond reasonable doubt, and that the jury should draw no inference from the appellant not having given evidence, no complaint could be made. Because the charge in this case went beyond these matters, the jury were misdirected.

Orders

44. The appeal to this Court should be allowed; the order of the Court of Criminal Appeal should be set aside and in lieu the appeal to that Court against convictions should be allowed, the convictions quashed and there be an order for a new trial on counts 4, 6, 7 and 8 of the indictment.

45. McHUGH J. The principal question in this appeal is whether the trial judge in a criminal trial in New South Wales erred in instructing the jury:

"If you are satisfied that the accused could have given evidence from his own knowledge of the events about which [the complainant's mother and the complainant] have given evidence for the Crown, if you are satisfied that it is reasonable, in the circumstances, to expect some denial or contradiction to be forthcoming from the accused if such a denial or contradiction is available, *then you are entitled to conclude, you do not have to, but you are entitled to conclude, from the accused's election not to deny or contradict that evidence that his evidence would not have assisted him in this trial.*

You may use the election of the accused not to put forward any such denial or contradiction as a circumstance which leads you more readily to accept the evidence given by the witnesses for the Crown the accused was in a position to contradict of his own knowledge." (emphasis added)

46. The question has to be answered in the light of s 20(2) of the *Evidence Act 1995 (NSW)* ("the Act") which provides that in a criminal proceeding for an indictable offence:

"The judge or any party (other than the prosecutor) may comment on a failure of the defendant to give evidence. However, unless the comment is made by another defendant in the proceeding, the comment must not suggest that the defendant failed to give evidence because the defendant was, or believed that he or she was, guilty of the offence concerned."

47. The most obvious breach of s 20 will occur when the judge expresses an opinion which suggests that he or she thinks that the accused has not given evidence because that person is guilty of the offence. However, s 20 of the Act is also breached whenever the judge's summing up contains any direct or indirect reference or any allusion to the "fact" that the accused did not give evidence [43] because he or she was or believed himself or herself to be guilty of the offence. The comment to which the section refers is not limited to the personal opinions of the judge. If the section is to fulfil its evident purpose, "comment" must include the judge's instructions to the jury. For the purpose of the section there is no difference between the judge saying "It is plain that ...", "You may think that ..." and "You are entitled to conclude that ...".

[43] cf *Bataillard v The King* (1907) 4 CLR 1282 at 1291 per Isaacs J.

48. It follows that a judge may comment in breach of the section when he or she expresses no personal opinion about the accused's failure to give evidence but leaves a train of reasoning to the jury which invites the jurors to conclude that the accused did not give evidence because he or she was guilty. Thus, the section is breached whenever the summing up, directly or indirectly, encourages or permits the jury to conclude that the accused did not give evidence because that person was or believed himself or herself to be guilty.

49. In my opinion, the learned judge erred in instructing the jury in the general terms in which he did. If the jurors concluded that the appellant did not give evidence as to events within "his own knowledge" because his evidence "would not have assisted him in this trial", they would almost certainly have also concluded that a possible, indeed the most probable, explanation of his failure to testify was that he could say nothing in answer to the charges because he was guilty of the offence. The learned judge's direction, therefore, left to the jury a train of reasoning which implicitly suggested, contrary to s 20 of the [Act](#), that the accused was guilty of the offences concerned. To my mind, it was the use of the words "would not have assisted him in this trial" which tilts the balance in favour of finding a breach of s 20 of the [Act](#). If the passage in the summing up which I have emphasised had been omitted, I do not think that any breach of the section would have occurred.
50. I see no reason why a trial judge cannot direct a jury that, in weighing the evidence, it is entitled to take into account that the accused has given no evidence in respect of any fact which is "easily perceived to be in his knowledge" [\[44\]](#) and in respect of which it is reasonable to expect a denial or explanation from the accused. In my opinion, a jury is entitled, but not bound, to take into consideration that the accused has given no evidence denying or explaining a fact which is within his or her knowledge and which reasonably calls for an answer. That is because the lack of a denial or explanation is a circumstance which indicates that evidence tending to prove that fact is reliable [\[45\]](#). Furthermore, the failure of the accused to give evidence denying an adverse inference from such a proven fact is a circumstance which entitles the jury to draw that inference more readily [\[46\]](#).

[\[44\]](#) *Weissensteiner v The Queen* (1993) 178 CLR 217 at 237 citing *R v Whinfield* unreported, Court of Criminal Appeal of Queensland, 16 September 1986.

[\[45\]](#) *R v Guiren* (1962) 79 WN (NSW) 811 at 813.

[\[46\]](#) *Weissensteiner v The Queen* (1993) 178 CLR 217 at 228-229 per Mason CJ, Deane and Dawson JJ.

51. In *Adamson v California* [\[47\]](#), Frankfurter J explained why the silence of the accused is a matter which the jury is entitled to take into account in determining his or her guilt. His Honour said:

"Sensible and just-minded men, in important affairs of life, deem it significant that a man remains silent when confronted with serious and responsible evidence against himself which it is within his power to contradict. The notion that to allow jurors to do that which sensible and right-minded men do every day violates the 'immutable principles of justice' as conceived by a civilized society is to trivialize the importance of 'due process.' Nor does it make any difference in drawing significance from silence under such circumstances that an accused may deem it more advantageous to remain silent than to speak, on the nice calculation that by taking the witness stand he may expose himself to having his credibility impugned by reason of his criminal record. Silence under such circumstances is still significant."

[47] 332 US 46 at 60-61 (1947).

52. That explanation is just as applicable in New South Wales as it was in California, notwithstanding that *Adamson* is no longer an authority on the application of the Bill of Rights to State matters arising under State laws and that there are differences in the laws of criminal evidence and procedure in California and New South Wales.

53. Thus, in *Weissensteiner v The Queen* [48] Mason CJ, Deane and Dawson JJ said that:

"There is a distinction, no doubt a fine one, between drawing an inference of guilt merely from silence and drawing an inference otherwise available more safely simply because the accused has not supported any hypothesis which is consistent with innocence from facts which the jury perceives to be within his or her knowledge. In determining whether the prosecution has satisfied the standard of proof to the requisite degree, it is relevant to assess the prosecution case on the footing that the accused has not offered evidence of any hypothesis or explanation which is consistent with innocence."

[48] (1993) 178 CLR 217 at 228-229 .

54. Their Honours also said that [49] :

"[I]t has never really been doubted that when a party to litigation fails to accept an opportunity to place before the court evidence of facts within his or her knowledge which, if they exist at all, would explain or contradict the evidence against that party, the court may more readily accept that evidence. It is not just because uncontradicted evidence is easier or safer to accept than contradicted evidence. That is almost a truism. It is because doubts about the reliability of witnesses or about the inferences to be drawn from the evidence may be more readily discounted in the absence of contradictory evidence from a party who might be expected to give or call it. In particular, in a criminal trial, hypotheses consistent with innocence may cease to be rational or reasonable in the absence of evidence to support them when that evidence, if it exists at all, must be within the knowledge of the accused."

[49] (1993) 178 CLR 217 at 227-228 .

55. Once accused persons were given the right to give evidence in criminal trials, it was inevitable that in some cases the failure to give evidence might lead to the drawing of conclusions adverse to the accused, a situation fully recognised by that great advocate, Sir Edward Carson, in his speech on the *Criminal Evidence Act 1898* (UK). He pointed out that, although the Attorney-General in presenting the Bill had said that no accused need give evidence, as a matter of fact, they would have to do so^[50].

^[50] See Hostettler, *Sir Edward Carson – A Dream Too Far* (1997) at 94-95. See also A J Ashton KC, *As I Went On My Way* (1924) at 255, cited in Wigmore, *A Treatise on the Anglo-American System of Evidence in Trials at Common Law*, 3rd ed (1940), vol 8 at 422: "[I]t is now practically imperative for a prisoner charged with a serious offence to go into the box."

56. If the jury thinks that there is a good reason for the accused not giving evidence, however, it would be wrong to place any significance on the failure of the accused to deny or explain a particular fact. If a good reason exists, it would also be wrong to draw any inference adverse to the accused from his or her failure to give evidence. Any direction concerning the accused's failure to give evidence must be qualified, therefore, by reference to the possible or actual existence of a good reason why he or she has not given evidence. Whether or not such a reason exists is a matter for the jury to determine.
57. No doubt an accused person will often have one or more reasons of self-interest for not giving evidence denying or explaining facts within his or her knowledge. An accused person often has to face the dilemma that, although he or she is able to answer one or more aspects of the evidence which reasonably calls for an answer, his or her case could be significantly damaged, perhaps disproportionately so, by cross-examination as to other aspects of the case. But tactical reasons of this sort do not constitute a good reason for not denying or explaining facts within the accused's knowledge which reasonably call for an answer. Tactical reasons do not authorise a judge to direct a jury that their existence negatives the significance of the accused's silence.
58. In the ordinary course of criminal trials, good reasons for not giving evidence about facts "easily perceived to be in his knowledge" and reasonably calling for an answer are likely to be few. They may include loss of memory, illness, age, low intelligence and similar matters. But jurors should not be prevented from using the silence of the accused where the facts are within his or her knowledge *merely* because it is a criminal trial or there are several counts in the indictment or because the accused is not required to give evidence or *thinks* that the case against him or her is weak. No doubt, as this Court pointed out in *Weissensteiner* ^[51], there are cases where the deficiencies in the prosecution case are so great that the silence of the accused is not material even if many of the facts are within the accused's knowledge. In *Weissensteiner*, Mason CJ, Deane and Dawson JJ thought that if such a deficiency exists, it may also be a good reason for not taking into account the accused's silence. But if such cases exist, they must be rare. Subject to the effect of s 20 of the *Act* and its counterparts, the silence of the accused may be taken into account whenever it assists the jury in evaluating evidence concerning facts within the knowledge of the accused. It is not easy to think of

examples where, although there is a case to go to the jury and there is evidence concerning facts within the accused's knowledge which reasonably call for an answer, the lack of a denial or explanation from the accused could not assist the jury in evaluating that evidence.

[51] (1993) 178 CLR 217 at 228 per Mason CJ, Deane and Dawson JJ.

59. In the circumstances of the present case – where the appellant was in a position to give evidence denying or explaining all the important allegations against him – his failure to give evidence made it likely that the jurors would reason that the lack of a sworn denial or explanation from him made it more likely that the evidence of the complainant and her mother was reliable. I see nothing intrinsically wrong with such a reasoning process. The silence of the accused was a factor which strengthened the Crown case [52] and which might induce the jury to find that the Crown had proven the guilt of the accused beyond reasonable doubt.
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[52] "[I]t seems to me that a party not denying a fact which it is in his power to deny, gives a colour to the other evidence against him": *Boyle v Wiseman* (1855) 10 Ex 647 at 651 per Alderson B [156 ER 598 at 600].

60. As long as the jury is instructed that the accused is under no obligation to give evidence, that the Crown must prove his or her guilt beyond reasonable doubt on the evidence adduced and that the accused bears no onus of proof, I find it difficult to see how the so-called "right to silence" is infringed if the jury takes into account the silence of the accused in respect of any facts "easily perceived to be in his knowledge" and which call for an answer. As Windeyer J pointed out in *Bridge v The Queen* [53] :

"But the failure of an accused person to contradict *on oath* evidence that to his knowledge must be true or untrue can logically be regarded as increasing the probability that it is true. That is to say a failure to deny or explain may make evidence more convincing, but it does not supply its deficiencies." (emphasis added)

[53] (1964) 118 CLR 600 at 615.

61. The "right to silence" derives from the privilege against self-incrimination. That privilege is one of the bulwarks of liberty. History, and not only the history of totalitarian societies, shows that all too frequently those who have a right to obtain an answer soon believe that they have a right to the answer that they believe should be forthcoming. Because they hold that belief, often they do not hesitate to use physical and psychological means to obtain the answer

they want. The privilege against self-incrimination helps to avoid this socially undesirable consequence. Nevertheless, as Professor Wigmore has pointed out^[54]:

"In preserving the privilege ... we must resolve not to give it more than its due significance. We are to respect it rationally for its merits, not worship it blindly as a fetish."

^[54] *A Treatise on the Anglo-American System of Evidence in Trials at Common Law*, 3rd ed (1940), vol 8 at 317.

62. The privilege exists to protect the citizen against official oppression. We should not use it to bar ordinary processes of reasoning where they are applicable. The judgment of Windeyer J in *Bridge v The Queen* ^[55] is authority for the proposition that the jury can consider the failure of the accused "to contradict on oath evidence that to his knowledge must be true or untrue" because it "can logically be regarded as increasing the probability that it is true." *Weissensteiner* supports the same proposition. It is true that the issue in *Weissensteiner* was "whether it is permissible for the trial judge to instruct the jury that inferences available to be drawn from facts proved by the Crown case can be drawn more safely when the accused elects not to give evidence on relevant facts which the jury perceives to be within his or her knowledge." ^[56] But I can see no difference in logic or legal principle between more readily drawing an inference from silence and more readily treating evidence as reliable because of silence. But that said, I think it better to deal with the problem as Gaudron J and I suggested in *Weissensteiner* where we said ^[57] :

"In the context of the right to silence, it is important to bear in mind that it is the failure to provide an 'explanation or answer ... as might be expected if the truth were consistent with innocence' ... which is of evidentiary significance and not the failure to give evidence as such. In many cases, an explanation can be offered without the giving of evidence ... Accordingly, directions should be given in terms of the unexplained facts, rather than in terms of the failure to give evidence or to meet the prosecution case generally or the failure to answer questions from investigating police ... And to avoid any possibility of the jury giving significance to the accused's silence with respect to other matters, a direction, if one is to be given, should be precisely framed in terms of the particular facts which call for explanation in the sense indicated."

^[55] (1964) 118 CLR 600 at 615.

^[56] (1993) 178 CLR 217 at 228.

^[57] (1993) 178 CLR 217 at 245-246.

63. Our judgment in that case was a dissenting one. What we said must be read in the light of the majority holding. But, subject to that qualification, I think that the above passage provides the most satisfactory reconciliation of the right to silence and legitimate processes of reasoning based on the lack of any denial or explanation from the accused in respect of facts which are not consistent with innocence and which are within his or her knowledge.
64. However, the learned judge's directions to the jury in the present case went further than inviting the jury to use a legitimate form of reasoning with respect to the lack of denial or explanation of facts within the appellant's knowledge. The judge's directions invited the jurors to use a train of reasoning from which they might conclude that the appellant had not given evidence because he was guilty of the offences charged, a course which s 20 of the [Act](#) forbids. As I have already indicated, it was the use of the words "would not have assisted him in this trial", in the context of the passage in the summing up which I have emphasised, that resulted in the directions infringing s 20 of the [Act](#). Because that is so, the convictions must be quashed. The misdirection was too significant to hold that there has been no miscarriage of justice.

Order

65. The appeal should be allowed. The convictions should be quashed, and a new trial ordered on counts 4, 6, 7 and 8 of the indictment.
66. CALLINAN J. In this appeal the Court has to decide two questions: whether the conduct of the trial judge, either as a result of apprehended bias or otherwise, denied the appellant a fair trial; and whether his Honour's directions offended against s 20(2) of the [Evidence Act 1995 \(NSW\)](#).

Facts and Earlier Proceedings

67. The appellant was charged in 1996 with eight counts (two of carnally knowing his daughter and six of sexual intercourse with her), over a period of 10 years, beginning in February 1983 when the complainant was four years old. Counts one to five involved penile penetration and counts six to eight involved digital penetration.
68. Part of the Crown case in relation to counts six to eight was that the appellant made an admission in responding to accusations by the complainant's grandmother and mother. The accusations and responses were as follows:

Grandmother: "Are you saying that you've never touched her with your hands or fondled her or put your penis inside her?"

Appellant: "That's right."

69. In the week after this exchange took place, there was a conversation between the appellant and the complainant's mother:

Mother: "Can't you just admit what you've done, or are you really calling your daughter a liar?"

Appellant: "I never had intercourse with her but everything else she said is true."

Mother: "How long has it been going on?"

Appellant: "Since she was about ten."

70. In cross-examination the complainant agreed that the effect of her evidence was that the appellant had had sexual intercourse with her on hundreds of occasions, from the age of four years: she had never sought any medical treatment, and was never medically examined. She rejected a medical examination for forensic purposes when the police started to investigate her allegations. She made no complaint until after the event which led to the fourth count (which involved penile intercourse). There was evidence of a complaint to a school friend, and finally to her mother when she was 14 years old.

71. At trial it was suggested by counsel for the appellant that the complainant may only have complained in the hope of obtaining money from the Victims Compensation Tribunal. The trial judge directed the jury regarding this supposed motivation as follows:

"It has been suggested to you by the Crown that you will discount any suggestion that she was motivated by any desire for compensation. ... She had no reason to ever make false allegations against him because he had been very generous to her".

72. During the trial the trial judge on numerous occasions interrupted defence counsel's cross-examination.

73. At the conclusion of the Crown case the trial judge directed a verdict of acquittal on the fifth count. Counsel for the appellant then announced that he was calling a social worker. In the presence of the jury, the trial judge said:

"You must call your client before you can call any other witness. ... That's what the law says. It is customary, and the accused must be called first."

74. Counsel for the appellant informed his Honour that he wished to make some submissions in the absence of the jury. The trial judge arranged for the jury to leave the courtroom and counsel for the appellant told his Honour that the appellant would not be giving evidence. Some discussion then ensued about the judge's right to comment, under the recently enacted *Evidence Act*, upon the fact that there had been no denial by the appellant of what was said to be the partial admission made by the appellant to the complainant's mother. Counsel was afforded an opportunity to obtain further instructions from the appellant whether he wished to maintain his election not to give evidence. The instructions were that the appellant adhered to this position and the jury were then brought back into the courtroom.

75. In his directions to the jury, the trial judge referred in detail to the appellant's election not to give evidence. The relevant parts of his Honour's directions are as follows:

"The accused has not given evidence. There are a number of important directions which I must give you in relation to that fact. An accused person may always give evidence in his trial, but he is under no obligation to do so. As I have already pointed out, the Crown bears the onus of satisfying you, beyond reasonable doubt,

that he is guilty of the offences with which he has been charged. The accused bears no onus, he is presumed to be innocent until you have been satisfied by the Crown that he is guilty. The accused is entitled to say nothing and to make the Crown prove his guilt. ...

Because the accused has merely exercised the right, here in Court, not to give evidence – which belongs to every citizen – you must not conclude that he has elected not to give evidence because he is guilty of the offences charged against him. Such a conclusion from the exercise by the accused of that right to remain silent would be completely wrong. His silence must not be viewed by you as an admission of guilt on his part. There are many reasons why an accused person may not want to give evidence. He may fear that he will be confused by cross-examination or he may simply be content to rely upon any weaknesses which exist in the Crown case or upon the denials that he may have earlier made. ... There are no doubt other valid reasons that he may have for not wishing to give evidence and you must not speculate as to why he has not given evidence.

In the present case, however, the Crown asks you when judging the value of, the weight of, the evidence which has been put forward by the Crown as establishing its case against the accused, to take into account the accused's election not to deny or to contradict the matters about which he could have given direct evidence from his own personal knowledge. That is indeed a circumstance which you are entitled to consider in this case. That is, the fact that the accused has elected not to contradict the evidence given by [the complainant's mother] as to his alleged admission – if you construe it as such – and he has been content to rely upon that very brief statement in answer to the detailed allegations made by the complainant.

You may think that it is only common sense that in a situation where a Crown witness and the accused are directly involved in a particular incident so that they are the two persons best able to give evidence of what happened in that incident, and where the evidence of the Crown witnesses is left undenied or uncontradicted by the accused any doubts which may otherwise have been cast upon the evidence of the Crown witnesses may be more readily discounted and the evidence of the Crown witnesses may more readily be accepted as the truth. That is the approach which the Crown asks you to adopt in this case ...

The accused, however, has met the complainant's allegations. He has not traversed the detail of them, but in his statement which he gave to the police (but not here by evidence) he has denied committing any of these offences. Clearly, it is upon that earlier denial that he now relies. If you are satisfied that the accused could have given evidence from his own knowledge of the events about which [the complainant's mother] and [the complainant] have given evidence for the Crown, if you are satisfied that it is reasonable, in the circumstances, to expect some denial or contradiction to be forthcoming from the accused if such a denial or contradiction is available, then you are entitled to conclude, you do not have to, but you are entitled to conclude, from the accused's election not to deny or contradict that evidence that his evidence would not have assisted him in this trial."

76. Counsel for the appellant objected to this direction, but on the somewhat limited basis that it may have led the jury to think that there was no evidence that the accused denied the allegations in the indictment.
77. After retiring to consider their verdict for about two and a half hours, the jury asked what would happen if they could not reach a unanimous verdict. The trial judge gave further directions and after a short retirement the jury returned. The foreman then informed the judge that they had reached verdicts on four counts. The trial judge released the jury until the next day. The jury brought in verdicts on all of the remaining counts on the morning of that day.
78. The jury convicted on counts four, six, seven and eight and acquitted on counts one to three.

79. **Following paragraph cited by:**

R v McEwan (12 February 2019) (Sofronoff P and Morrison JA and Brown J)

The appellant filed a notice of appeal against those convictions in the Court of Criminal Appeal. Before the appeal was heard, the trial judge made a report to that Court pursuant to s 11 of the *Criminal Appeal Act 1912 (NSW)*, which provides as follows:

"The judge of the court of trial may, and, if requested to do so by the Chief Justice, shall, in case of any appeal or application for leave to appeal, furnish to the registrar the judge's notes of the trial, and also a report, giving the judge's opinion upon the case, or upon any point arising in the case:

Provided that where shorthand notes have been taken in accordance with this Act, a transcript of such notes may be furnished in lieu of such judge's notes."

80. The report is expressed in strong language and included two paragraphs which were the subject of submissions by the appellant in this Court. Those two paragraphs are:

"3. Mr [B] has appeared as defence counsel before me twice, I think, the second occasion being in this trial. I regret to say that in both trials I had repeatedly to interfere to correct Mr [B's] serious misquotations of evidence. Whilst reluctant to draw the conclusion against any member of the bar that the misquotation of evidence has been deliberate, I have found it hard to reach any other view concerning Mr [B's] constant misquotations. On many occasions in both trials I asked Mr [B], who appears to have a sharp and intelligent mind, to take care in this respect but he continued to transgress. In my view, it would have greatly disrupted the trial to have sent the jury out on every occasion evidence was misquoted. I saw it as my duty to ensure that the witnesses were not unfairly treated and the jury not misled by these misquotations.

...

13. ... I, of course, accept that it is for the Court of Criminal Appeal to decide if my direction was erroneous; but I totally reject the suggestion that this was linked to my 'prejudicial approach to the defence'. There was no prejudicial approach. From my discussions with other judges and my own experience, it has become an increasingly regular practice of many practitioners, who have had an unfavourable ruling made against them, to immediately assume and often allege bias on the part of the trial judge. Likewise, if they feel that the summing up or any part of it is unfavourable, they claim, not that it was unduly favourable to the other side or unfair to their own client, but that the judge was biased. This of course is a serious accusation and one calculated to undermine respect for the court and confidence in the criminal law. Barristers are rarely totally objective about such matters."

81. In the Court of Criminal Appeal Gleeson CJ and Hidden J agreed with the reasons for judgment of Hunt CJ at CL for dismissing the appeal. Seven grounds of appeal were argued there but not all of them were taken in this Court.

82. The fifth of the grounds in this Court was that the direction given by the trial judge relating to the appellant's election not to give evidence and which I have quoted at some length was contrary to s 20(2) of the *Evidence Act*. Section 20(2) provides as follows:

"The judge or any party (other than the prosecutor) may comment on a failure of the defendant to give evidence. However, unless the comment is made by another defendant in the proceeding, the comment must not suggest that the defendant failed to give evidence because the defendant was, or believed that he or she was, guilty of the offence concerned."

83. It was also part of the appellant's case that the trial judge additionally disobeyed this statutory directive by making the comment at the conclusion of the Crown case in the presence of the jury to the effect that counsel for the appellant was obliged to call his client before he might call any other witness, and that "[t]hat's what the law says".

84. Hunt CJ at CL in the Court of Criminal Appeal stated what the true position was in these terms:

"Before turning to the appellant's argument ... it should be pointed out that the law does *not* say that the accused person must be called to give evidence before any other witnesses. It has often been said that it is desirable that he be called first, as he perforce will be present when other witnesses give evidence before him and the comment may be made that he has tailored his own evidence to fit in with theirs. The judge was correct when he said that it is customary to call the accused first (if he is to be called at all), but he was wrong to say that he must be."
(emphasis in original)

85. Hunt CJ at CL pointed out, however, that counsel made no complaint at the time about this misstatement and sought in respect of it neither an explanation nor an order that the jury be discharged on the ground of incurable prejudice. Accordingly, his Honour rejected the ground of appeal which relied upon this misstatement solely.

86. The last two grounds of appeal in the Court of Criminal Appeal were dealt with together. They asserted that the trial miscarried because of repeated interjections by the trial judge "directed towards defence counsel" and that his Honour's conduct would have given rise to an apprehension by the jury of bias on the part of his Honour the trial judge.
87. In rejecting these grounds, Hunt CJ at CL took into account the report from the trial judge, two paragraphs of which I have quoted. Hunt CJ at CL said this of it:

"A report from the trial judge to this Court stated that, from his experience of counsel appearing for the appellant at the trial both in a previous trial and in this trial, he had reached the reluctant conclusion that his misquotations of the evidence in the present case were deliberate, and that the continued transgressions of counsel had required him to interrupt the trial in order to ensure that the witnesses were not unfairly treated and the jury not misled. The judge denied any prejudice or bias. There is authority supporting the drawing of a distinction in relation to the course which a judge may take to cure the effects of an error or misconduct on the part of counsel, depending upon whether counsel has acted deliberately or innocently. It was no doubt the conclusion which the judge had reached in relation to the conduct of counsel which led him to act in the way he did. Once again, however, these particular grounds of appeal are not concerned with the issue as to whether that conclusion was correct but rather with the issue as I have already stated it – whether what happened gave rise to a suspicion on the part of the fair minded and informed observer that the judge had a prejudice or a bias against the defence case."

88. A little later his Honour made these other observations about the report:

"Nevertheless, the fair minded observer – that hypothetical figure whose apprehension or suspicion of prejudice or bias is the touchstone – is informed in the sense that there is attributed to him or her a broad knowledge of the material facts as ascertained by the appellate court, which include any explanation which the judge may give and which is acceptable to that appellate court. I would accept the statement of the trial judge in the present case that he had previously had problems with counsel appearing for the appellant at the trial. This would explain why the judge unfortunately had to interrupt so soon in the cross-examination."

89. After dealing with the report in this way, Hunt CJ at CL then discussed at some length a dozen or so intrusions by the trial judge which were said by the appellant to be the most egregious of the 50 or so that were made into his counsel's cross-examinations. Hunt CJ at CL concluded that neither these nor the others with which he did not expressly deal, either taken alone or in combination, involved any unacceptable intrusions by the trial judge and could not give rise to any apprehension of bias.
90. Accordingly the appeal to the Court of Criminal Appeal against conviction was dismissed, as was an application for leave to appeal against sentence.

The Appeal to this Court

91. Initially the appellant was granted leave to appeal to this Court on four grounds and subsequently that leave was extended to a fifth ground, as follows:

"1. The Court of Criminal Appeal erred in finding appropriate the Trial Judge's direction to the jury that the Appellant's alleged statement 'I never had intercourse with her but everything else she said is true' could amount to an admission of digital penetration, where the most detailed allegation put to the Appellant at the time of the alleged admission was 'Are you saying that you've never touched her with your hands or fondled her or put your penis inside her?'. The Court of Criminal Appeal was further in error in finding that no injustice was caused by the Trial Judge's misquotation of the evidence on this point in his Summing Up; viz – 'Are you saying that you've never touched her with your hand or fondled her or *put your fingers inside her*' (emphasis added).

2. The Court of Criminal Appeal erred in accepting the reason given, by way of the Trial Judge's report, for his frequent interjections; namely, that they were due to previously encountered problems with Defence Counsel; and that partly due to such he had formed the view that Counsel's misquotations of evidence were deliberate, and that this justified a level of judicial involvement in the conduct of the trial which might otherwise have been inappropriate. These were not material facts which were within the knowledge of the 'fair minded observer'.

3. The Court of Criminal Appeal erred in failing to address the submission that allowing the question 'Why would the complainant lie?' to be left to the jury had the effect, in the circumstances, of reversing the onus of proof.

4. The Court of Criminal Appeal erred in finding that the verdicts returned in the Appellant's trial were not inconsistent.

5. The comment and direction to the jury by the Trial Judge concerning the Appellant's election not to give evidence were erroneous and prejudicial thereby giving rise to a miscarriage of justice."

92. No ground upon which the appellant relies, if upheld, could result in an order by this Court that the convictions be quashed and no retrial ordered. Because I have formed the view that the verdicts should be quashed and a retrial ordered on the ground the appellant was allowed to add, it is unnecessary to deal with the other grounds of appeal except to say something about the way in which the Court of Criminal Appeal dealt with the appellant's contentions there of apprehended bias.

93. I have considered the interruptions by the trial judge of the appellant's counsel's cross-examination at the trial. I agree with Hunt CJ at CL that, whether taken singly or in their totality, they were not such as to give rise to any apprehension of bias on the part of the trial judge. However, having said that, I would wish to make it clear that an appellate court in considering a question of apprehended bias is not entitled to treat as excusatory of, or as an answer to an allegation of, such conduct, a report of the kind which was furnished here by the trial judge. Whether the test of apprehended bias (which was correctly stated by the Court of Criminal Appeal) has been satisfied or not, is to be ascertained by having regard to what actually happened at the trial and not a judge's subsequent justification of it. Protestations by

a trial judge, either in a report or otherwise, that he or she did not behave at the trial in such a way as to give rise to such an apprehension can have, with perhaps one qualification, no bearing upon this question, and should have been disregarded by the Court of Criminal Appeal. The qualification is that there may be a serious risk that if a trial judge's conduct of the trial was of a borderline kind then the making by him or her of a report, couched as this one was, in strong, indeed adversarial language, might lead an appellate court to form the view that the trial judge had in fact been guilty of conduct which could be construed as apparently biased, or perhaps actually biased. Subsequent conduct often provides a clearer insight into the real nature of earlier conduct. I emphasise that I do not think that this was so in this case because the trial judge's conduct in intervening as he did during the trial could not be characterised as even borderline conduct.

94. In any trial, a manifestation of apparent bias towards counsel may only constitute relevant, apprehended bias in respect of a party if the conduct is such as to give rise to an appearance of bias against that party. Disparaging comments, however undesirable or deserved they might be, about counsel's conduct may or may not produce that appearance. The question, in respect of a jury trial in which facts and the final decision on them are not for the judge, will be, whether the conduct gives rise to an apprehension of bias against a party, not correctable and not corrected by very clear statements by the trial judge that factual matters and the ultimate decision were matters for them and them alone, together with any other necessary statements and explanations that may be necessary in the circumstances. Apprehended bias manifesting itself in respect of legal matters will usually constitute an error of law open to correction by an appellate court.
95. To this last proposition also however there may be a qualification. Litigants, whether the State, corporations, or natural persons are not the only ones who have an interest in an impartial, and an apparently impartial system of justice. Indeed it is also the interest of the public at large in such a system that dictates that a trial must not only be impartially conducted but also must be seen to be so. The whole rationale behind the apprehended bias rule is the need for public confidence in the judicial system: it is of "fundamental importance that justice should not only be done, but should manifestly and undoubtedly be seen to be done" [\[58\]](#). Or, as Deane J stated in *Webb v The Queen* [\[59\]](#) :

"it is of fundamental importance that the parties to litigation and the general public have full confidence in the integrity, including the impartiality, of those entrusted with the administration of justice".

[\[58\]](#) *R v Sussex Justices; Ex parte McCarthy* [1924] 1 KB 256 at 259 per Lord Hewart CJ.

[\[59\]](#) (1994) 181 CLR 41 at 68.

96. Let it be assumed that there has been, in a particular case, in absolute terms, a fair trial but during it there was conduct by the judge in relation even to legal matters only, and in the absence of the jury, strongly suggesting otherwise. If fair minded observers unconnected with the litigation, and even informed to the extent that the law presupposes, were nevertheless to

be left with the impression that the trial judge was apparently biased a new trial still might have to be considered as a possibility. Justice must be seen to be done: otherwise justice will not in fact be done. As Lord Denning MR said [\[60\]](#) :

"The reason is plain enough. Justice must be rooted in confidence: and confidence is destroyed when right-minded people go away thinking: 'The judge was biased.'"

[\[60\]](#) *Metropolitan Properties Co (FGC) Ltd v Lannon* [1969] 1 QB 577 at 599.

97. Lord Devlin explained the principle in similar terms [\[61\]](#) :

"This is why impartiality and the appearance of it are the supreme judicial virtues. It is the verdict that matters, and if it is incorrupt, it is acceptable. To be incorrupt it must bear the stamp of a fair trial. The judge who does not appear impartial is as useless to the process as an umpire who allows the trial by battle to be fouled or an augurer who tampers with the entrails."

[\[61\]](#) Devlin, *The Judge* (1979) at 4 quoted by Deane J in *Webb v The Queen* (1994) 181 CLR 41 at 57.

98. It is unnecessary in this case however to consider this aspect of the matter any further.

99. The appeal to this Court must be upheld on the fifth ground which raises s 20(2) of the *Evidence Act*.

100. The Australian Law Reform Commission in its report in relation to the *Evidence Act* relevantly said this[\[62\]](#):

"The New South Wales prohibition on judicial comment derived from a desire that the jury consider the accused's silence without 'the impetus against the accused which is given to the jury by the judge and the Crown Prosecutor both dwelling on the circumstance that he has not gone into the box and given evidence'[\[63\]](#). There is a danger that judicial comment would draw the jury's attention to an accused person's silence, even in cases where the judge thought that silence explicable on proper grounds. Despite a judicial warning as to right and wrong inferences, the jury may choose the wrong inference. But a recent study in Singapore has indicated that permitting judicial comment has not led to an increase in the number of convictions or in the number of accused persons giving evidence[\[64\]](#). Rather than making no comment and leaving the jury to draw what inferences they will, it seems preferable to permit a trial judge to instruct the jury as to the inferences they may, and may not, draw from the accused person's silence[\[65\]](#)."

[62] Australian Law Reform Commission, *Evidence*, Report No 26 (Interim), (1985), par 557.

[63] New South Wales, Legislative Council, *Parliamentary Debates* (Hansard), 20 October 1898 at 1630 per Dr (later Chief Justice) W P Cullen.

[64] Yeo, "Diminishing the Right to Silence: The Singapore Experience", [1983] *Criminal Law Review* 89 at 98, 100.

[65] See Williams, "Silence and the Unsworn Statement: An Accused's Alternatives to Giving Sworn Evidence", (1976) 10 *Melbourne University Law Review* 481 at 492.

101. Earlier the Commission had discussed the somewhat unsettled state of the law in relation to the right to silence. Although this right has been the subject of criticism, it is, and remains, certainly in the criminal trial itself (except in those jurisdictions in which there has been statutory intervention to modify it), a fundamental plank of criminal jurisprudence, and one which is consistent with the even more important fundamental plank, that an accused person enjoys the presumption of innocence, and the onus of establishing his or her guilt lies firmly and immovably on the Crown.
102. In most jurisdictions for many years there were statutory prohibitions against comment by trial judges on an accused's failure to give evidence. One such prohibition was s 407 of the *Crimes Act 1900 (NSW)*. That section was discussed by this Court in *Bridge v The Queen* [66]. There the trial judge had told the jury that unsworn statements from the dock were:

"not on oath, they are made without the sanction of the oath from the dock, and under those circumstances they [the two accused] could not be asked a single question, they could not be cross-examined, they could not be asked any questions by the judge or anybody else after they had made these statements".

[66] (1964) 118 CLR 600.

103. The majority (Barwick CJ, Menzies and Owen JJ) were in no doubt that those statements fell outside s 407 of the *Crimes Act*. McTiernan and Windeyer JJ doubted whether the section had been infringed. Windeyer J discussed the prohibitions against comment in a passage which, with respect, perhaps overstates the degree of public awareness of the criminal process [67]:

"Most jurymen today probably know that an accused can give sworn evidence if he chooses: at least some members of every jury probably know this well, for it has been the law of New South Wales for more than seventy years, and there is now little recollection of the time when the accused was not allowed to

testify. This does not alter the obligation to refrain from comment. It merely enhances the difficulty of performing it."

[67] *Bridge v The Queen* (1964) 118 CLR 600 at 611. .

104. In Queensland, there is no statutory prohibition against comment by a trial judge. In *Weissensteiner v The Queen* [68] , a Queensland case [69] , the accused did not give evidence and called no witnesses. The trial judge told the jury that the Crown had the onus of establishing the accused's guilt beyond reasonable doubt, that the accused did not have to prove anything, that he was under no obligation to give evidence, and that the Crown case depended on the inference by the jury of guilt from a whole collection of circumstances. His Honour then said that such an inference may more safely be drawn from the proved facts when an accused elected not to give evidence on relevant facts which must be within his knowledge. In this Court, Mason CJ, Deane and Dawson JJ said that the trial judge was correct in his view that the case was an appropriate one in which to make the comments that he did [70] . Their Honours said [71] :

"His failure to give evidence was, therefore, capable of strengthening the prosecution case by enabling the jury, in the absence of any explanation by him, to accept the inferences for which the prosecution contended as the only rational inferences from the evidence. Indeed, in the circumstances of the present case, it appears to us that a direction of the kind given by the learned trial judge essentially involved no more than a statement of the obvious."

[68] (1993) 178 CLR 217 .

[69] The *Evidence Act* 1995 (Cth) has not been adopted in Queensland.

[70] *Weissensteiner v The Queen* (1993) 178 CLR 217 at 229. .

[71] *Weissensteiner v The Queen* (1993) 178 CLR 217 at 230-231 .

105. Brennan and Toohey JJ said this [72] :

"It follows that, in Queensland and in other jurisdictions where there is no statutory prohibition against judicial comment, a judge may tell the jury that where the facts which they find to be proved by the evidence can support an inference that the accused committed the offence charged and where it is reasonable to expect that, if the truth were consistent with innocence, a denial, explanation or answer would be forthcoming, the jury may take the accused's failure to give evidence into account in determining whether the inference should be drawn. The jury should be told that the onus remains on the prosecution and

that the accused is under no obligation to give evidence, but that 'it is legitimate to have regard to the fact that the accused has given no evidence or explanation or satisfactory explanation of the Crown case as a consideration making the inference of guilt from the evidence for the prosecution less unsafe than it might otherwise possibly appear' [\[73\]](#)."

[\[72\]](#) *Weissensteiner v The Queen* (1993) 178 CLR 217 at 236.

[\[73\]](#) *R v Guiren* (1962) 79 WN (NSW) 811 at 813.

106. Gaudron and McHugh JJ dissented, although their Honours did think that in some limited circumstances a comment might be permissible.
107. What the Court has to consider in this case, however, is the effect of s 20, particularly sub-s (2), of the *Evidence Act* which has been enacted in some jurisdictions after *Weissensteiner* was decided.
108. In my opinion the principles stated by the majority in *Weissensteiner* can have no application in a jurisdiction in which s 20(2) has been enacted. The directions which were approved in *Weissensteiner* involve suggestions of the kind which s 20(2) now makes impermissible. It is important to bear in mind that the word which the section uses is "suggest". Very little need be said of an accused with respect to the fact that he or she has not given evidence in order to give rise to a suggestion that the failure to give evidence stems from an awareness of guilt. As Isaacs J pointed out in *Bataillard v The King* [\[74\]](#), an implication of guilt may be conveyed, not only by a direct or indirect reference, but also by "subtle allusion". The directions which were approved in *Weissensteiner* could have conveyed no suggestion other than of guilt and may not be given in jurisdictions in which the *Evidence Act* or its analogues have been enacted.
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[\[74\]](#) (1907) 4 CLR 1282 at 1291.

109. In my opinion, the purpose of s 20(2) is to enable a trial judge to make comments for the protection and benefit of an accused who has not given evidence and not otherwise. This view is consistent with the Australian Law Reform Commission report, to which I have referred and gives effect to the ordinary meaning of s 20(2).
110. The possible application of *Jones v Dunkel* [\[75\]](#) to criminal cases requires consideration. In *R v OGD*, whilst accepting that there are obvious difficulties in some criminal cases in applying that case, and in giving directions to juries in accordance with it, the Court of Criminal Appeal said that a trial judge may nonetheless do so in an appropriate case [\[76\]](#).
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[75] (1959) 101 CLR 298 .

[76] *R v OGD* (1997) 45 NSWLR 744 at 752-753 .

111. **Following paragraph cited by:**

Lynch v Day (11 May 2001) (Miller J)

R v Martin (21 September 2000) (Phillips, C.J, Callaway and Buchanan, Jj.A)

There is no doubt that a direction in accordance with *Jones v Dunkel* may be given in respect of a failure by the Crown to call a material witness without acceptable and admissible explanation. The need for such a direction will usually be heightened by the Crown's responsibility to present its case in a way which is fair to an accused [77] . However, such a direction may not be given in relation to an accused person or an accused person's witnesses who, if the matter were a civil trial, might be expected to be called. A direction with respect to a defence case, based upon *Jones v Dunkel* would not only infringe s 20(2) but also would erode the basic principle of the presumption of innocence. The principles stated in *Jones v Dunkel* by their very nature presuppose that there is a need, or an occasion, for evidence to be called by a party, or an expectation that evidence could and should be called by a party. An accused person in criminal proceedings labours under no such need, occasion or expectation.

[77] See *R v Apostilides* (1984) 154 CLR 563.

112. In this case, the directions which I have quoted were contrary to s 20(2) . The directions by which the trial judge sought to give effect to the principles stated in *Jones v Dunkel* were also erroneously made. This error was compounded by the misstatement of the legal position by the trial judge at the close of the Crown case that the appellant was obliged to give evidence first.
113. I should also say that I agree with the observations of the other members of this Court with respect to judicial instructions in criminal trials, and their observations about any continued application of *OGD* in New South Wales.
114. For these reasons the appeal should be allowed, the order of the Court of Criminal Appeal set aside, the convictions quashed and a new trial ordered on counts 4, 6, 7 and 8 of the indictment.
115. There is only one other matter which I would mention. Nothing that I have said should be taken as precluding a trial judge from commenting when appropriate on inconsistencies in, or

omissions from a statement, or statements made by an accused person out of court, or upon the differences (whether by way of additions, inconsistencies or omissions) between evidence given by an accused person in court and statements made out of court.

Cited by:

[Hinrichsen v The King](#) [2023] SASCA 111 (12 October 2023) (Livesey P; Lovell and Doyle JJ)

66. Great weight is attached to the conduct of counsel at the trial, whether or not it is before a jury. The parties are ordinarily bound by the conduct of their counsel, who is conferred a wide discretion as to the manner in which proceedings are conducted. [29]. That discretion extends to how and on what bases the proceeding will be fought, [30] together with the issues or forensic landscape against which the facts are to be determined. [31]. Counsel is free to determine “what issues to contest” and “what lines of argument to pursue”. [32].

via

[30] [Gately v The Queen](#) (2007) 232 CLR 208, [77] (Hayne J, with whom Gleeson CJ, Heydon and Crennan JJ agreed), citing, amongst other authorities, [Ratten v The Queen](#) (1974) 131 CLR 510, 517 (Barwick CJ), [RPS v The Queen](#) (2000) 199 CLR 620, 630 [22] and [TKWJ v The Queen](#) (2002) 212 CLR 124, 158 [106].

[Hinrichsen v The King](#) [2023] SASCA 111 -

[Hinrichsen v The King](#) [2023] SASCA 111 -

[Hinrichsen v The King](#) [2023] SASCA 111 -

[JD v Tasmania](#) [2023] TASCCA 11 -

[Macdonald, Ian v The King; Edward Obeid v The King; Moses Obeid v The King](#) [2023] NSWCCA 250 -

[Macdonald, Ian v The King; Edward Obeid v The King; Moses Obeid v The King](#) [2023] NSWCCA 250 -

[Macdonald, Ian v The King; Edward Obeid v The King; Moses Obeid v The King](#) [2023] NSWCCA 250 -

[Macdonald, Ian v The King; Edward Obeid v The King; Moses Obeid v The King](#) [2023] NSWCCA 250 -

[Macdonald, Ian v The King; Edward Obeid v The King; Moses Obeid v The King](#) [2023] NSWCCA 250 -

[R v Elliott](#) [2023] QCA 138 -

[R v Elliott](#) [2023] QCA 138 -

[Heathcote v The King](#) [2023] SASCA 68 (15 June 2023) (Bleby and David JJ; Mazza AJ)

46. As Gaudron ACJ, Gummow, Kirby and Hayne JJ said in [RPS v The Queen](#): [28].

Before parting with the case, it is as well to say something more general about the difficult task trial judges have in giving juries proper instructions. The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues. It will require the judge to put fairly before the jury the case which the accused makes. In some cases it will require the judge to warn the jury about how they should *not* reason or about particular care that must be shown before accepting certain kinds of evidence.

(Emphasis in original; footnotes omitted)

[Heathcote v The King](#) [2023] SASCA 68 -

[Heathcote v The King](#) [2023] SASCA 68 -

[Dedeoglu v The King](#) [2023] NSWCCA 126 (09 June 2023) (Harrison, Fagan and Yehia JJ)

176. In *MWJ v R* (2005) 222 ALR 436; [2005] HCA 74 at [18], Gleeson CJ and Heydon J, while noting that the rule in *Browne v Dunn* still applies to criminal trials, affirmed *Birks* and *Manunta* with respect to observations around the care that needed to be taken when applying the rule against defence counsel. The decision in *MWJ* was considered in *R v MAP* [2006] QCA 220. Keane JA said this:

“[54] The appellant submits that the trial judge erred in referring to the failure of the appellant's counsel at trial to put to Ms S the proposition that the appellant had not inserted his fingers in her vagina because that reference may have been taken by the jury as an invitation to conclude that the appellant was not challenging the allegation of digital penetration. The appellant has formulated his contention in relation to this ground of appeal on the basis that the trial judge misapplied the rule in *Browne v Dunn* .

[55] While this formulation of the argument may not be entirely appropriate, the comment made by the trial judge is troubling. The High Court has recently emphasised the need for care on the part of a trial judge in directing a jury to attribute significance to the failure of counsel to put an aspect of his or her client's case to a witness on the other side, especially where it is otherwise apparent that the proposition which was not put is in issue. In *MWJ v The Queen*, Gummow, Kirby and Callinan JJ said:[12]

‘We should next say something about the rule in *Browne v Dunn* , which, in substance, both the trial judge and the Chief Justice thought should be applied here against the appellant, its application in criminal cases generally, and his Honour, the Chief Justice's reference to the appellant's counsel's failure to seek to have the complainant recalled for further cross-examination. The rule is essentially that a party is obliged to give appropriate notice to the other party, and any of that person's witnesses, of any imputation that the former intends to make against either of the latter about his or her conduct relevant to the case, or a party's or a witness' credit.

One corollary of the rule is that judges should in general abstain from making adverse findings about parties and witnesses in respect of whom there has been non-compliance with it. A further corollary of the rule is that not only will cross-examination of a witness who can speak to the conduct usually constitute sufficient notice, but also, that any witness whose conduct is to be impugned, should be given an opportunity in the cross-examination to deal with the imputation intended to be made against him or her. An offer to tender a witness for further cross-examination will however, in many cases suffice to meet, or blunt a complaint of surprise or prejudice resulting from a failure to put a matter in earlier cross-examination. In this case, the appellant was confronted with a forensic dilemma: whether to seek to have the mother's evidence of her daughter's assertions of repeated misconduct at Sutcliffe Street excluded by reason of its prejudicial effect, or deliberately to leave it untouched to provide a basis for a submission that a fundamental inconsistency tainted the whole case. In the event the appellant chose the former. In that endeavour he failed, but was still able, albeit unsuccessfully, to rely on it as setting up a significant inconsistency. On no view was the appellant obliged however to seek to have the complainant recalled as a condition of his reliance upon the inconsistency which had emerged in the case for the prosecution.

Reliance on the rule in *Browne v Dunn* can be both misplaced and overstated. If the evidence in the case has not been completed, a party genuinely taken by surprise by reason of a failure on the part of the other to put a relevant matter in cross-examination, can almost always, especially in ordinary civil litigation, mitigate or cure any difficulties so arising by seeking or offering the recall of the witness to

enable the matter to be put. In criminal cases, in many jurisdictions, the salutary practice of excusing witnesses temporarily only, and on the understanding that they must make themselves available to be recalled if necessary at any time before a verdict is given, is adopted. There may be some circumstances in which it could be unfair to permit the recalling of a witness, but in general, subject to the obligation of the prosecution not to split its case, and to present or make available all of the relevant evidence to an accused, the course that we have suggested is one that should be able to be adopted on most occasions without injustice.

The obligation of the prosecution to present its whole case in chief and the existence of the unavoidable burden of proof carried by the prosecution are of particular relevance here. Doyle CJ was critical of the appellant for not putting the inconsistency between the complainant and her mother, in turn giving rise to an internal inconsistency in the complainant's account, to the complainant. The criticism does not give due weight to the obligations of the prosecution to which we have referred. It is not for the defence to clear up, or resolve inconsistencies in the case for the prosecution. As soon as the inconsistency emerged, and the trial judge rejected the appellant's objection to the evidence intended to be adduced from the complainant's mother, it was open for the prosecution to offer to tender the complainant for further cross-examination. Had that happened it would then, and only then have been for the appellant, to decide whether to embrace the offer or not. If he had not, then and only then would the criticism that the Court of Criminal Appeal made of his conduct have been valid. The position of an accused who bears no burden of proof in a criminal trial cannot be equated with the position of a defendant in civil proceedings. The rule in *Browne v Dunn* can no more be applied, or applied without serious qualification, to an accused in a criminal trial than can the not dissimilar rule in *Jones v Dunkel* ((1959) 101 CLR 298 ... See the discussion of this case in *RPS v The Queen* (2000) 199 CLR 620 at [27]-[29] ; 74 ALJR 449 and *Dyers v The Queen* (2002) 210 CLR 285 at [120]-[123]; 76 ALJR 1552). In each case it is necessary to consider the applicability of the rule (if any) having regard to the essential accusatory character of the criminal trial in this country.'

[56] In the present case, his Honour's comment could have been understood as an invitation to the jury to draw an inference adverse to the appellant on a crucial issue, namely, the fact of digital penetration of Ms S. The judge's comment could well have led the jury to conclude that the appellant, in his instructions to his counsel, had accepted the proposition crucial to the complainant by Ms S, and that he had instructed his counsel to contest that proposition in the case by Ms W. It may well be that it was this direction which explains the different verdicts. It is clear from the passage which I have set out from *MWJ v The Queen* that the rule in *Browne v Dunn* afforded no basis for the judge's comment. The issue is whether there was some other basis for the trial judge's comment.

...

[58] ... care needs to be taken to ensure that this approach is not applied mechanically, especially where the circumstances suggest that one cannot safely and fairly infer that the cross-examination is an accurate reflection of the party's instructions. In the present case, the appellant's plea of not guilty put the elements of the charge in issue, and the Crown itself tendered a record of interview containing an express denial of the act of digital penetration of Ms S. The trial judge, during the course of the trial, frequently voiced criticisms of the conduct of the trial by counsel for the defence - who was not, I hasten to mention, the counsel who represented the appellant on the appeal in this Court. At one point, his Honour admonished defence counsel that if she did not have the competence to deal with serious trials, she "shouldn't be doing them". At another point, his Honour's exasperation with what he perceived to be the incompetence of the appellant's counsel moved him to say that he "felt sorry" for her client. It was readily apparent

that the proposition that there had been no digital penetration of Ms W by the appellant was only put to her by the appellant's then counsel in her pre-recorded evidence after the appellant's counsel had been prompted to do so. None of the lawyers involved in the trial can have been in any real doubt that the appellant's case was that he denied the digital penetration of Ms S. The jury, however, were not warned that a reason (and indeed a likely reason in the circumstances) which might explain why this aspect of the appellant's case was not put to Ms S was that counsel for the appellant had simply overlooked the point.

[59] There were, therefore, strong considerations of fairness which militated against an invitation to the jury to infer a tacit acceptance by the appellant that he had digitally penetrated the complainant, Ms S, from the manner in which his counsel had conducted the cross-examination of Ms S."

[Siriphanuruk v The State of Western Australia](#) [2023] WASCA 56 -

[Siriphanuruk v The State of Western Australia](#) [2023] WASCA 56 -

[Park v The King](#) [2023] NSWCCA 71 -

[Fantakis v R](#) [2023] NSWCCA 3 -

[Fantakis v R](#) [2023] NSWCCA 3 -

[Fantakis v R](#) [2023] NSWCCA 3 -

[R v Kuhn](#) [2022] QCA 247 -

[R v Kuhn](#) [2022] QCA 247 -

[R v Kuhn](#) [2022] QCA 247 -

[R v Kuhn](#) [2022] QCA 247 -

[R v Kuhn](#) [2022] QCA 247 -

[KHL v The State of Western Australia](#) [2022] WASCA 122 (03 October 2022) (Buss P; Mazza and Beech JJA)

RPS v The Queen [2000] HCA 3 ; (2000) 199 CLR 620

[KHL v The State of Western Australia](#) [2022] WASCA 122 -

[KHL v The State of Western Australia](#) [2022] WASCA 122 -

[Drummond v Canberra Institute of Technology \(No 3\)](#) [2022] FCAFC 169 -

[R v WBS](#) [2022] QCA 180 (20 September 2022) (Dalton JA; Davis and Kelly JJ)

132. On any retrial, the trial judge will, in my view, not necessarily be obliged to give an [Edwards](#) direction in relation to the Snapchat messages. The judge will be obliged to fashion appropriate directions, the terms of which may depend upon how the Crown puts its case. [\[101\]](#)

via

[\[101\]](#) [Zoneff v The Queen](#) (2000) 200 CLR 234 at [\[23\]](#) and [RPS v The Queen](#) (2000) 199 CLR 620 at [\[41\]](#)

[Pickett v Tasmania](#) [2022] TASCCA 12 -

[R v WBS](#) [2022] QCA 180 -

[R v WBS](#) [2022] QCA 180 -

[R v WBS](#) [2022] QCA 180 -

[Britt v Office of the State Coroner](#) [2022] WASCA 75 (27 June 2022) (Murphy, Mitchell and Beech JJA)

15. First, it is to be accepted that the general principle is that all evidence is to be weighed according to the proof which was in the power of one side to have produced and the power of the other side to have contradicted, [\[21\]](#), and in the context that: [\[22\]](#)

in a civil trial there will very often be a reasonable expectation that a party would give or call relevant evidence. It will, therefore, be open in such a case to conclude that the failure of a party ... to give evidence leads rationally to an inference that the evidence of that party ... would not help the party's case. (citations omitted)

via

[22] [RPS v The Queen](#) [2000] HCA 3; (2000) 199 CLR 620 [26].

[Britt v Office of the State Coroner](#) [2022] WASCA 75 (27 June 2022) (Murphy, Mitchell and Beech JJA)

[RPS v The Queen](#) [2000] HCA 3; (2000) 199 CLR 620.

[Haile v R](#) [2022] NSWCCA 71 -

[Roberts v The Queen](#) [2022] SASCA 36 (28 April 2022)

232. After noting this starting point, the plurality in [McKell v The Queen](#) explained why it called for circumspection in the exercise of the trial judge's discretion to comment: [81].

A trial judge's 'broad discretion' to comment on the facts of the case in a criminal trial is an aspect of the power by which a trial judge discharges the fundamental task of ensuring a fair trial of the accused. The discretion is to be exercised judicially as part of ensuring that the facts of the case are put 'accurately and fairly' to the jury. It is not exercisable, at large, independently of the fundamental task described above. A fortiori, the trial judge's summing-up is not an occasion to address the jury in terms apt to add to the force of the case for the prosecution or the accused so as to sway the jury to either view. For that reason, as the plurality in [RPS](#) stated, judicial circumspection is required in the exercise of the discretion to comment.

[Roberts v The Queen](#) [2022] SASCA 36 (28 April 2022)

[RPS v The Queen](#) (2000) 199 CLR 620;

[Roberts v The Queen](#) [2022] SASCA 36 -

[Roberts v The Queen](#) [2022] SASCA 36 -

[Clarke v The State of Western Australia](#) [2022] WASCA 6 -

[Kassam v Hazzard](#) [2021] NSWCA 299 -

[Hofer v The Queen](#) [2021] HCA 36 -

[Weragoda v The Queen](#) [2021] SASCA 123 (28 October 2021)

15. In [RPS v The Queen](#) [1] Gaudron A/CJ, Gummow, Kirby and Hayne JJ said: [2].

The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues. It will require the judge to put fairly before the jury the case which the accused makes. In some cases it will require the judge to warn the jury about how they should not reason or about particular care that must be shown before accepting certain kinds of evidence.

[Citations omitted].

[Weragoda v The Queen](#) [2021] SASCA 123 -

[Weragoda v The Queen](#) [2021] SASCA 123 -

[Weragoda v The Queen](#) [2021] SASCA 123 -

[Pratten v R](#) [2021] NSWCCA 251 -

[R v DBV](#) [2021] QCA 227 -

[R v DBV](#) [2021] QCA 227 -

[R v DBV](#) [2021] QCA 227 -

[R v DBV](#) [2021] QCA 227 -

[R v DBV](#) [2021] QCA 227 -

[Quist v The Queen](#) [2021] SASCA 106 -

[Quist v The Queen](#) [2021] SASCA 106 -

65. Finally, at [47] their Honour's said:

"It is well settled that a trial judge's discretion to comment on the facts should be exercised with circumspection. The need for circumspection is not merely a matter of prudence or politeness. Recently, in *Castle v The Queen*, Kiefel, Bell, Keane and Nettle JJ, with whom Gageler J relevantly agreed said, referring to the passages from *RPS* with which these reasons commenced:

'[U]nless there is a need for comment – as, for example, in dealing with an extravagant submission by counsel – the wise course will often be not to do so. Where the judge chooses to comment, the following statement of Brennan J in *B v The Queen* is to be kept in mind:

"[The comment] must exhibit a judicial balance so that the jury is not deprived 'of an adequate opportunity of understanding and giving effect to the defence and the matters relied upon in support of the defence.'"

(Footnotes omitted.)

[Gorge v The Queen](#) [2021] NSWCCA 206 -

[Gorge v The Queen](#) [2021] NSWCCA 206 -

[Harris \(a pseudonym\) v The Queen](#) [2021] VSCA 197 -

[Papanikolaou v The Queen; Tomaras v The Queen](#) [2021] NSWCCA 135 (30 June 2021) (Hoeben CJ, Cl and Hamill JJ, Hidden AJ)

The ground as formulated suggested that a *Jones v Dunkel* [7] direction should have been provided. It seemed that this submission was not pressed and, if it was, it would be contrary to authority: see, for example, *RPS v The Queen* (2000) 199 CLR 620; [2000] HCA 3 at [29] ('*RPS*'). In *RPS*, the High Court contrasted the situation that may arise in a civil case with the position of an accused person and the prosecutor in a criminal trial:

[Papanikolaou v The Queen; Tomaras v The Queen](#) [2021] NSWCCA 135 -

[El-Debel v Micheletto \(Trustee\)](#) [2021] FCAFC 117 -

[Papanikolaou v The Queen; Tomaras v The Queen](#) [2021] NSWCCA 135 -

[Papanikolaou v The Queen; Tomaras v The Queen](#) [2021] NSWCCA 135 -

[Papanikolaou v The Queen; Tomaras v The Queen](#) [2021] NSWCCA 135 -

[R v Smith \(aka Stella\)](#) [2021] QCA 139 (29 June 2021) (Sofronoff P and Bond JA and Davis J)

RPS v The Queen (2000) 199 CLR 620, cited; [2000] HCA 3, cited

[R v Smith \(aka Stella\)](#) [2021] QCA 139 -

[R v Smith \(aka Stella\)](#) [2021] QCA 139 -

[SK v The Queen; BK v The Queen; Ms v The Queen; Sakieh v The Queen](#) [2021] NSWCCA 130 -

[SK v The Queen; BK v The Queen; Ms v The Queen; Sakieh v The Queen](#) [2021] NSWCCA 130 -

[Nenna \(a pseudonym\) v The Queen](#) [2021] VSCA 183 -

[Nenna \(a pseudonym\) v The Queen](#) [2021] VSCA 183 -

[Nenna \(a pseudonym\) v The Queen](#) [2021] VSCA 183 -

[Nenna \(a pseudonym\) v The Queen](#) [2021] VSCA 183 -

[Nenna \(a pseudonym\) v The Queen](#) [2021] VSCA 183 -

[KUC v The State of Western Australia](#) [2021] WASCA 101 -

[R v Miller](#) [2021] QCA 126 -

[KUC v The State of Western Australia](#) [2021] WASCA 101 -

[KUC v The State of Western Australia](#) [2021] WASCA 101 -

[JJP v The Queen](#) [3 June 2021] SASCA 53 (03 June 2021) (Kelly P; Doyle and Bleby JJ)

R v P, BR [2004] SASC 323; *R v CH* [2016] SASCFC 112; *R v Cheng* [2015] SASCFC 189; *M v The Queen* (1994) 181 CLR 487; *Pell v The Queen* (2020) 94 ALJR 394; *Chiro v The Queen* (2017) 260 CLR 425; *Hamra v The Queen* (2017) 260 CLR 479; *Johnson v Miller* (1937) 59 CLR 467; *S v The Queen* (1989) 168 CLR 266; *K BT v The Queen* (1997) 191 CLR 417; *R v M, BJ* (2011) 110 SASR 1; *R v Little* (2015) 123 SASR 414; *R v Johnson* [2015] SASCFC 170; *KMC v Director of Public Prosecutions (SA)* [2020] HCA 6; *DL v The Queen* (2018) 266 CLR 1; *R v Hamra* (2016) 126 SASR 374; *Alford v Magee* (1952) 85 CLR 437; *RPS v The Queen* (2000) 199 CLR 620; *Huynh v The Queen* (2013) 87 ALJR 434, considered.

JJP v The Queen [3 June 2021] SASCA 53 -
Trevascus v R [2021] NSWCCA 104 -
Mathieson v The Queen [2021] VSCA 102 -
Kennedy v The State of Western Australia [2021] WASCA 55 -
Kennedy v The State of Western Australia [2021] WASCA 55 -
Mortimer v The Queen [2021] NSWCCA 47 -
Suppressed [2021] WASCA 51 -
Suppressed [2021] WASCA 51 -
Suppressed [2021] WASCA 51 -
Suppressed [2021] WASCA 51 -
Dayananda v The State of Western Australia [2021] WASCA 11 -
Dayananda v The State of Western Australia [2021] WASCA 11 -
Dayananda v The State of Western Australia [2021] WASCA 11 -
Duarte v Director of Public Prosecutions (NSW) [2020] NSWCCA 351 -
Hussian v The State of Western Australia [2020] WASCA 187 -
Hussian v The State of Western Australia [2020] WASCA 187 -
Hussian v The State of Western Australia [2020] WASCA 187 -
Dansie v The Queen [2020] SASCFC 103 -
Dansie v The Queen [2020] SASCFC 103 -
R v Abdirahman-Khalif [2020] HCA 36 (14 October 2020) (Bell, Gageler, Keane, Nettle and Gordon JJ)

77. That was exceptionable. The tone of the remark was snide, and, as this Court has indicated more than once in recent times, it is not the proper function of trial judges to pass comments, particularly snide comments, regarding the quality of counsel's arguments [43]. That said, however, the argument as put by defence counsel was evidently so jejune that it cannot reasonably be supposed that the trial judge's remark might have led the jury to a different perception of the argument, or of the defence case more generally, than they would have arrived at in any event. Despite the impropriety of the remark, it was in effect no more than an unfortunate observation in the course of a detailed summing up, and, therefore, not productive of a miscarriage of justice.

(7) Innocent hypotheses

via

[43] See *Castle v The Queen* (2016) 259 CLR 449 at 470-471 [61] per Kiefel, Bell, Keane and Nettle JJ. See also, eg, *RPS v The Queen* (2000) 199 CLR 620 at 637 [42] per Gaudron A -CJ, Gummow, Kirby and Hayne JJ; *McKell v The Queen* (2019) 264 CLR 307 at 324 [48] per Bell, Keane, Gordon and Edelman JJ.

Wiggins v R [2020] NSWCCA 256 (07 October 2020) (Simpson AJA, Fagan and Ierace JJ)

58. It was the applicant's submission that, since the decision in *RPS*, the subsequent decision of the High Court in *McKell* "has changed the landscape in this area of law". In *McKell* the plurality (Bell, Keane, Gordon and Edelman JJ) quoted [42] of *RPS* (without adverse comment), but added significant refinements. Their Honours said:

“3. A trial judge’s ‘broad discretion’ to comment on the facts of the case in a criminal trial is an aspect of the power by which a trial judge discharges the fundamental task of ensuring a fair trial of the accused. The discretion is to be exercised judicially as part of ensuring that the facts of the case are put ‘accurately and fairly’ to the jury. It is not exercisable, at large, independently of the fundamental task described above. A fortiori, the trial judge’s summing up is not an occasion to address the jury in terms apt to add to the force of the case for the prosecution or the accused so as to sway the jury to either view. For that reason, as the plurality in *RPS* stated, judicial circumspection is required in the exercise of the discretion to comment.

...

5. In addition, it should be clearly understood that the risk of such unfairness is such that a trial judge should refrain from comments which convey his or her opinion as to the proper determination of a disputed issue of fact to be determined by the jury.

...

35. A trial judge must sum up for the jury the case presented by each of the prosecution and the accused after each side has addressed the jury. In *Domican v The Queen* [(1992) 173 CLR 555 at 561; [1992] HCA 13], Mason CJ, Deane, Dawson, Toohey, Gaudron and McHugh JJ observed that the ‘requirement of fairness means that ordinarily the respective cases for the prosecution and the accused must be accurately and fairly put to the jury.’ (Some internal citations are omitted).

[Wiggins v R](#) [2020] NSWCCA 256 -

[Wiggins v R](#) [2020] NSWCCA 256 -

[Wiggins v R](#) [2020] NSWCCA 256 -

[Wiggins v R](#) [2020] NSWCCA 256 -

[Nse v The State of Western Australia](#) [2020] WASCA 167 -

[Nse v The State of Western Australia](#) [2020] WASCA 167 -

[Le v The Queen](#) [2020] NSWCCA 238 -

[R v Tink](#) [2020] QCA 193 -

[R v Tink](#) [2020] QCA 193 -

[George v The State of Western Australia](#) [2020] WASCA 139 -

[George v The State of Western Australia](#) [2020] WASCA 139 -

[R v MDH](#) [2020] QCA 175 -

[R v MDH](#) [2020] QCA 175 -

[SB v R](#) [2020] NSWCCA 207 (19 August 2020) (Hoeben CJ, Cl, Rothman and Hamill JJ)

168. The plurality expressed the view, as to a judge making any comments on the facts, in the following terms:

“It is well settled that a trial judge’s discretion to comment on the facts should be exercised with circumspection. The need for circumspection is not merely a matter of prudence or politeness. Recently, in *Castle v The Queen*, Kiefel, Bell, Keane and Nettle JJ, with whom Gageler J relevantly agreed, said, referring to the passages from *RPS* with which these reasons commenced:

‘[U]nless there is a need for comment – as, for example, in dealing with an extravagant submission by counsel – the wise course will often be not to do so. Where the judge chooses to comment, the following statement of Brennan J in *B v The Queen* is to be kept in mind:

“[The comment] must exhibit a judicial balance so that the jury is not deprived ‘of an adequate opportunity of

understanding and giving effect to the defence and the matters relied upon in support of the defence.”⁶⁴
(footnotes omitted)

In *RPS* and *Castle*, the discretion of the trial judge to comment on the facts was located squarely within the duty of a trial judge to assist the jury with a fair and accurate statement of the case presented by each party. That being so, little would be gained by a review of the practice of trial judges in earlier times, when the trial judge occupied a more dominant position in the conduct of criminal trials. The point made in the observations of the plurality in each of *RPS* and *Castle* is that there is a risk that comments that are unnecessary for the performance of the duty to give fair and accurate instructions to the jury may occasion a miscarriage of justice, and so a trial judge should be astute to avoid that risk by refraining from comment that is not so required. These points are most compelling in relation to expressions of opinion by a trial judge as to the determination of disputed issues of fact.”

SB v R [2020] NSWCCA 207 (19 August 2020) (Hoeben CJ, Cl, Rothman and Hamill JJ)

164. Before the foregoing extract, the plurality in *RPS* dealt with the appropriate recognition of the difficult task facing trial Judges and the requirements in a Summing-up. They said:

“Before parting with the case, it is as well to say something more general about the difficult task trial judges have in giving juries proper instructions. The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues. It will require the judge to put fairly before the jury the case which the accused makes. In some cases it will require the judge to warn the jury about how they should not reason or about particular care that must be shown before accepting certain kinds of evidence.” (Footnotes omitted.) [54]

SB v R [2020] NSWCCA 207 -

SB v R [2020] NSWCCA 207 -

SB v R [2020] NSWCCA 207 -

SB v R [2020] NSWCCA 207 -

SB v R [2020] NSWCCA 207 -

SB v R [2020] NSWCCA 207 -

Flash v The Queen [2020] NTCCA 5 -

Flash v The Queen [2020] NTCCA 5 -

Ban v The State of Western Australia [2020] WASCA 91 -

Ban v The State of Western Australia [2020] WASCA 91 -

Uddin v The Queen [2020] NSWCCA 115 -

Uddin v The Queen [2020] NSWCCA 115 -

Pyliotis v The Queen [2020] VSCA 134 (27 May 2020) (Priest, Niall and T Forrest JJA)

64. In their joint judgment in *McKell*, Bell, Keane, Gordon and Edelman JJ, having set out a passage from *RPS*, [8] observed: [9]

A trial judge’s ‘broad discretion’ to comment on the facts of the case in a criminal trial is an aspect of the power by which a trial judge discharges the fundamental task of ensuring a fair trial of the accused. The discretion is to be exercised judicially as part of ensuring that the facts of the case are put ‘accurately and fairly’ to the jury. It is not exercisable, at large, independently of the fundamental task described above. A fortiori, the trial judges summing-up is not an occasion to address the jury in terms apt to add to the force of the

case for the prosecution or the accused so as to sway the jury to either view. For that reason, as the plurality in *RPS* stated, judicial circumspection is required in the exercise of the discretion to comment.

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via

[8] *RPS v The Queen* (2000) 199 CLR 620, 637 [42] (Gaudron ACJ, Gummow, Kirby and Hayne JJ).

Weber v R [2020] NSWCCA 103 -
Tbu v The Queen [2020] WASCA 76 -
Tbu v The Queen [2020] WASCA 76 -
R v Oliver [2020] QCA 76 -
R v Dimitropoulos [2020] QCA 75 -
Attwood v The State of Western Australia [2020] WASCA 51 -
Strbak v The Queen [2020] HCA 10 -
Strbak v The Queen [2020] HCA 10 -
Strbak v The Queen [2020] HCA 10 -
Strbak v The Queen [2020] HCA 10 -
JPM v The Queen [2019] NSWCCA 301 -
De Silva v The Queen [2019] HCA 48 -
R v Newlove [2019] QCA 291 -

45. The fundamental task of a trial judge is to ensure a fair trial of the accused. [74]. That requires the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. [75]. It also requires the judge to ensure that the respective cases for the prosecution and the accused are accurately and fairly put to the jury. [76]. While not obliged to do so, the judge may also make any observations about the evidence that the judge thinks necessary in the interests of justice. [77]. If the trial judge's comments on the facts are apt to create a danger or a substantial risk that the jury might actually be persuaded of the accused's guilt by comments in favour of the prosecution case made with the authority of the judge, there will be a miscarriage of justice. [78]. The appellant submitted that the judge's comments on the facts created such a danger in this case. That is not so. As explained below, in the passages about which the appellant complains, the judge was outlining the State case or explaining the relevant law, not advocating adoption of the State case or conveying his views as to disputed issues of fact,

via

[77] *Criminal Procedure Act 2004 (WA)*, s 112; *RPS* [42].

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via

[74] *RPS v The Queen* [2000] HCA 3; (2000) 199 CLR 620 [41].

Galipo v The State of Western Australia [2019] WASCA 188 -

Galipo v The State of Western Australia [2019] WASCA 188 -

Meneses v Directed Electronics OE Pty Ltd [2019] FCAFC 190 -

R v Aprile [2019] QCA 226 -

R v Lewis [2019] QCA 192 -

R v Lewis [2019] QCA 192 -

Gambaro v Mobycom Mobile Pty Ltd [2019] FCAFC 144 -

La Bianca v The State of Western Australia [2019] WASCA 105 (31 July 2019) (Buss P Mazza JA Mitchell JA)

A judge is bound to give an instruction or a warning to the jury if, in the circumstances of the particular case, the instruction or the warning is necessary to avoid a perceptible risk of a

miscarriage of justice. See *Carr v The Queen* ;^[16] *Longman v The Queen* ;^[17] *Tully v The Queen* .^[18] This is an incident of the judge's duty to ensure the fair trial of the accused. See *RPS v The Queen* .^[19]

La Bianca v The State of Western Australia [2019] WASCA 105 -
La Bianca v The State of Western Australia [2019] WASCA 105 -
Jorgensen v Fair Work Ombudsman [2019] FCAFC 113 -
R v WILTON [2019] SASCFC 65 (13 June 2019) (Kelly and Parker JJ; David AJ)

39. The respondent also points out that the Judge had reminded the jury of the argument that the comment "I fucked up" might be inconsistent with his statement to police that he had been invited by the complainant to her house. By implication, that limited the potential relevance of the appellant's comment to the question of him being invited to the house or being a trespasser. In support of that contention the respondent refers to the observations made by Gaudron ACJ, Gummow, Kirby and Hayne JJ in *RPS v The Queen* .^[12] Their Honour's had observed that it is often the safer course for a judge to make no comment on the facts beyond reminding the jury of the arguments of counsel when identifying the issues for the jury.

via

^[12] (2000) 199 CLR 620 at 637-638 ^{[41]-[43]} (Gaudron ACJ, Gummow, Kirby and Hayne JJ) .

R v WILTON [2019] SASCFC 65 -
R v WILTON [2019] SASCFC 65 -
R v WILTON [2019] SASCFC 65 -
R v WILTON [2019] SASCFC 65 -
R v WILTON [2019] SASCFC 65 -
R v Butterworth [2019] QCA 94 -
Simon Mareangareu v The Queen [2019] VSCA 101 -
Simon Mareangareu v The Queen [2019] VSCA 101 -
Simon Mareangareu v The Queen [2019] VSCA 101 -
Johnstone v The State of Western Australia [2019] WASCA 67 -
Johnstone v The State of Western Australia [2019] WASCA 67 -
Tabbaa v Nine Network Australia Pty Ltd [2019] NSWCA 69 -
Davies v The Queen [2019] VSCA 66 -
Southern v The State of Western Australia [2018] WASCA 234 (18 February 2019) (Buss P; Mazza and Beech JJA)

23. A judge is bound to give a direction to the jury if, in the circumstances of the particular case, the direction is necessary to avoid a perceptible risk of a miscarriage of justice. See *Carr v The Queen* ;^[6] *Longman v The Queen* ;^[7] *Tully v The Queen* .^[8] This is an incident of the judge's duty to ensure a fair trial for the accused. See *RPS v The Queen* .^[9]

Southern v The State of Western Australia [2018] WASCA 234 -
Southern v The State of Western Australia [2018] WASCA 234 -
McKell v The Queen [2019] HCA 5 (13 February 2019) (Bell, Gageler, Keane, Gordon and Edelman JJ)

47. It is well settled that a trial judge's discretion to comment on the facts should be exercised with circumspection. The need for circumspection is not merely a matter of prudence or politeness ^[36] . Recently, in *Castle v The Queen* ^[37] , Kiefel, Bell, Keane and Nettle JJ, with whom Gageler J relevantly agreed ^[38] , said, referring to the passages from *RPS* with which these reasons commenced:

"[U]nless there is a need for comment – as, for example, in dealing with an extravagant submission by counsel – the wise course will often be not to do so. Where the judge chooses to comment, the following statement of Brennan J in *B v The Queen* is to be kept in mind:

'[The comment] must exhibit a judicial balance so that the jury is not deprived "of an adequate opportunity of understanding and giving effect to the defence and the matters relied upon in support of the defence."' (footnotes omitted)

[McKell v The Queen](#) [2019] HCA 5 -
[McKell v The Queen](#) [2019] HCA 5 -
[McKell v The Queen](#) [2019] HCA 5 -
[McKell v The Queen](#) [2019] HCA 5 -
[McKell v The Queen](#) [2019] HCA 5 -
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[McKell v The Queen](#) [2019] HCA 5 -
[McKell v The Queen](#) [2019] HCA 5 -
[R v McEwan](#) [2019] QCA 16 -
[R v McEwan](#) [2019] QCA 16 -
[R v McEwan](#) [2019] QCA 16 -
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[R v McEwan](#) [2019] QCA 16 -
[MCA v The State of Western Australia](#) [2019] WASCA 22 -
[MCA v The State of Western Australia](#) [2019] WASCA 22 -
[Mihelic v R](#) [2019] NSWCCA 2 -
[Mulholland v The Queen](#) [2018] NSWCCA 299 -
[Ruthsalz v The State of Western Australia](#) [2018] WASCA 178 (12 October 2018) (Buss P, Mazza JA, Beech JA)

RPS v The Queen [2000] HCA 3 ; (2000) 199 CLR 620 .

[Ruthsalz v The State of Western Australia](#) [2018] WASCA 178 (12 October 2018) (Buss P, Mazza JA, Beech JA)

135. In *RPS v The Queen* , [9] Gaudron ACJ, Gummow, Kirby and Hayne JJ noted that the fundamental task of a judge in a criminal trial is to ensure a fair trial of the accused [41]. Their Honours then elaborated:

That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case (*Alford v Magee* (1952) 85 CLR 437 at 466, per Dixon, Williams, Webb, Fullagar and Kitto JJ). No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues (*Alford v Magee* (1952) 85 CLR 437 at 466, per Dixon, Williams, Webb, Fullagar and Kitto JJ). *It will require the judge to put fairly before the jury the case which the accused makes* [41]. (emphasis added).

[Ruthsalz v The State of Western Australia](#) [2018] WASCA 178 -
[Ruthsalz v The State of Western Australia](#) [2018] WASCA 178 -
[Michael Gullquist v Victorian Legal Services Commissioner](#) [2018] VSCA 259 -
[Kimberley v The State of Western Australia](#) [2018] WASCA 172 -
[Kimberley v The State of Western Australia](#) [2018] WASCA 172 -
[Kimberley v The State of Western Australia](#) [2018] WASCA 172 -

[R v Bevinetto](#) [2018] QCA 219 -
[R v Bevinetto](#) [2018] QCA 219 -
[A2 v R; Magennis v R; Vaziri v R](#) [2018] NSWCCA 174 -
[Madul v the Queen](#) [2018] VSCA 142 -
[Arico v The Queen](#) [2018] VSCA 135 -
[Huda & Huda and Laham](#) [2018] FamCAFC 85 (10 May 2018) (Thackray, Murphy and Kent JJ)

27. The expression “miscarriage of justice” used in the quoted passages extends beyond a description of the result. The miscarriage of justice referred to is a failure in the process leading to the result; “whether the excessive judicial questioning or perjorative [sic] comments have created a real danger that the trial was unfair”. [18] Further, “maintain[ing] the appearance of impartiality, by maintaining an appropriate degree of detachment, are essential aspects of [the primary judge’s] function as the officer presiding in the court”. Judicial intervention beyond that which is acceptable “may properly be characterised as a potential breach of procedural fairness, rather than a form of pre-judgment”. [19].

via

[19] [Royal Guardian](#) at, respectively, [18] and [20] (Basten JA) the latter paragraph citing [RPS v The Queen](#) (2000) 199 CLR 620 .

[Huda & Huda and Laham](#) [2018] FamCAFC 85 -
[Huda & Huda and Laham](#) [2018] FamCAFC 85 -
[Huda & Huda and Laham](#) [2018] FamCAFC 85 -
[Huggins v The State of Western Australia](#) [2018] WASCA 61 -
[Huggins v The State of Western Australia](#) [2018] WASCA 61 -
[MLS v The State of Western Australia](#) [2018] WASCA 56 (27 April 2018) (Buss P, Mazza JA, Pritchard J)

RPS v The Queen [2000] HCA 3 ; (2000) 199 CLR 620 .

[MLS v The State of Western Australia](#) [2018] WASCA 56 -
[MLS v The State of Western Australia](#) [2018] WASCA 56 -
[OKS v The State of Western Australia](#) [2018] WASCA 48 (11 April 2018) (Buss P, Beech JA, Pritchard J)

87. The appellate court's task must be undertaken on the whole of the trial record, including the fact that the jury returned a verdict of guilty: see [Weiss](#) [43] . Their Honours also said:

The court is not 'to speculate upon probable reconviction and decide according to how the speculation comes out' ([Kotteakos v United States](#) (1946) 328 US 750 at 763). But there are cases in which it would be possible to conclude that the error made at trial would, or at least should, have had no significance in determining the verdict that was returned by the trial jury. The fact that the jury did return a guilty verdict cannot be discarded from the appellate court's assessment of the whole record of trial. Secondly, it is necessary always to keep two matters at the forefront of consideration: the accusatorial character of criminal trials such as the present ([RPS v The Queen](#) (2000) 199 CLR 620 at 630 [22] per Gaudron ACJ, Gummow, Kirby and Hayne JJ) and that the standard of proof is beyond reasonable doubt [43].

[OKS v The State of Western Australia](#) [2018] WASCA 48 (11 April 2018) (Buss P, Beech JA, Pritchard J)

110. The High Court made observations in [RPS v The Queen](#) [26] and [Azzopardi v The Queen](#) [27] about the respective functions of judge and jury in a criminal trial.

[OKS v The State of Western Australia](#) [2018] WASCA 48 -
[OKS v The State of Western Australia](#) [2018] WASCA 48 -
[OKS v The State of Western Australia](#) [2018] WASCA 48 -
[KMT v The State of Western Australia \[No 2\]](#) [2018] WASCA 49 -
[KMT v The State of Western Australia \[No 2\]](#) [2018] WASCA 49 -

[KMT v The State of Western Australia \[No 2\]](#) [2018] WASCA 49 -
[Kalbasi v Western Australia](#) [2018] HCA 7 -
[Kalbasi v Western Australia](#) [2018] HCA 7 -
[Kalbasi v Western Australia](#) [2018] HCA 7 -
[McPadden v The Queen](#) [2018] VSCA 57 -
[George Packard \(a pseudonym\)\[1\] v The Queen](#) [2018] VSCA 45 -
[George Packard \(a pseudonym\)\[1\] v The Queen](#) [2018] VSCA 45 -
[Odisho v R](#) [2018] NSWCCA 19 -
[Odisho v R](#) [2018] NSWCCA 19 -
[Hunter Quarries Ltd v Morrison](#) [2017] NSWCCA 326 -
[Dixon v The Queen](#) [2017] NSWCCA 299 -
[Dixon v The Queen](#) [2017] NSWCCA 299 -
[Fernandez v The State of Western Australia](#) [2017] WASCA 223 -
[Fernandez v The State of Western Australia](#) [2017] WASCA 223 -
[Williams v The State of Western Australia](#) [2017] WASCA 206 -
[Williams v The State of Western Australia](#) [2017] WASCA 206 -
[Marchesano v The State of Western Australia](#) [2017] WASCA 177 -
[Marchesano v The State of Western Australia](#) [2017] WASCA 177 -
[Wharton v The Queen \[No 2\]](#) [2017] WASCA 164 -
[Wharton v The Queen \[No 2\]](#) [2017] WASCA 164 -
[R v Hyde](#) [2017] QCA 148 (30 June 2017) (Sofronoff P and McMurdo JA and Douglas J,)

59. In any case, in my view, the sentence upon which this ground of appeal is based contained a comment and not a direction or an instruction. The distinction between a direction and a comment is important. In [RPS v The Queen](#) [14], Gaudron A-CJ, Gummow, Kirby and Hayne JJ said:

“41. Before parting with the case, it is as well to say something more general about the difficult task trial judges have in giving juries proper instructions. The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues. It will require the judge to put fairly before the jury the case which the accused makes. In some cases it will require the judge to warn the jury about how they should not reason or about particular care that must be shown before accepting certain kinds of evidence.

42. But none of this must be permitted to obscure the division of functions between judge and jury. It is for the jury, and the jury alone, to decide the facts. As we have said, in some cases a judge must give the jury warnings about how they go about that task. And, of course, it has long been held that a trial judge may comment (and comment strongly) on factual issues. But although a trial judge may comment on the facts, the judge is not bound to do so except to the extent that the judge's other functions require it. Often, perhaps much more often than not, the safer course for a trial judge will be to make no comment on the facts beyond reminding the jury, in the course of identifying the issues before them, of the arguments of counsel.” (Footnotes omitted)

via

[14] (2000) 199 CLR 620 .

[R v Hyde](#) [2017] QCA 148 -

[R v Hyde](#) [2017] QCA 148 -

[R v Hyde](#) [2017] QCA 148 -

[R v Hyde](#) [2017] QCA 148 -

[Smith v The Queen](#) [2017] HCA 19 (10 May 2017) (Kiefel CJ, Bell, Gageler, Keane, Nettle, Gordon and Edelman JJ)

56. Lastly, counsel for Smith invoked observations of Lord Steyn, with whom the other members of the House of Lords agreed, in [R v Woollin](#) [41] that it is seldom beneficial to invite a jury when determining whether an accused intended to commit murder to ask whether the accused appreciated that death or serious injury was likely to result from his conduct, or to direct the jury that if the accused recognised that death or serious harm was virtually certain to result from his voluntary act, the jury may find it easy to infer that the accused intended to inflict death or serious harm. Counsel also invoked the wider proposition advanced by Gaudron ACJ, Gummow, Kirby and Hayne JJ in [RPS v The Queen](#) [42] that to attempt to instruct a jury about how they may reason towards a verdict of guilt may lead to difficulties.

[Smith v The Queen](#) [2017] HCA 19 -

[Smith v The Queen](#) [2017] HCA 19 -

[Smith v The Queen](#) [2017] HCA 19 -

[RMD v The State of Western Australia](#) [2017] WASCA 70 -

[RMD v The State of Western Australia](#) [2017] WASCA 70 -

[Hawke v The State of Western Australia](#) [2017] WASCA 40 -

[Hawke v The State of Western Australia](#) [2017] WASCA 40 -

[Ryan v Vizovitis](#) [2017] ACTCA 3 -

[Ryan v Vizovitis](#) [2017] ACTCA 3 -

[R v KAP](#) [2016] QCA 349 (23 December 2016) (Morrison and Philip McMurdo JJA and Mullins J.)

46. [RPS v The Queen](#) [34] discussed the required extent of judicial instructions in criminal trials:

“Before parting with the case, it is as well to say something more general about the difficult task trial judges have in giving juries proper instructions. The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues. It will require the judge to put fairly before the jury the case which the accused makes. In some cases it will require the judge to warn the jury about how they should *not* reason or about particular care that must be shown before accepting certain kinds of evidence.”^[35]

via

[34] (2000) 199 CLR 620 at [41] per Gaudron A -CJ, Gummow, Kirby and Hayne JJ.

[R v KAP](#) [2016] QCA 349 -

[R v KAP](#) [2016] QCA 349 -

[Castle v The Queen](#) [2016] HCA 46 -

[Castle v The Queen](#) [2016] HCA 46 -

[Castle v The Queen](#) [2016] HCA 46 -

[Castle v The Queen](#) [2016] HCA 46 -
[R v JSM](#) [2016] SASCFC 120 -
[R v JSM](#) [2016] SASCFC 120 -
[Wilson v The Queen](#) [2016] ACTCA 56 -
[R v Baden-Clay](#) [2016] HCA 35 -
[R v Baden-Clay](#) [2016] HCA 35 -
[R v Baden-Clay](#) [2016] HCA 35 -
[Crossman v Sheahan](#) [2016] NSWCA 200 -
[Graham v The Queen](#) [2016] HCA 27 -
[Chidiac v The Queen \(No 2\)](#) [2016] NSWCCA 120 -
[Mark Van Der Zant v The Queen](#) [2016] VSCA 138 (15 June 2016) (Priest, Kyrou and McLeish JJA)

39. The fundamental task of the judge in a criminal trial is to ensure a fair trial of the accused. [11]
 In so doing, the judge is required to instruct the jury about so much of the law as they need to know to dispose of the issues in the case. [12] Moreover, any comment on the facts that the judge chooses to make must be balanced, and designed to assist the jury in deciding the issues. As was observed in *RPS*: [13].

... The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. ... In some cases it will require the judge to warn the jury about how they should not reason ...

But none of this must be permitted to obscure the division of functions between judge and jury. It is for the jury, and the jury alone, to decide the facts. As we have said, in some cases a judge must give the jury warnings about how they go about that task. And, of course, it has long been held that a trial judge may comment (and comment strongly) on factual issues. But although a trial judge may comment on the facts, the judge is not bound to do so except to the extent that the judge's other functions require it. Often, perhaps much more often than not, the safer course for a trial judge will be to make no comment on the facts beyond reminding the jury, in the course of identifying the issues before them, of the arguments of counsel.

via

[11] *RPS v The Queen* (2000) 199 CLR 620, 637 [41] (Gaudron ACJ, Gummow, Kirby and Hayne JJ) ('*RPS*'). Although it is customary to speak of a 'fair trial', in *Jago v District Court (NSW)* (1989) 168 CLR 23, 57–8, Deane J suggested that: 'What is involved is more accurately expressed in negative terms as a right not to be tried unfairly or as an immunity against conviction otherwise than after a fair trial'.

[Mark Van Der Zant v The Queen](#) [2016] VSCA 138 -
[Mark Van Der Zant v The Queen](#) [2016] VSCA 138 -
[Royal Guardian Mortgage Management Pty Ltd v Nguyen](#) [2016] NSWCA 88 (29 April 2016) (Basten and Ward JJA, Emmett AJA)

20. It is this aspect of the problem which may properly be characterised as a potential breach of procedural fairness, rather than a form of pre-judgment. That distinction was articulated by the High Court in *RPS v The Queen*. [14] In joint reasons, Gaudron ACJ, Gummow, Kirby and Hayne JJ stated: [15].

"The appellant's contention was cast in terms of apparent bias but it was not clear exactly what was meant by this. In particular, it was not clear whether it was being

suggested that a fair-minded observer would have concluded that the judge had predetermined some issue. And, if that was what was being suggested, it was far from clear what issue or issues that would fall for decision by the judge (as opposed to the jury) would have appeared to have been prejudged. When pressed on this aspect of the matter, counsel for the appellant suggested that the trial judge had been antagonistic to counsel who had appeared for the appellant and that the conduct of the trial generally tended to undermine the defence case and bolster that of the Crown. But these are not complaints of bias or the appearance of bias; they amount to a complaint that the conduct of the trial was unfair. That is a radically different complaint and it is wrong to seek to apply tests developed in connection with questions of apparent bias in deciding whether the trial was fair. That question will turn largely on whether the accused has had a proper opportunity to advance his or her defence to the charge.”

[Royal Guardian Mortgage Management Pty Ltd v Nguyen](#) [2016] NSWCA 88 -
[Aman Ramlagun v The Queen](#) [2016] VSCA 68 (14 April 2016) (Weinberg, Whelan and Coghlan JJA)

86. His Honour continued:

As to the judge’s comment on the factual issue, it is true that a trial judge must take great care, when commenting on aspects of defence counsel’s final address on factual issues, to ensure that there is no sensible risk that the jury will give those comments some special weight, or that they do not otherwise work an unfairness to the accused. For example, it was said in *RPS v. R*:

Often, perhaps much more often than not, the safer course for a trial judge will be to make no comment on the facts beyond reminding the jury, in the course of identifying the issues before them, of the argument of counsel.

Their Honours further observed that to attempt to instruct the jury about how they might reason towards a verdict of guilty (as distinct from warning them about impermissible forms of reasoning) leads only to difficulties of the kind that arose in that case. Nevertheless, it has long been held (and was repeated in *RPS* and *Azzopardi*) that a trial judge may comment (and comment strongly) on factual issues.

In my view, neither her Honour’s direction nor her comments sought impermissibly to deal with how the jury might reason towards a verdict of guilty. What her Honour told the jury was balanced and fairly put. I see no basis for contending that her Honour’s direction relevantly undermined the applicant’s case and if the judge’s comments had that effect, that would have only been because the jury chose to accept them and not because her Honour made an impermissible observation in relation to the defence case. [\[38\]](#).

[Aman Ramlagun v The Queen](#) [2016] VSCA 68 -

[Aman Ramlagun v The Queen](#) [2016] VSCA 68 -

[Aman Ramlagun v The Queen](#) [2016] VSCA 68 -

[Aman Ramlagun v The Queen](#) [2016] VSCA 68 -

[Aman Ramlagun v The Queen](#) [2016] VSCA 68 -

[R v Kam](#) [2016] QCA 35 -

[R v Kam](#) [2016] QCA 35 -

[R v Duncan](#) [2015] SASCFC 191 (14 December 2015) (Sulan, Peek and Stanley JJ)

67. As the High Court observed in *RPS v The Queen* [\[28\]](#), the fundamental task of a trial judge is to ensure a fair trial of the accused. It will require the judge to identify the issues in the case and to instruct the jury about so much of the law as they need to know in order to dispose of the issues in a case and relate the law to those issues. It will require the judge to put fairly

before the jury the case which the accused makes. More recently, the High Court in *R v Getachew* [29] said the judge in a criminal trial must accept the responsibility of deciding what are the real issues in a case, must tell the jury what those issues are, and must instruct the jury on so much of the law as the jury need to know to decide those issues.

R v Duncan [2015] SASCFC 191 -

R v Duncan [2015] SASCFC 191 -

R v Parsons; R v Brady [2015] SASCFC 183 -

R v Parsons; R v Brady [2015] SASCFC 183 -

Commonwealth v Director, Fair Work Building Industry Inspectorate [2015] HCA 46 -

Commonwealth v Director, Fair Work Building Industry Inspectorate [2015] HCA 46 -

Lowe v The Queen [2015] VSCA 327 -

Lowe v The Queen [2015] VSCA 327 -

Lowe v The Queen [2015] VSCA 327 -

R v Auchterlonie [2015] QCA 243 -

R v Auchterlonie [2015] QCA 243 -

R v Auchterlonie [2015] QCA 243 -

Martin Hermanus (a pseudonym) [I] v The Queen [2015] VSCA 304 -

Martin Hermanus (a pseudonym) [I] v The Queen [2015] VSCA 304 -

Martin Hermanus (a pseudonym) [I] v The Queen [2015] VSCA 304 -

Martin Hermanus (a pseudonym) [I] v The Queen [2015] VSCA 304 -

R v Chardon [2015] QCA 186 -

R v Chardon [2015] QCA 186 -

Meade v The Queen [2015] VSCA 171 (26 June 2015) (Maxwell P, Redlich and Whelan JJA)

110. *Weissensteiner* permits a jury (and an appeal court) to have regard, subject to the limitations explained in *RPS* and *Azzopardi*, to the failure of an accused to give evidence in a circumstantial case where there are facts known to the accused alone which are seen to require explanation. The reasoning in *Weissensteiner*, *RPS* and *Azzopardi* has been considered by this Court on a number of occasions when considering the unsafe and unsatisfactory ground. [20]

Meade v The Queen [2015] VSCA 171 -

Meade v The Queen [2015] VSCA 171 -

Dunn v The Queen [2015] WASCA 126 -

Dunn v The Queen [2015] WASCA 126 -

Piccolotto v The Queen [2015] VSCA 143 (11 June 2015) (Redlich, Santamaria and Beach JJA)

35. The strong criticism the trial judge advanced led counsel to conclude that the trial judge had taken a set against him. Defence counsel made an application that the trial judge disqualify himself on the ground of bias against him. But counsel did not submit that the judge had predetermined some issue. The judge's conduct could not support a claim of bias or the appearance of bias; it could only amount to a complaint that the conduct of the trial was unfair. That would depend upon whether the applicant had a proper opportunity to advance his defence. [7]

via

[7] *RPS v The Queen* (2000) 199 CLR 620 ('RPS').

Piccolotto v The Queen [2015] VSCA 143 -

Chong v CC Containers Pty Ltd [2015] VSCA 137 (09 June 2015) (Redlich, Santamaria and Kyrou JJA)

227. In *ASIC v Fortescue Metals Group Ltd [No 5]*, [192] Gilmour J stated that nothing had been said by the High Court in *RPS v The Queen*, [193] *Azzopardi* [194] or *Dyer v The Queen* [195] that would extend the general proscription in criminal trials against engaging in inferential *Jones*

v Dunkel reasoning to civil penalty proceedings. [196]. Gilmour J concluded that despite a claim of privilege against self-incrimination, he would not have been precluded from drawing a *Jones v Dunkel* inference against the witness who had failed to give evidence.

via

[193] (2000) 199 CLR 620 .

Chong v CC Containers Pty Ltd [2015] VSCA 137 (09 June 2015) (Redlich, Santamaria and Kyrou JJA)

209. In *RPS v The Queen* , [145] Gaudron ACJ, Gummow, Kirby and Hayne JJ quoted the passage from the judgment of Menzies J in *Jones v Dunkel* in which he said:

[W]here an inference is open from facts proved by direct evidence and the question is whether it should be drawn, the circumstance that the defendant disputing it might have proved the contrary had he chosen to give evidence is properly to be taken into account as a circumstance in favour of drawing the inference. [146]

Chong v CC Containers Pty Ltd [2015] VSCA 137 -

Chong v CC Containers Pty Ltd [2015] VSCA 137 -

Chong v CC Containers Pty Ltd [2015] VSCA 137 -

Chong v CC Containers Pty Ltd [2015] VSCA 137 -

Chong v CC Containers Pty Ltd [2015] VSCA 137 -

R v Cowan; R v Cowan; Ex parte [2015] QCA 87 -

R v Cowan; R v Cowan; Ex parte [2015] QCA 87 -

R v Cowan; R v Cowan; Ex parte [2015] QCA 87 -

R v Cowan; R v Cowan; Ex parte [2015] QCA 87 -

Murrell v The Queen [2014] VSCA 334 -

Klink v the Queen [2014] VSCA 325 (12 December 2014) (Neave, Redlich and Whelan JJA)

CRIMINAL LAW – Conviction – Unsafe and unsatisfactory – Sufficiency of evidence – Innocent hypothesis of mistaken identity – Whether evidence led called for explanation from appellant – *Weissensteiner v The Queen* (1993) 178 CLR 217, *RPS v The Queen* (2001) 199 CLR 620 , *Azzopardi v The Queen* (2001) 205 CLR 50 considered but not applied – No evidentiary foundation supporting innocent hypothesis there was another person of same name as appellant who committed the crime – Appellant’s name and address linked him to crime – Open to jury to be satisfied of guilt beyond reasonable doubt – *Farquharson v The Queen* (2012) 36 VR 538 applied – Appeal dismissed.

Klink v the Queen [2014] VSCA 325 -

Klink v the Queen [2014] VSCA 325 -

Klink v the Queen [2014] VSCA 325 -

Klink v the Queen [2014] VSCA 325 -

Klink v the Queen [2014] VSCA 325 -

Klink v the Queen [2014] VSCA 325 -

Klink v the Queen [2014] VSCA 325 -

Klink v the Queen [2014] VSCA 325 -

Construction, Forestry, Mining and Energy Union v Grocon Constructors (Victoria) Pty Ltd [2014] VSCA 261 -

Construction, Forestry, Mining and Energy Union v Grocon Constructors (Victoria) Pty Ltd [2014] VSCA 261 -

O’Rafferty v The Queen [2014] ACTCA 35 -

R v Baldwin [2014] QCA 186 -

R v Baldwin [2014] QCA 186 -

R v Baldwin [2014] QCA 186 -

[JJS v The State of Western Australia](#) [2014] WASCA 136 -
[JJS v The State of Western Australia](#) [2014] WASCA 136 -
[Power v The Queen](#) [2014] VSCA 146 -
[R v Douglas](#) [2014] QCA 104 -
[R v Douglas](#) [2014] QCA 104 -
[R v Tamatea](#) [2013] QCA 399 (20 December 2013) (Morrison JA, Margaret Wilson and North JJ)
(2000) 199 CLR 620; [\[2000\] HCA 3](#), applied

[R v Tamatea](#) [2013] QCA 399 -
[R v Tamatea](#) [2013] QCA 399 -
[R v Tamatea](#) [2013] QCA 399 -
[R v Tamatea](#) [2013] QCA 399 -
[R v C, CA](#) [2013] SASCFC 137 -
[R v C, CA](#) [2013] SASCFC 137 -
[TDP v R; R v TDP](#) [2013] NSWCCA 303 -
[Lee v New South Wales Crime Commission](#) [2013] HCA 39 -
[Lee v New South Wales Crime Commission](#) [2013] HCA 39 -
[Lee v New South Wales Crime Commission](#) [2013] HCA 39 -
[Schmidt v The State of Western Australia](#) [2013] WASCA 201 (30 August 2013) (Martin CJ, Buss JA, Mazza JA)

[RPS v The Queen](#) [\[2000\] HCA 3](#); (2000) 199 CLR 620

[Vu v New South Wales Crime Commission](#) [2013] NSWCA 282 -
[Schmidt v The State of Western Australia](#) [2013] WASCA 201 -
[Tjaj Tunja v The Queen](#) [2013] VSCA 174 -
[Tjaj Tunja v The Queen](#) [2013] VSCA 174 -
[X7 v Australian Crime Commission](#) [2013] HCA 29 (26 June 2013) (French CJ, Hayne, Crennan, Kiefel and Bell JJ)

42. The second, upon which the plaintiff's submissions critically depended, was the specific immunity of an accused person at trial from being compelled to give evidence or to answer questions, which reflects not only the privilege against self-incrimination, but also the broader consideration that a criminal trial is "an accusatorial process in which the prosecution bears the onus of proving the guilt of the accused beyond reasonable doubt" [\[82\]](#).

via

[\[82\]](#) [RPS v The Queen](#) (2000) 199 CLR 620 at 630 [\[22\]](#) per Gaudron ACJ, Gummow, Kirby and Hayne JJ; [\[2000\] HCA 3](#); [Azzopardi v The Queen](#) (2001) 205 CLR 50 at 64 [\[34\]](#), 65 [\[38\]](#), 74 [\[64\]](#) per Gaudron, Gummow, Kirby and Hayne JJ.

[X7 v Australian Crime Commission](#) [2013] HCA 29 -
[X7 v Australian Crime Commission](#) [2013] HCA 29 -
[X7 v Australian Crime Commission](#) [2013] HCA 29 -
[X7 v Australian Crime Commission](#) [2013] HCA 29 -
[R v Jassar](#) [2013] QCA 115 -
[R v Jassar](#) [2013] QCA 115 -
[R v Jassar](#) [2013] QCA 115 -
[Cooper v Hobbs](#) [2013] NSWCA 70 -
[Huynh v The Queen](#) [2013] HCA 6 (13 March 2013) (French CJ, Crennan, Kiefel, Bell and Gageler JJ)

31. The contention that it is an error of law for a trial judge to omit to instruct a jury on all of the elements of liability for an offence cannot stand with the many decisions of this Court affirming the statement of the responsibility of the trial judge in [Alford v Magee](#) [\[14\]](#). The duty is to decide what the real issues in the case are and to direct the jury on only so much of

the law as they need to know to guide them to a decision on those issues. The application of the principle was illustrated in *Alford v Magee* by reference to the trial of an accused for larceny at which the sole issue is proof of the taking away of the thing stolen. In such a case it is neither necessary nor desirable to instruct the jury on the elements of the offence of larceny. Commonly liability does not reduce to a single factual question at the trial and the trial judge's responsibility will not be as readily discharged as in the celebrated illustration of Sir Leo Cussen's "great guiding rule" [15]. Discharge of that responsibility will usually involve instruction respecting the elements of the offence [16] and, where appropriate, the principles governing accessorial or joint enterprise liability. This is not to say that the omission to specify an element of liability that is not in issue in the trial is legal error.

via

[16] *RPS v The Queen* (2000) 199 CLR 620 at 637 [41] per Gaudron ACJ, Gummow, Kirby and Hayne JJ; [2000] HCA 3.

Huynh v The Queen [2013] HCA 6 -
R v Seller; R v McCarthy [2013] NSWCCA 42 -
Macfie v The Queen [2012] VSCA 314 -
Macfie v The Queen [2012] VSCA 314 -
Baini v The Queen [2012] HCA 59 -
Ahmed v The Queen [2012] NSWCCA 260 -
Best v The Queen [2012] VSCA 277 (21 November 2012) (Maxwell P, Tate and Osborn JJA)

79. After making complaint to the trial judge that the resultant position was fundamentally unfair to his client, Mr Morrissey sought a *Jones v Dunkel* [14] direction from the trial judge concerning the Crown's failure to call the mother as a witness. The matter was debated at some length and before the judge ruled on the defence application the prosecutor agreed that such a direction should be given. The Crown consent provided a proper basis for the direction despite the fact:

- (a) that it was plain that the prosecution did not know what evidence the mother might give, such that there was in fact no basis for any adverse inference to be drawn;
- (b) the underlying question was not whether the jury might properly reach conclusions about issues of fact but, whether in the circumstances they should entertain a reasonable doubt about the guilt of the accused; [15] and
- (c) the intermediate steps which would otherwise be required before a *Jones v Dunkel* direction were given had not been completed. [16]

via

[15] *RPS v The Queen* (2000) 199 CLR 620, 623-33 [27]-[29] (Gaudron A-CJ, Gummow, Kirby and Hayne JJ); *Mahmood v Western Australia* (2008) 232 CLR 397, 406 [27] (Gleeson CJ, Gummow, Kirby and Kiefel JJ).

MA v The Queen [2012] VSCA 214 -
MA v The Queen [2012] VSCA 214 -
MA v The Queen [2012] VSCA 214 -
K R I v The Queen [2012] VSCA 186 -

[K R I v The Queen](#) [2012] VSCA 186 -
[Agapis v The State of Western Australia](#) [2012] WASCA 132 -
[Agapis v The State of Western Australia](#) [2012] WASCA 132 -
[Agapis v The State of Western Australia](#) [2012] WASCA 132 -
[Australian Securities and Investments Commission v Hellicar](#) [2012] HCA 17 -
[O'Grady v The Queen](#) [2012] NSWCCA 62 (13 April 2012) (Whealy JA, Hislop and Latham JJ)
[RPS v R](#) [2000] HCA 3 ; 199 CLR 620

[O'Grady v The Queen](#) [2012] NSWCCA 62 -
[Fazio v Fazio](#) [2012] WASCA 72 -
[Fazio v Fazio](#) [2012] WASCA 72 -
[R v Getachew](#) [2012] HCA 10 -
[Wood v The Queen](#) [2012] NSWCCA 21 -
[Wood v The Queen](#) [2012] NSWCCA 21 -
[Wood v The Queen](#) [2012] NSWCCA 21 -
[Frengos v The Queen](#) [2012] VSCA 18 -
[R v Lacey & Lacey](#) [2011] QCA 386 (23 December 2011) (Chief Justice, Fraser JA and McMurdo J,)

84. Counsel for the appellants identified the error alleged in ground 7 as being a failure to instruct the jury as to the separate routes to liability in relation to each appellant. The appellants argued that the shortcoming in the directions was that they did not sufficiently distinguish the different cases against each appellant with reference to the elements of the offences; for that reason, the directions did not meet the requirement that the jury be instructed about so much of the law as they needed to know in order to dispose of the issues in the case, including instructions about the elements of the offence, the burden and standard of proof, the respective functions of judge and jury, and instructions identifying the issues in the case and relating the law to those issues. [16].

via

[16] [RPS v The Queen](#) (2000) 199 CLR 620 at 637 [41] ; [Fingleton v The Queen](#) (2005) 227 CLR 166 at 197 [78] - 198 [80].

[R v Lacey & Lacey](#) [2011] QCA 386 -
[Butler v The Queen](#) [2011] VSCA 417 -
[Butler v The Queen](#) [2011] VSCA 417 -
[Butler v The Queen](#) [2011] VSCA 417 -
[Butler v The Queen](#) [2011] VSCA 417 -
[R v Handley](#) [2011] QCA 361 (13 December 2011) (Muir and White JJA and Margaret Wilson AJA,)

42. Counsel for the respondent referred to the following passage from the joint reasons in [RPS v The Queen](#) : [6].

“It is for the jury, and the jury alone, to decide the facts. As we have said, in some cases a judge must give the jury warnings about how they go about that task. And, of course, it has long been held that a trial judge may comment (and comment strongly) on factual issues. But although a trial judge *may* comment on the facts, the judge is not bound to do so except to the extent that the judge’s other functions require it. Often, perhaps much more often than not, the safer course for a trial judge will be to make no comment on the facts beyond reminding the jury, in the course of identifying the issues before them, of the arguments of counsel.”

via

[6] (2000) 199 CLR 620 at 637 [42].

R v Handley [2011] QCA 361 -

R v Handley [2011] QCA 361 -

RR v R [2011] NSWCCA 235 -

EPD v The State of Western Australia [2011] WASCA 264 (07 December 2011) (Martin CJ, Buss JA, Mazza J)

190 Where it is alleged that the trial was unfair, the question to be determined 'will turn largely on whether the accused has had a proper opportunity to advance his or her defence to the charge': *RPS v The*

(Page 43)

Queen [2000] HCA 3; (2000) 199 CLR 620 [11] (Gaudron ACJ, Gummow, Kirby & Hayne JJ).

EPD v The State of Western Australia [2011] WASCA 264 (07 December 2011) (Martin CJ, Buss JA, Mazza J)

RPS v The Queen [2000] HCA 3; (2000) 199 CLR 620
Scriva v The State of Western Australia

EPD v The State of Western Australia [2011] WASCA 264 -

R v Scott [2011] QCA 343 (29 November 2011) (White JA, Margaret Wilson AJA and Mullins J,)

41. In *RPS v The Queen* [40] the majority [41] said:

“Before parting with the case, it is as well to say something more general about the difficult task trial judges have in giving juries proper instructions. The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues. It will require the judge to put fairly before the jury the case which the accused makes. In some cases it will require the judge to warn the jury about how they should *not* reason or about particular care that must be shown before accepting certain kinds of evidence.” [42]

R v Scott [2011] QCA 343 -

R v Scott [2011] QCA 343 -

Huy Vinh Quach v The Queen [2011] VSCA 390 -

Russell v The State of Western Australia [2011] WASCA 246 -

Russell v The State of Western Australia [2011] WASCA 246 -

Hargraves v The Queen [2011] HCA 44 (26 October 2011) (French CJ, Gummow, Hayne, Heydon, Crennan, Kiefel and Bell JJ)

43. The cases demonstrate that a jury's attention can be deflected from its fundamental task in different ways. *RPS* concerned distraction of a jury from its task by the trial judge's commenting on the failure of an accused to give evidence. The plurality held [34] in *RPS* that in an accusatorial process in which the prosecution has the onus of proving the guilt of the

accused beyond reasonable doubt, it will seldom [35] be reasonable to expect that the accused will give evidence and that it therefore follows that it will seldom be right to draw any inference (of the kind dealt with in *Jones v Dunkel* [36]) from the accused's failure to do so. Thus a direction to the jury that it may have been reasonable to expect some denial or contradiction from the accused, if such a denial or contradiction were available, was held [37] to be contrary to fundamental features of a criminal trial: that the prosecution must prove its case beyond reasonable doubt. Those features of a criminal trial entail [38] that the accused is not bound to give evidence.

Hargraves v The Queen [2011] HCA 44 (26 October 2011) (French CJ, Gummow, Hayne, Heydon, Crennan, Kiefel and Bell JJ)

43. The cases demonstrate that a jury's attention can be deflected from its fundamental task in different ways. *RPS* concerned distraction of a jury from its task by the trial judge's commenting on the failure of an accused to give evidence. The plurality held [34] in *RPS* that in an accusatorial process in which the prosecution has the onus of proving the guilt of the accused beyond reasonable doubt, it will seldom [35] be reasonable to expect that the accused will give evidence and that it therefore follows that it will seldom be right to draw any inference (of the kind dealt with in *Jones v Dunkel* [36]) from the accused's failure to do so. Thus a direction to the jury that it may have been reasonable to expect some denial or contradiction from the accused, if such a denial or contradiction were available, was held [37] to be contrary to fundamental features of a criminal trial: that the prosecution must prove its case beyond reasonable doubt. Those features of a criminal trial entail [38] that the accused is not bound to give evidence.

via

[34] (2000) 199 CLR 620 at 630636 [22][39] .

Hargraves v The Queen [2011] HCA 44 -

Hargraves v The Queen [2011] HCA 44 -

Hargraves v The Queen [2011] HCA 44 -

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Hargraves v The Queen [2011] HCA 44 -

Hargraves v The Queen [2011] HCA 44 -

Hargraves v The Queen [2011] HCA 44 -

Braslin v Tasmania [2011] TASCCA 14 -

Papadimitriou v The Queen [2011] WASCA 140 -

R v LB [2011] NTCCA 4 -

R v LB [2011] NTCCA 4 -

Ta and Nguyen v The Queen [2011] NSWCCA 32 -

Saxby v The Queen [2011] TASCCA 1 -

R v Knight [2010] QCA 372 -

R v Knight [2010] QCA 372 -

Jiang v R [2010] NSWCCA 277 -

Werry v The Queen [2010] VSCA 314 -

R v Weetra [2010] SASCFC 52 -

R v Weetra [2010] SASCFC 52 -

R v Bachra [2010] SASCFC 42 (19 October 2010) (Doyle CJ; Gray and White JJ)

Gassy v The Queen (2008) 236 CLR 293; *The Queen v Joyce* [1970] SASR 184; *Green v The Queen* (1971) 126 CLR 28; *RPS v The Queen* (2000) 199 CLR 620 , discussed.

R v Bachra [2010] SASCFC 42 -

R v Bachra [2010] SASCFC 42 -

[R v Bachra](#) [2010] SASCFC 42 -
[R v Bachra](#) [2010] SASCFC 42 -
[Chen v R](#) [2010] NSWCCA 224 -
[AS v Regina](#) [2010] NSWCCA 218 -
[R v H, T](#) [2010] SASCFC 24 -
[R v H, T](#) [2010] SASCFC 24 -
[R v H, T](#) [2010] SASCFC 24 -
[Palios Meegan & Nicholson Holdings Pty Ltd v Shore](#) [2010] SASCFC 21 -
[Norton v The State of Western Australia](#) [2010] WASCA 115 (29 June 2010) (McLure P, Pullin JA, Mazza J)

28. On the other hand, it is clear that there are constraints on the comment which may be made by a judge even where there is no statutory prohibition. Thus, it was made clear in [RPS v The Queen](#) [2000] HCA 3; (2000) 199 CLR 620 that, even in the absence of a statutory prohibition on comment [22], in a case like [RPS](#) (a case of sexual offences testified to by the complainant but in which the accused did not give evidence) a judge is not permitted to say to the jury that:

- (a) the appellant's election not to give evidence could be taken into account in judging the value or weight of the prosecution evidence;
- (b) the absence of denial or contradiction of the evidence given by the accused whose partial admission out of court would permit the jury to 'more readily' discount any doubts about that evidence;
- (c) if it was reasonable in the circumstances to expect some denial or contradiction of the prosecution evidence, the jury were entitled to conclude that the appellant's evidence would not have assisted him and that the absence of denial or contradiction was a circumstance which could lead them more readily to accept the evidence given by the witnesses for the prosecution;
- (d) while the accused's election not to give evidence could not fill gaps in the prosecution case, it could enable them to feel more confident in relying on the prosecution evidence; and
- (e) the absence of evidence from the accused meant that the version of events put in cross-examination of prosecution witnesses was not supported by evidence.

[Norton v The State of Western Australia](#) [2010] WASCA 115 -
[Norton v The State of Western Australia](#) [2010] WASCA 115 -
[H G a v the Queen](#) [2010] VSCA 114 -
[H G a v the Queen](#) [2010] VSCA 114 -
[MG v The Queen](#) [2010] VSCA 97 -
[R v Coomer](#) [2010] QCA 6 -
[R v Coomer](#) [2010] QCA 6 -
[R v BBU](#) [2009] QCA 385 (15 December 2009) (McMurdo P, Fraser JA and Atkinson J,)

58. The trial was short with the judge's summing-up concluding on the second day. All the evidence would have been fresh in the jury's minds. The judge was not obliged to remind them of every aspect of the evidence favourable to the appellant. The judge's omission to refer to this evidence did not lead to a summing-up lacking in balance. As Brennan J noted in [B v The Queen](#), [10] a trial judge has a broad discretion when commenting on the facts as long as the comments stop short of overawing the jury. The judge's summing-up in this case sufficiently maintained judicial balance so as not to deprive the jury of an adequate opportunity of understanding and giving effect to the appellant's defence. The judge's directions impugned by the appellant would not have overawed the jury. This is so whether the matters relied on by the appellant in respect of this ground of appeal are considered

individually or collectively. The judge fairly and adequately summarised the defence case as was his obligation: see *R v Mogg*; [11] *RPS v The Queen*; [12]. None of the appellant's contentions, whether considered alone or in combination, demonstrate that the summing-up was so unfair or unbalanced as to cause a miscarriage of justice. This ground of appeal also fails.

via

[12] (2000) 199 CLR 620 at 637-638.

R v BBU [2009] QCA 385 -
R v BBU [2009] QCA 385 -
Braysich v R [2009] WASCA 178 -
Braysich v R [2009] WASCA 178 -
R v Lacey; ex parte Attorney-General [2009] QCA 274 -
R v Lacey [2009] QCA 275 -
R v Lacey; ex parte Attorney-General [2009] QCA 274 -
R v Lacey [2009] QCA 275 -
R v Lacey [2009] QCA 275 -
R v Robinson [2009] QCA 250 (01 September 2009) (Keane and Muir JJA and Fryberg J,) *RPS v The Queen* (2000) 199 CLR 620; [2000] HCA 3, cited

R v Robinson [2009] QCA 250 -
R v Robinson [2009] QCA 250 -
R v Robinson [2009] QCA 250 -
R v Robinson [2009] QCA 250 -
The Queen v J O [2009] NTCCA 4 (07 May 2009) (Martin (BR) CJ, Riley J and Olsson AJ)

R v Olbrich (1999) 199 CLR 270; *RPS v The Queen* (2000) 199 CLR 620, referred.

The Queen v J O [2009] NTCCA 4 -
The Queen v J O [2009] NTCCA 4 -
R v Pretorius [2009] QCA 58 -
R v Pretorius [2009] QCA 58 -
R v Pretorius [2009] QCA 58 -
R v Pretorius [2009] QCA 58 -
R v Pretorius [2009] QCA 58 -
R v Navarolli [2009] QCA 49 -
R v T C [2008] VSCA 282 -
R v Hayes [2008] QCA 371 -
NSW Food Authority v Nutricia Australia Pty Ltd [2008] NSWCCA 252 (06 November 2008) (Spigelman CJ; Hidden J; Latham J)

151. Since *Environment Protection Authority v Caltex* the characterisation of our system of criminal justice as “accusatory” has been frequently referred to in High Court jurisprudence: in the context of the principle of duplicity (*Walsh v Tattersall* (1996) 188 CLR 77 at 94); to explain the right to silence and determine that the rule in *Jones v Dunkel* did not apply to a criminal trial (*RPS v The Queen* [2000] HCA 3; (2000) 199 CLR 620 at [22] ; *Azzopardi v The Queen* [2001] HCA 25; (2001) 205 CLR 50 at [34], [38], [64] ; *Dyers v The Queen* [2002] HCA 45; (2002) 210 CLR 285 at [9], [60]); to explain the inapplicability of the rule in *Browne v Dunn* to a criminal trial (*MWJ v The Queen* [2005] HCA 74; (2005) 80 ALJR 329 at [41]); to explain the approach a Court of Criminal Appeal should adopt when applying the proviso (*Weiss v The Queen* [2005] HCA 81; (2005) 224 CLR 300 at [43] ; *TKWJ v The Queen* [2002] HCA 46; (2002) 212 CLR 124 at [109]); to determine whether or not the conduct of counsel caused a miscarriage of justice at the trial (*Ali v The Queen* [2005] HCA 8; (2005) 79 ALJR 662 at [25]); to identify the duties and responsibilities of the prosecution (*Libke v The Queen* [2007] HCA 30; (2007) 230 CLR 559 at [71

]-[72]); to explain the obligation to disclose the Crown case to an accused (*Mallard v The Queen* [2005] HCA 68; (2005) 224 CLR 125 at [67]); to explain the obligation to provide particulars (*HML v The Queen* [2008] HCA 16; (2008) 82 ALJR 723 at [9], [57]).

NSW Food Authority v Nutricia Australia Pty Ltd [2008] NSWCCA 252 -

NSW Food Authority v Nutricia Australia Pty Ltd [2008] NSWCCA 252 -

Mencarious v R [2008] NSWCCA 237 -

Mencarious v R [2008] NSWCCA 237 -

R v BBO [2008] QCA 276 -

R v BBO [2008] QCA 276 -

R v BBO [2008] QCA 276 -

R v BBO [2008] QCA 276 -

R v Thompson [2008] VSCA 144 -

Siminton v Australian Prudential Regulation Authority [2008] FCAFC 90 -

Gassy v The Queen [2008] HCA 18 -

Gassy v The Queen [2008] HCA 18 -

Gassy v The Queen [2008] HCA 18 -

Gassy v The Queen [2008] HCA 18 -

HML v The Queen [2008] HCA 16 -

HML v The Queen [2008] HCA 16 -

Channel Seven Sydney Pty Ltd v Mohammed [2008] NSWCA 21 -

Channel Seven Sydney Pty Ltd v Mohammed [2008] NSWCA 21 -

Mahmood v Western Australia [2008] HCA 1 -

Mahmood v Western Australia [2008] HCA 1 -

WGC v The Queen [2007] HCA 58 -

Gately v The Queen [2007] HCA 55 (06 December 2007) (Gleeson CJ, Kirby, Hayne, Heydon and Crennan JJ)

16. The relevant material (or some of it) was placed before this Court. The applicable legislation varies between jurisdictions [12], but there is a great deal of common ground as between the conclusions reached concerning the approach to be taken to the two issues that remain for consideration in this appeal. Whilst it is doubtless appropriate to recognise and utilise technological advances that might assist juries in performing their task[13], it is self-evident that such assistance must accord with the fundamental requirements, and essential characteristics, of a fair criminal trial. Such a trial is accusatorial and adversarial [14]. In a jury trial, a heavy duty falls on the presiding judge to protect the accused against material risks of unfairness and to direct (and sometimes warn) the jury about any particular dangers of unfairness to which they need to be alert in considering an electronic recording of evidence or a printed transcript based on such a recording [15].

via

[14] See eg *RPS v The Queen* (2000) 199 CLR 620 at 630 [22].

Gately v The Queen [2007] HCA 55 -

Gately v The Queen [2007] HCA 55 -

R v Hill [2007] VSCA 261 -

Carr v Western Australia [2007] HCA 47 -

Carr v Western Australia [2007] HCA 47 -

Carr v Western Australia [2007] HCA 47 -

Carr v Western Australia [2007] HCA 47 -

Em v The Queen [2007] HCA 46 -

Em v The Queen [2007] HCA 46 -

Em v The Queen [2007] HCA 46 -

Tofilau v The Queen [2007] HCA 39 -

162. In RPS v The Queen, [78] Gaudron ACJ, Gummow, Kirby and Hayne JJ held:

“But although a trial judge *may* comment on the facts, the judge is not bound to do so except to the extent that the judge’s other functions require it. Often, perhaps much more often than not, the safer course for a trial judge will be to make no comment on the facts beyond reminding the jury, in the course of identifying the issues before them, of the arguments of counsel.” [79].

via

[79] (2000) 199 CLR 620, 637 [42].

R v Schneiders [2007] QCA 210 -

R v Wei Tang [2007] VSCA 134 -

R v Wei Tang [2007] VSCA 134 -

Libke v The Queen [2007] HCA 30 (20 June 2007) (Gleeson CJ, Kirby, Hayne, Callinan and Heydon JJ)

84. Although it is for these reasons that the complaint of miscarriage on account of the prosecutor's conduct should be rejected, it is as well to say something further about the role of the trial judge. It would have been both possible and desirable for the trial judge, at an early stage of the prosecutor's cross-examination, to have said something requiring him to desist from making comments on the evidence that was being given. There should have been no need to make the point at any length or to draw undue attention to it. If, for some reason, it had become necessary to engage in some sustained reproof or extended criticism of counsel, that should have been done in the absence of the jury [40]. But an early intervention from the judge would have prevented any suggestion of unfairness of the kind now said to have arisen from the conduct of the prosecutor.

via

[40] RPS (2000) 199 CLR 620 at 625-626 [13].

Libke v The Queen [2007] HCA 30 -

R v TP; R v SBA [2007] QCA 169 -

R v TP; R v SBA [2007] QCA 169 -

R v TP; R v SBA [2007] QCA 169 -

R v TP; R v SBA [2007] QCA 169 -

R v TP; R v SBA [2007] QCA 169 -

R v Allen [2007] VSCA 97 (23 May 2007) (Maxwell P and Buchanan and Eames JJA)

II. In the present case there was evidence that the applicant was present in a house that had been entered forcibly while its occupant was away and the contents of the house were removed, that he had been in the vicinity of the point at which entry had been forced, his fingerprint was on a door of a cabinet and an empty drawer from the cabinet lay on the floor. No innocent explanation for his presence was advanced by or on behalf of the applicant. [3]. In my opinion it was open to the jury to conclude that there was no reasonable explanation for the presence of the applicant in the house which was consistent with his innocence of any intention to steal.

via

[3] Cf. *Weissensteiner v R* (1993) 178 CLR 217. See also *RPS v R* (2000) 199 CLR 620 at 632-3 per Gaudron ACJ, Gummow, Kirby and Hayne JJ ; *R v Doherty* (2003) 6 VR 393 at [27] per Winneke P.

R v Mill [2007] QCA 150 -

R v Mill [2007] QCA 150 -

R v Mill [2007] QCA 150 -

R v Mill [2007] QCA 150 -

R v Mill [2007] QCA 150 -

Pavitt v The Queen [2007] NSWCCA 88 -

Pavitt v The Queen [2007] NSWCCA 88 -

Pavitt v The Queen [2007] NSWCCA 88 -

R v FP [2007] QCA 97 -

R v FP [2007] QCA 97 -

Cornwell v The Queen [2007] HCA 12 -

R v Taufahema [2007] HCA 11 -

R v Tichowitsch [2006] QCA 569 (22 December 2006) (Williams and Keane JJA and Philippides J.)

82. The learned trial judge was correct not to trench further upon the function of the jury as the arbiters of fact. [24] Having regard to s 4A(4) of the *Criminal Law (Sexual Offences) Act* and s 632(3) of the *Criminal Code*, there was no occasion for him to do so in order to ensure that the appellant received a fair trial according to law. [25]

via

[24] *RPS v The Queen* (2000) 199 CLR 620 at [41] – [42].

R v Tichowitsch [2006] QCA 569 (22 December 2006) (Williams and Keane JJA and Philippides J.)

RPS v The Queen (2000) 199 CLR 620, cited

R v Tichowitsch [2006] QCA 569 -

Benter v The State of Western Australia [2006] WASCA 286 -

Benter v The State of Western Australia [2006] WASCA 286 -

Tully v The Queen [2006] HCA 56 (07 December 2006) (Kirby, Hayne, Callinan, Heydon and Crennan JJ Raymond Douglas Tully Appellant)

73. A criminal trial is an accusatorial process in which the prosecution bears the onus of proving the guilt of the accused beyond reasonable doubt [75]. If an accused person pleads "not guilty", the accused puts the prosecution to proof, beyond reasonable doubt, of every element of the offence or offences charged.

via

[75] *RPS v The Queen* (2000) 199 CLR 620 at 630 [22] per Gaudron ACJ, Gummow, Kirby and Hayne JJ ; *Azzopardi v The Queen* (2001) 205 CLR 50 at 64 [34] per Gaudron, Gummow, Kirby and Hayne JJ.

Tully v The Queen [2006] HCA 56 -

Tully v The Queen [2006] HCA 56 -

Tully v The Queen [2006] HCA 56 -

Tully v The Queen [2006] HCA 56 -

Tully v The Queen [2006] HCA 56 -

Tully v The Queen [2006] HCA 56 -

55. While this formulation of the argument may not be entirely appropriate, the comment made by the trial judge is troubling. The High Court has recently emphasised the need for care on the part of a trial judge in directing a jury to attribute significance to the failure of counsel to put an aspect of his or her client's case to a witness on the other side, especially where it is otherwise apparent that the proposition which was not put is in issue. In *MWJ v The Queen*, Gummow, Kirby and Callinan JJ said: [\[12\]](#).

"We should next say something about the rule in *Browne v Dunn*, which, in substance, both the trial judge and the Chief Justice thought should be applied here against the appellant, its application in criminal cases generally, and his Honour, the Chief Justice's reference to the appellant's counsel's failure to seek to have the complainant recalled for further cross-examination. The rule is essentially that a party is obliged to give appropriate notice to the other party, and any of that person's witnesses, of any imputation that the former intends to make against either of the latter about his or her conduct relevant to the case, or a party's or a witness' credit.

One corollary of the rule is that judges should in general abstain from making adverse findings about parties and witnesses in respect of whom there has been non-compliance with it. A further corollary of the rule is that not only will cross-examination of a witness who can speak to the conduct usually constitute sufficient notice, but also, that any witness whose conduct is to be impugned, should be given an opportunity in the cross-examination to deal with the imputation intended to be made against him or her. An offer to tender a witness for further cross-examination will however, in many cases suffice to meet, or blunt a complaint of surprise or prejudice resulting from a failure to put a matter in earlier cross-examination. In this case, the appellant was confronted with a forensic dilemma: whether to seek to have the mother's evidence of her daughter's assertions of repeated misconduct at Sutcliffe Street excluded by reason of its prejudicial effect, or deliberately to leave it untouched to provide a basis for a submission that a fundamental inconsistency tainted the whole case. In the event the appellant chose the former. In that endeavour he failed, but was still able, albeit unsuccessfully, to rely on it as setting up a significant inconsistency. On no view was the appellant obliged however to seek to have the complainant recalled as a condition of his reliance upon the inconsistency which had emerged in the case for the prosecution.

Reliance on the rule in *Browne v Dunn* can be both misplaced and overstated. If the evidence in the case has not been completed, a party genuinely taken by surprise by reason of a failure on the part of the other to put a relevant matter in cross-examination, can almost always, especially in ordinary civil litigation, mitigate or cure any difficulties so arising by seeking or offering the recall of the witness to enable the matter to be put. In criminal cases, in many jurisdictions, the salutary practice of excusing witnesses temporarily only, and on the understanding that they must make themselves available to be recalled if necessary at any time before a verdict is given, is adopted. There may be some circumstances in which it could be unfair to permit the recalling of a witness, but in general, subject to the obligation of the prosecution not to split its case, and to present or make available all of the relevant evidence to an

accused, the course that we have suggested is one that should be able to be adopted on most occasions without injustice.

The obligation of the prosecution to present its whole case in chief and the existence of the unavoidable burden of proof carried by the prosecution are of particular relevance here. Doyle CJ was critical of the appellant for not putting the inconsistency between the complainant and her mother, in turn giving rise to an internal inconsistency in the complainant's account, to the complainant. The criticism does not give due weight to the obligations of the prosecution to which we have referred. It is not for the defence to clear up, or resolve inconsistencies in the case for the prosecution. As soon as the inconsistency emerged, and the trial judge rejected the appellant's objection to the evidence intended to be adduced from the complainant's mother, it was open for the prosecution to offer to tender the complainant for further cross-examination. Had that happened it would then, and only then have been for the appellant, to decide whether to embrace the offer or not. If he had not, then and only then would the criticism that the Court of Criminal Appeal made of his conduct have been valid. The position of an accused who bears no burden of proof in a criminal trial cannot be equated with the position of a defendant in civil proceedings. The rule in *Browne v Dunn* can no more be applied, or applied without serious qualification, to an accused in a criminal trial than can the not dissimilar rule in *Jones v Dunkel* ((1959) 101 CLR 298 ... See the discussion of this case in *RPS v The Queen* (2000) 199 CLR 620 at [27]-[29]; 74 ALJR 449 and *Dyers v The Queen* (2002) 210 CLR 285 at [120]-[123]; 76 ALJR 1552). In each case it is necessary to consider the applicability of the rule (if any) having regard to the essential accusatory character of the criminal trial in this country."

R v VN [2006] VSCA 111 (29 May 2006) (Maxwell, P., Buchanan and Redlich, JJ.A)

122. Those observations apply with full force to the present circumstances, and are sufficient to dispose of this ground of appeal. There was in my view no evidentiary basis which left open the issues of consent or whether the applicant had the necessary mens rea. The absence of consent was established by the complainant's testimony. No evidence to the contrary emerged during the trial. The conclusion that the applicant had the necessary mens rea was the only reasonable inference that was open, on the basis of the complainant's unchallenged evidence, [108]. There was no reasonable possibility open on the evidence that the applicant believed the complainant was consenting.

via

[108] The drawing of inferences in the absence of contradictory evidence was the subject of discussion in *Jones v Dunkel* (1959) 101 C.L.R. 298 per Kitto, J, at 308, per Menzies, J., at 312 and per Windeyer, J., at 362 and subsequently referred to in the joint judgment of Gaudron, A.C.J., Gummow, Kirby and Hayne, JJ. in *RPS v. R* (2000) 199 C.L.R. 620 at 632.

R v VN [2006] VSCA 111 -

R v VN [2006] VSCA 111 -

R v Ford [2006] QCA 142 (05 May 2006) (Jerrard and Keane JJA, Douglas J.)

210. See also Abbott CJ at 161-162; ER 898 and Holroyd J at 140; ER 890. Those passages were discussed with approval in *Weissensteiner v The Queen* (1993) 178 CLR 217, 225, 233 and 242-243 in the context where the accused, unlike this case, had not given evidence. The later decisions in *RPS v The Queen* (2000) 199 CLR 620 and *Azzopardi v The Queen* (2001) 205 CLR 50 distinguished and explained *Weissensteiner* in the context of the failure of an accused to give

evidence. *RPS* and *Dyers v The Queen* (2002) 210 CLR 285 also dealt with the legitimacy of the giving of a *Jones v Dunkel* direction in criminal trials. In *Dyers* Gaudron and Hayne JJ criticised the mode of reasoning spoken of in *R v Burdett* as depending upon a premise that “the person concerned not only *could* shed light on the subject but also would ordinarily be expected to do so”; see 210 CLR at 292-295, [9]-[18].

R v Ford [2006] QCA 142 -

R v Zilm [2006] VSCA 72 (05 April 2006) (Callaway, Eames and Ashley, JJ.A)

59. What is clearly not adequate in any case is the approach which Winneke, P. deprecated in *Anderson*, of the delivery of a sterile direction of the legal elements of the charge, which merely told the jury what in law could constitute the offence[30]. Adopting the phrase of Lord Hailsham, the President said that the charge should be “custom built” to make the jury understand the task in relation to the particular case. In *Fingleton v R* [31] McHugh J., referring to a section of the Queensland Criminal Code, which he said mirrored the common law, held that *Alford v Magee* required a trial judge to “identify the real issues in the case, the facts that are relevant to those issues and [provide] an explanation as to how the law applies to those facts.”

via

[31] (2005) 216 ALR 474, at 495 [77]; see, too, *RPS v R*, at 637 [41].

R v Zilm [2006] VSCA 72 -

R v Zilm [2006] VSCA 72 -

R v Holmes [2006] VSCA 73 -

R v HAB [2006] QCA 80 -

R v HAB [2006] QCA 80 -

R v HAB [2006] QCA 80 -

Morey v The State of Western Australia [2006] WASCA 8 -

R v Clarke [2005] QCA 483 -

R v Clarke [2005] QCA 483 -

R v Clarke [2005] QCA 483 -

R v RJR [2005] VSCA 315 -

R v RJR [2005] VSCA 315 -

Weiss v The Queen [2005] HCA 81 -

R v HZ [2005] QCA 468 -

MWJ v The Queen [2005] HCA 74 -

Mallard v The Queen [2005] HCA 68 (15 November 2005) (Gummow, Kirby, Hayne, Callinan and Heydon JJ)

81. *The applicable principles:* The foregoing review of the approach of courts, in national and international jurisdiction, indicates the growth of the insistence of the law, particularly in countries observing the accusatorial form of criminal trial [83], of the requirement that the prosecution may not suppress evidence in its possession, or available to it, material to the contested issues in the trial. It must ordinarily provide such evidence to the defence. Especially is this so where the material evidence may cast a significant light on the credibility or reliability of material prosecution witnesses or the acceptability and truthfulness of exculpatory evidence by or for the accused.

via

[83] *RPS v The Queen* (2000) 199 CLR 620 at 630 [22].

Adugna v The State of Western Australia [2005] WASCA 206 -

[Stevens v The Queen](#) [2005] HCA 65 -
[R v Ivanovic](#) [2005] VSCA 238 -
[R v Ivanovic](#) [2005] VSCA 238 -
[Mule v The Queen](#) [2005] HCA 49 -
[R v Kaddour](#) [2005] NSWCCA 303 -
[R v Attallah](#) [2005] NSWCCA 277 -
[R v Attallah](#) [2005] NSWCCA 277 -
[Chief Executive Officer of Customs v El Hajje](#) [2005] HCA 35 -
[Fingleton v The Queen](#) [2005] HCA 34 -
[Fingleton v The Queen](#) [2005] HCA 34 -
[R v Conway](#) [2005] QCA 194 -
[R v Conway](#) [2005] QCA 194 -
[R v Conway](#) [2005] QCA 194 -
[R v Soldo](#) [2005] VSCA 136 -
[R v Soldo](#) [2005] VSCA 136 -
[R v TN](#) [2005] QCA 160 (13 May 2005) (Williams JA Keane JA Helman J)

52. In [RPS v The Queen](#) [11] Gaudron ACJ, Gummow, Kirby and Hayne JJ emphasized the exclusive role of the jury as the arbiters of issues of fact, and that a judge is obliged to comment upon issues of fact only to the extent that the judge's other functions require that he or she should do so. Their Honours said: [\[12\]](#).

"[41] Before parting with the case, it is as well to say something more general about the difficult task trial judges have in giving juries proper instructions. The fundamental task of a trial judge is, of course, to ensure a fair trial of the accused. That will require the judge to instruct the jury about so much of the law as they need to know in order to dispose of the issues in the case. No doubt that will require instructions about the elements of the offence, the burden and standard of proof and the respective functions of judge and jury. Subject to any applicable statutory provisions it will require the judge to identify the issues in the case and to relate the law to those issues. It will require the judge to put fairly before the jury the case which the accused makes. In some cases it will require the judge to warn the jury about how they should *not* reason or about particular care that must be shown before accepting certain kinds of evidence.

[42] But none of this must be permitted to obscure the division of functions between judge and jury. It is for the jury, and the jury alone, to decide the facts. As we have said, in some cases a judge must give the jury warnings about how they go about that task. And, of course, it has long been held that a trial judge may comment (and comment strongly) on factual issues. But although a trial judge *may* comment on the facts, the judge is not bound to do so except to the extent that the judge's other functions require it. Often, perhaps much more often than not, the safer course for a trial judge will be to make no comment on the facts beyond reminding the jury, in the course of identifying the issues before them, of the arguments of counsel."

[R v TN](#) [2005] QCA 160 (13 May 2005) (Williams JA Keane JA Helman J)

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via

[11] [2000] HCA 3 ; (2000) 199 CLR 620 .

R v TN [2005] QCA 160 -

R v TN [2005] QCA 160 -

R v TN [2005] QCA 160 -

Christie v The Queen [2005] WASCA 55 (24 March 2005) (McKechnie J, LE Miere J, Jenkins J)

123 Of course a Judge has a duty to put the respective cases of the prosecution and the defence to the jury in a fair and balanced way. As part of this duty a Judge may have to warn a jury about how they should or should not reason and that particular caution must be shown before accepting certain kinds of evidence. A judge may also comment on certain arguments or propositions advanced on behalf of the parties. So much may be considered uncontroversial: Cornelius & Briggs (1988) 34 A Crim R 49 at 65 ; Randall v The Queen (2002) 1 WLR 2237 at 242 ; RPS v The Queen (2000) 199 CLR 620 at [42] – [42] .

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Ali v The Queen [2005] HCA 8 -

Nicholls v The Queen [2005] HCA 1 -

Carroll v The State of Western Australia [2004] WASCA 254 -

Carroll v The State of Western Australia [2004] WASCA 254 -

R v Taylor [2004] VSCA 189 -

Fardon v Attorney-General (Qld) [2004] HCA 46 -

R v Gulliford [2004] NSWCCA 338 -

RBK v The Queen [2004] WASCA 216 -

Rich v Australian Securities and Investments Commission [2004] HCA 42 -

Hewett v Medical Board of Western Australia [2004] WASCA 170 -

Hewett v Medical Board of Western Australia [2004] WASCA 170 -

R v Croll [2004] QCA 255 -

R v Rajakaruna [2004] VSCA 114 -

Manly Council v Byrne [2004] NSWCA 123 -

Manly Council v Byrne [2004] NSWCA 123 -

Manly Council v Byrne [2004] NSWCA 123 -

R v Kassulke [2004] QCA 175 (28 May 2004) (Davies, Williams and Jerrard JJA,)

[RPS v The Queen](#) (2000) 199 CLR 620 , cited

[R v Kassulke](#) [2004] QCA 175 -

[R v Kassulke](#) [2004] QCA 175 -

[R v Kassulke](#) [2004] QCA 175 -

[R v Kokkinos](#) [2004] VSCA 83 -

[R v Kokkinos](#) [2004] VSCA 83 -

[R v Ronen](#) [2004] NSWCCA 67 (22 March 2004) (Spigelman CJ, Mason P and Kirby J)

[RPS v The Queen](#) (2000) 199 CLR 620 .

[Smith Kline & French Laboratoires Ltd v Inter-Continental Pharmaceutical \(Australia\) Pty Ltd](#)

[R v Ronen](#) [2004] NSWCCA 67 -

[R v Murphy](#) [2004] VSCA 23 -

[R v Murphy](#) [2004] VSCA 23 -

[R v Lester](#) [2004] QCA 34 -

[R v Lester](#) [2004] QCA 34 -

[R v Lester](#) [2004] QCA 34 -

[Dhanhoa v The Queen](#) [2003] HCA 40 -

[R v Park](#) [2003] NSWCCA 203 (23 July 2003) (Ipp JA, Buddin and Shaw JJ)

62 However, the authority of [Pemble](#) does not necessarily support the appellant's contentions. In [RP S v The Queen](#) (2000) 199 CLR 620, Gaudron ACJ, Gummow, Kirby and Hayne JJ said (at 637):

It is for the jury, and the jury alone, to decide the facts. As we have said, in some cases a judge must give the jury warning about how they go about that task. And, of course, it has long been held that a trial judge may comment (and comment strongly) on factual issues...But although a trial judge *may* comment on the facts, the judge is not bound to do so except to the extent that the judge's other functions require it.

[R v Park](#) [2003] NSWCCA 203 -

[Adler v Australian Securities and Investments Commission](#) [2003] NSWCA 131 (08 July 2003)

664. As has been seen, in [RPS v The Queen](#) the Court was expressly dealing with criminal proceedings and the fundamental features of criminal trial. In ordinary civil proceedings it can be said that the defendant did not give evidence because he considered that the plaintiff had not made out the plaintiff's case. Civil litigation is adversarial, and there can not be found in [RPS v The Queen](#) reasoning applicable across the board. Civil penalty proceedings remain civil proceedings, and proceedings with the standard of proof on the balance of probabilities. However influenced by s 140(2) of the [Evidence Act](#) , the standard of proof is not beyond reasonable doubt. It must not be forgotten, also, that in these proceedings ASIC claimed the compensatory and disqualification orders. I do not think that the nature of the proceedings should be regarded as an explanation for the failure of Mr Adler and Mr Williams to give evidence,

[Adler v Australian Securities and Investments Commission](#) [2003] NSWCA 131 -

[Adler v Australian Securities and Investments Commission](#) [2003] NSWCA 131 -

[Adler v Australian Securities and Investments Commission](#) [2003] NSWCA 131 -

[Adler v Australian Securities and Investments Commission](#) [2003] NSWCA 131 -

[Adler v Australian Securities and Investments Commission](#) [2003] NSWCA 131 -

[Adler v Australian Securities and Investments Commission](#) [2003] NSWCA 131 -

[R v Riscuta and Niga](#) [2003] NSWCCA 6 -

[R v Riscuta and Niga](#) [2003] NSWCCA 6 -

[R v Riscuta and Niga](#) [2003] NSWCCA 6 -

[R v Yates](#) [2002] NSWCCA 520 -

[R v Yates](#) [2002] NSWCCA 520 -

[Duke v The Queen](#) [2002] WASCA 350 (16 December 2002) (Malcolm CJ, Wallwork J, Steytler J)

29 In *Dyers v The Queen* [2002] HCA 45 Callahan J said at [121] :

"The principles stated in *Jones v Dunkel* presuppose that there is occasion for the calling of evidence by an accused. Such a presupposition is incompatible with the presumption of innocence, and the right of the accused neither to give, nor to call evidence at trial. This is not an exceptional case of the kind referred to by their Honours in *RPS*. There is no feature of it that takes it outside the general rule."

Duke v The Queen [2002] WASCA 350 -

Duke v The Queen [2002] WASCA 350 -

Duke v The Queen [2002] WASCA 350 -

Duke v The Queen [2002] WASCA 350 -

R v Mong [2002] VSCA 203 -

R v Mong [2002] VSCA 203 -

R v Brown [2002] VSCA 207 -

R v Brown [2002] VSCA 207 -

R v Brown [2002] VSCA 207 -

R v Jost [2002] VSCA 198 -

R v Jost [2002] VSCA 198 -

Dyers v The Queen [2002] HCA 45 (09 October 2002) (Gaudron, McHugh, Kirby, Hayne and Callinan JJ)

39. Nor did the judge's direction breach the privilege against self-incrimination. The appellant was not compelled to give evidence or to make a statement concerning the matters raised by Ms Hamilton in her evidence. Given the decisions in *RPS* and *Azzopardi*, it may be that, if he had made no mention of the matter in his statement to the jury, the trial judge could not have commented on his failure to do so. However, the appellant did not remain silent. He asserted that he was with Ms Tinkler at the relevant time. Accused persons who make statements before or during a trial may often find that their subsequent silence leaves them open to adverse comments that could not be made if they had remained silent.

Dyers v The Queen [2002] HCA 45 -

Dyers v The Queen [2002] HCA 45 -

Dyers v The Queen [2002] HCA 45 -

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Dyers v The Queen [2002] HCA 45 -

Dyers v The Queen [2002] HCA 45 -

Dyers v The Queen [2002] HCA 45 -

R v De'Zilwa [2002] VSCA 158 -

Avis v The Queen [2002] WASCA 250 -

Doughty v The Queen [2002] WASCA 238 -

Doughty v The Queen [2002] WASCA 238 -

Doughty v The Queen [2002] WASCA 238 -

[Goldsmith v Sandilands](#) [2002] HCA 31 -
[Murray v The Queen](#) [2002] HCA 26 -
[R v Aden & Toulle](#) [2002] VSCA 79 -
[R v Boden](#) [2002] QCA 164 -
[R v Boden](#) [2002] QCA 164 -
[R v Harms](#) [2002] QCA 121 -
[R v Harms](#) [2002] QCA 121 -
[R v v](#) [2002] QCA 124 -
[R v v](#) [2002] QCA 124 -
[R v v](#) [2002] QCA 124 -
[R v Ryan](#) [2002] QCA 92 -
[R v Ryan](#) [2002] QCA 92 -
[R v Ryan](#) [2002] QCA 92 -
[R v Geary](#) [2002] QCA 33 (22 February 2002) (de Jersey CJ, McPherson and Williams JJA,)

36. The High Court has held in [RPS v The Queen](#) (2000) 199 CLR 620, especially at 633 and 656, that the principle in [Jones v Dunkel](#) has no application in a criminal trial, certainly where the failure of an accused to call evidence is in question. As pointed out therein the operation of that principle with respect to an accused would seriously erode the presumption of innocence and the basic principle of the criminal law that it is for the prosecution to prove the charge beyond reasonable doubt. [RPS was recently followed in this Court in R v Weatherall](#) [2001] QCA 435. If further authority is needed reference can be made to [R v Scott](#) [2000] 112 ACrimR 543, [R v Buckland](#) [1977] 2 NSWLR 452, [R v Zreika](#) [2001] NSW CCA 57 and [R v Brennan](#) [1998] QCA 163.

[R v Geary](#) [2002] QCA 33 -
[R v Geary](#) [2002] QCA 33 -
[R v Ince](#) [2001] VSCA 214 -
[R v Ince](#) [2001] VSCA 214 -
[R v Atallah](#) [2001] VSCA 194 -
[R v Atallah](#) [2001] VSCA 194 -
[R v Weatherall](#) [2001] QCA 435 -
[R v Weatherall](#) [2001] QCA 435 -
[R v Weatherall](#) [2001] QCA 435 -
[R v Weatherall](#) [2001] QCA 435 -
[R v Weatherall](#) [2001] QCA 435 -
[Adam v The Queen](#) [2001] HCA 57 -
[R v Crane](#) [2001] QCA 363 -
[Salmon v The Queen](#) [2001] WASCA 270 -
[Salmon v The Queen](#) [2001] WASCA 270 -
[R v Chevathen & Dorrick](#) [2001] QCA 337 -
[R v Chevathen & Dorrick](#) [2001] QCA 337 -
[Salmon v The Queen](#) [2001] WASCA 237 -
[Salmon v The Queen](#) [2001] WASCA 237 -
[Salmon v The Queen](#) [2001] WASCA 237 -
[R v Taiters](#) [2001] QCA 324 -
[R v Taiters](#) [2001] QCA 324 -
[R v Taiters](#) [2001] QCA 324 -
[State Bank of NSW & Anor. v Brown](#) [2001] NSWCA 223 -
[State Bank of NSW & Anor. v Brown](#) [2001] NSWCA 223 -
[R v Giri](#) [2001] NSWCCA 197 -
[R v Holden](#) [2001] VSCA 63 -
[Lynch v Day](#) [2001] WASCA 150 -
[Lynch v Day](#) [2001] WASCA 150 -
[Lynch v Day](#) [2001] WASCA 150 -
[Lynch v Day](#) [2001] WASCA 150 -
[Lynch v Day](#) [2001] WASCA 150 -

194. The effect of what their Honours said, is, in practical terms, little different from the opinion that I expressed in RPS on that matter [228]. The last passage from the summing up that I have quoted was inconsistent with both formulations, the majority's and mine. Mere separation in time (which Sully J thought relevant) from the other directions with respect to the appellant's abstention from giving evidence was not enough to cure these deficiencies, particularly in light of the erroneous later directions.

30. GAUDRON, GUMMOW, KIRBY AND HAYNE JJ. The Court is again asked to consider statements made by a trial judge in instructing a jury in a criminal trial about the significance which the jury may attach to the fact that the accused did not give evidence. Those questions were considered most recently in RPS v The Queen [21]. Similar questions are now raised in two matters, the trial in each of which took place before RPS was decided. In one, Azzopardi v The Queen, special leave to appeal has been granted. In the other, Davis v The Queen, the application for special leave to appeal has been referred for consideration by the whole Court. Both arise out of criminal proceedings for indictable offences that were conducted in the District Court of New South Wales. In both trials, therefore, s 20 of the Evidence Act 1995 (NSW) applied. Subsection (2) of that section provides:

"The judge or any party (other than the prosecutor) may comment on a failure of the defendant to give evidence. However, unless the comment is made by another defendant in the proceeding, the comment must not suggest that the defendant failed to give evidence because the defendant was, or believed that he or she was, guilty of the offence concerned."

189. In RPS v The Queen I said this [217]:

"What the Court has to consider in this case, however, is the effect of s 20, particularly sub-s (2), of the Evidence Act which has been enacted in some jurisdictions after Weissensteiner was decided.

In my opinion the principles stated by the majority in Weissensteiner can have no application in a jurisdiction in which s 20(2) has been enacted. The directions which were approved in Weissensteiner involve suggestions of the kind which s 20(2) now makes impermissible. It is important to bear in mind that the word which the section uses is 'suggest'. Very little need be said of an accused with respect to the fact that he or she has not given evidence in order to give rise to a suggestion that the failure to give evidence stems from an awareness of guilt. As Isaacs J pointed out in Bataillard v The King [218], an implication of guilt may be conveyed, not only by a direct or indirect reference, but also by 'subtle allusion'. The directions which were approved in Weissensteiner could have conveyed no suggestion other than of guilt and may not be given in jurisdictions in which the Evidence Act or its analogues have been enacted.

In my opinion, the purpose of s 20(2) is to enable a trial judge to make comments for the protection and benefit of an accused who has not given evidence and not

otherwise. This view is consistent with the Australian Law Reform Commission report, to which I have referred and gives effect to the ordinary meaning of s 20(2).

The possible application of *Jones v Dunkel* [219] to criminal cases requires consideration. In *R v OGD*, whilst accepting that there are obvious difficulties in some criminal cases in applying that case, and in giving directions to juries in accordance with it, the Court of Criminal Appeal said that a trial judge may nonetheless do so in an appropriate case [220].

There is no doubt that a direction in accordance with *Jones v Dunkel* may be given in respect of a failure by the Crown to call a material witness without acceptable and admissible explanation. The need for such a direction will usually be heightened by the Crown's responsibility to present its case in a way which is fair to an accused [221]. However, such a direction may not be given in relation to an accused person or an accused person's witnesses who, if the matter were a civil trial, might be expected to be called. A direction with respect to a defence case, based upon *Jones v Dunkel* would not only infringe s 20(2) but also would erode the basic principle of the presumption of innocence. The principles stated in *Jones v Dunkel* by their very nature presuppose that there is a need, or an occasion, for evidence to be called by a party, or an expectation that evidence could and should be called by a party. An accused person in criminal proceedings labours under no such need, occasion or expectation."

via

[217] (2000) 199 CLR 620 at 655-656 [107]-[111].

Azzopardi v the Queen [2001] HCA 25 (03 May 2001) (Gleeson CJ, Gaudron, McHugh, Gummow, Kirby, Hayne and Callinan JJ)

117. But as I will seek to show neither historically nor now has the law recognised a "right to silence" that prevents a trial judge from commenting in the manner that occurred in the present cases. Nor does the immunity from compulsion to give evidence prevent such comments. In addition, once it is conceded that the silence of the accused may be taken into account in some cases, as the majority in *RPS*, and in the present cases, concede, the point of principle is decided in favour of *Weissensteiner*. Once the concession is made that "the right to silence" and the immunity from compulsion do not prevent the judge from making *some* adverse comments, the debate must be about details. And it is not easy to see how or why the comment should be as limited as *RPS* suggests. If comment is justified when the accused probably knows of additional facts that could deny inferences that can be drawn from the evidence, why is comment denied when the accused fails to rebut or explain evidence about matters that the accused knows are true or false? The reasoning that justifies comment in one case seems just as applicable in those cases where *RPS* denies the right of comment.

Azzopardi v the Queen [2001] HCA 25 (03 May 2001) (Gleeson CJ, Gaudron, McHugh, Gummow, Kirby, Hayne and Callinan JJ)

195. This is a clear case with respect to the erroneous application of s 20 to it. It is not in my opinion a case in which it is appropriate to say whether, and in what circumstances and in what terms (if any) a trial judge bound to apply the Act should speak about the absence of an accused from the witness box. In many cases the prudent and best course may be to say nothing at all on the topic, particularly if the appellant has not sought comment on it. All that I need add is that I do not think that s 20 requires any different interpretation from the one that this Court gave it in *RPS* because it contemplates that another defendant may comment on a relevant failure to give evidence.

[47] *RPS* (2000) 199 CLR 620 at 637 [40] per Gaudron ACJ, Gummow, Kirby and Hayne JJ.

BarNet publication information - Date: Monday, 06.11.2023 - Publication number: 00017 - User: haymesnathan@gmail.com

[Azzopardi v the Queen](#) [2001] HCA 25 -
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[Azzopardi v the Queen](#) [2001] HCA 25 -
[Azzopardi v the Queen](#) [2001] HCA 25 -
[R v Glennon \(No 2\)](#) [2001] VSCA 17 -
[R v Glennon \(No 2\)](#) [2001] VSCA 17 -
[R v Lock](#) [2001] QCA 84 (13 March 2001) (Williams JA, Ambrose and Douglas JJ,)

35. Further, in [Mogg](#) Thomas JA referring to authorities said:

“[72] The consensus of longstanding authority is that the duty to sum up is best discharged by referring to the facts that the jury may find with an indication of the consequences that the law requires on the footing that this or that view of the evidence is taken.”

His Honour went on to say:

“I do not understand the statements of Gaudron ACJ, Gummow, Kirby and Hayne JJ in [RPS](#) at 449 [41]-[43], which encourage reticence in making comments on the facts, to be contrary to that view.” (Para 73)

[R v Lock](#) [2001] QCA 84 -
[R v Lock](#) [2001] QCA 84 -
[R v Skelly & Wenitong](#) [2001] VSCA 16 -
[R v Lock](#) [2001] QCA 84 -
[R v Skelly & Wenitong](#) [2001] VSCA 16 -
[R v Lock](#) [2001] QCA 84 -
[R v Lock](#) [2001] QCA 84 -
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[R v Lock](#) [2001] QCA 84 -
[R v Lock](#) [2001] QCA 84 -
[R v Lock](#) [2001] QCA 84 -
[KRM v The Queen](#) [2001] HCA 11 -
[KRM v The Queen](#) [2001] HCA 11 -
[R v A](#) [2000] QCA 520 -
[R v A](#) [2000] QCA 520 -

185. The third matter is this. A claim of apprehended bias is not infrequently made at the outset, or very early in the proceedings. When a claim of apprehended bias is so made the basic facts should almost always be uncontroversial in the sense that, between them, the parties and the judge under challenge, should have laid out all of the relevant matters and facts that he or she can recall, for the decision whether they establish the relevant apprehension [307]. That decision has conventionally been made by the judge in respect of whom the claim is advanced. The decision of the primary judge here was made in accordance with that established practice. Neither party, either in the courts below or here suggested a departure from it. The practice may however place a judge in what Mandie J in the second matter described as an invidious position. I doubt whether the Federal Court Act 1946 (Cth) or any State acts dealing with, or affecting the jurisdictions of the respective courts, or any rule of common law which may apply to them, require that a decision whether in the circumstances a reasonable apprehension of bias arises, necessarily be the decision of the judge under challenge. If there is no legal inhibition upon it, and if it is convenient for it to be so made, I think it preferable that such a decision be made by another judge. That procedure would better serve the general public interest and the litigants in both the appearance and actuality of impartial justice. Although the judge in a particular jurisdiction could hardly order that another judge of it not sit on, or decide a matter, it may well be possible for the former to decide a question whether the relevant facts are capable of giving rise to an apprehension of bias on the part of the latter if that judge were to sit on the case. No matter what the status of the rejection or upholding of such an application may be, and regardless that it is not an issue between the parties, it is still a matter that has to be decided by the Court. The ambit for example, of O 10(1A) [308] and O 29(1) [309] of the Federal Court Rules (Cth) is a very broad one and certainly would appear to permit such a course. In saying what I have, I do not mean to cast any doubt on what was said by the Court of Criminal Appeal of New South Wales (Gleeson CJ, Wood and Brownie JJ) in *Rogerson* [310] that the refusal of a judge to disqualify himself after an application did not constitute a judgment or order within the statutory meaning of those terms against which it was possible to appeal to the Court of Appeal there although such a refusal might constitute a ground of appeal against the ultimate decision in the case in the course of which the application was made [311].

via

[307] See for a discussion of a related matter, Mason, "Judicial disqualification for bias or apprehended bias and the problem of appellate review", (1998) 1 *Constitutional Law and Policy Review* 21-27 and see *RPS v The Queen* (2000) 74 ALJR 449 at 467 [95]; 168 ALR 729 at 752-753.

R v Bell [2000] QCA 442 (27 October 2000) (Pincus and Thomas JJA, Jones J, Joint reasons for judgment of Thomas JA and Jones J; separate reasons of Pincus JA dissenting)

3. In *Weissensteiner* (1993) 178 CLR 217, remarks were made which would perhaps tend to justify what the prosecutor said; they are to be found in the judgment of Mason CJ and Deane and Dawson JJ at pp 224-229 and at pp 233-236 of the judgment of Brennan and Toohey JJ. I quote, by way of illustration, from the last page cited:

"... in Queensland ... a judge may tell the jury that where the facts which they find to be proved by the evidence can support an inference that the accused committed the offence charged and where it is reasonable that, if the truth were consistent with innocence, a denial, explanation or answer

would be forthcoming, the jury may take the accused's failure to give evidence into account in determining whether the inference should be drawn."

The respondent's difficulty is enhanced by the fact that the High Court has revisited the topic, in *RPS* [2000] HCA 3; 74 ALJR 449. In the principal judgment the trial judge's directions about the accused's failure to give evidence were discussed from two points of view: the directions were held to be in contravention of the provisions of s 20(2) of the *Evidence Act 1995 (NSW)* and contrary to "fundamental features" of a criminal trial. The first point is not relevant here, but the second certainly is.

R v Bell [2000] QCA 442 -
R v Bell [2000] QCA 442 -
R v Bell [2000] QCA 442 -
R v Bell [2000] QCA 442 -
R v Bell [2000] QCA 442 -
R v Robson [2000] QCA 424 -
R v Robson [2000] QCA 424 -
R v Martin [2000] VSCA 163 -
Johnson v Johnson [2000] HCA 48 -
Johnson v Johnson [2000] HCA 48 -
Johnson v Johnson [2000] HCA 48 -
Hugo v R [2000] WASCA 199 (04 August 2000) (Pidgeon J, Anderson J, Sheller AJ)
RPS v The Queen (2000) 74 ALJR 449,
Strickland v The Queen

Hugo v R [2000] WASCA 199 (04 August 2000) (Pidgeon J, Anderson J, Sheller AJ)

65 In *R v Fowler* [2000] NSWCCA 142 Wood CJ at CL, with whom Barr J agreed, Hulme J expressing no opinion on this point, quoted from both *Weissensteiner* and *RPS* and said at pars [159] - [163]:

"It remains possibly open to argument that a *Weissensteiner* direction should only ever be contemplated in a "smoking gun" case, or to a circumstantial case dependent on inference from proved facts, the *innocent explanation for which* might only reasonably lie in the mouth of the appellant. Whether that be correct or not it is difficult to see how the joint judgment would authorise such a direction in relation to the failure of an accused

(Page 30)

to answer, on oath, the testimony of a prosecution witness as to the specific facts, from which an inference is drawn.

So far as the decision in *RPS* turned upon considerations other than those related to the prohibition in s 20(2) of the *Evidence Act 1995 (NSW)* [enabling the Judge or any party (other than the prosecutor) to comment on a failure of the defendant in a criminal proceeding to give evidence], Callinan J, said (at par 111) in a passage which leaves little, if any life, in the *Weissensteiner* direction:

'There is no doubt that a direction in accordance with *Jones v Dunkel* (1959) 101 CLR 298 may be given in respect of a failure by the Crown to call a material witness without acceptable and admissible explanation. The need for such a direction will usually be heightened by the Crown's responsibility to present its case in a way which is fair to an accused. (see *R v Apostilides* (1984) 154 CLR 563) However, such a direction may not be given in relation to an accused person or an accused person's witnesses who, if the matter were a civil trial, might be expected to be called. A direction with respect to a defence case, based upon *Jones v Dunkel*, would not only infringe s 20(2) but also would erode the basic principle of the presumption of innocence. The principles stated in *Jones v Dunkel* by their very nature presuppose that there is a need, or an occasion, for evidence to be called by a party, or an expectation that evidence could and should be called by a party. *An accused person in criminal proceedings labours under no such need, occasion or expectation.*'

The conclusion of McHugh J concerning the permissibility of a jury being entitled, but not bound, to take into consideration that the accused has given no evidence denying or explaining a fact which is within his or her knowledge and which reasonably calls for an answer (at para 50), did not find favour with the other members of the Court, as a general proposition.

Similarly, his Honour's observations that the existence of tactical reasons for not denying or explaining facts, provided an insufficient basis for a direction *negating* the significance of silence (at para 57), or that the 'good reasons' for such a

(Page 31)

direction were likely to be few, were not ones which found favour with the remaining members of the Court.

In my view, it follows from the reasons of Gaudron ACJ, Gummow, Kirby and Hayne JJ and from the separate reasons of Callinan J, that his Honour was in error in regarding the case as appropriate for a *Weissensteiner* direction. The occasion for such a direction in my view must hereafter be confined to an exceptional case of the kind there involved, where the line of reasoning in question is compelling."

Hugo v R [2000] WASCA 199 -

Hugo v R [2000] WASCA 199 -

Hugo v R [2000] WASCA 199 -

R v Mogg [2000] QCA 244 (20 June 2000) (McMurdo P, Thomas JA, Wilson J,)

RPS v The Queen (2000) 74 ALJR 449 , considered

R v Mogg [2000] QCA 244 -

R v Mogg [2000] QCA 244 -

R v Mogg [2000] QCA 244 -

R v Mogg [2000] QCA 244 -

R v Mogg [2000] QCA 244 -

R. v. Brown [2000] VSCA 102 (09 June 2000) (Phillips and Callaway, Jj.A and Cummins, A.J.A)

23. I have reached those conclusions without relying on the largely supporting evidence of the woman the applicant called Jackie^[18] or taking into account the fact that the applicant stood mute. Accordingly I need not decide whether account could be taken of the latter, with due caution, in the light of *R. v. Emmerson* ^[19] and *RPS v. R.* ^[20].

via

[20] (2000) 74 A.L.J.R. 449 especially at [27-29], [35].

R v C [2000] QCA 145 -

Schellenberg v Tunnel Holdings Pty Ltd [2000] HCA 18 (13 April 2000) (Gleeson CJ, Gaudron, McHugh, Kirby and Hayne JJ)

73. Although *res ipsa loquitur* does not alter the burden of proof, it may operate to impose an evidentiary burden on a defendant. It is well recognised in criminal law that there are circumstances which, if unexplained, will support an inference that there is no explanation consistent with innocence [73]. The so-called doctrine of "recent possession" is an example [74]. So too, in the area of negligence, there may be circumstances which, if unexplained, will support an inference that there is no explanation consistent with the exercise of proper care. Thus, for example, it was said in Piening v Wanless that "[i]f a motor car runs off the road, that fact, standing alone and unexplained, provides some evidence that the driver was negligent" [75]. That is because, in the ordinary course, if there were an explanation consistent with the exercise of proper care, the driver would be expected to raise that possibility. And as a general rule, that is the case when there is an event or happening which does not ordinarily occur without negligence on the part of the person having the management of the situation.

via

[73] See Weissensteiner v The Queen (1993) 178 CLR 217 at 227-229 per Mason CJ, Deane and Dawson JJ, 235 per Brennan and Toohey JJ, 241-244 per Gaudron and McHugh JJ (dissenting only as to the result). See also May v O'Sullivan (1955) 92 CLR 654 at 658-659 per Dixon CJ, Webb, Fullagar, Kitto and Taylor JJ; Bridge v The Queen (1964) 118 CLR 600 at 615 per Windeyer J; RPS v The Queen (2000) 74 ALJR 449 at 462 per McHugh J; 168 ALR 729 at 746.

Schellenberg v Tunnel Holdings Pty Ltd [2000] HCA 18 -

R v Loguancio [2000] VSCA 33 (24 March 2000) (Tadgell, Callaway and Buchanan, JJ.A)

24. Before turning to the application for leave to appeal against sentence, I should mention two submissions made by the Director at the conclusion of his address. The first was that directions to juries should be framed by trial judges, and evaluated by intermediate appellate courts, with a view to a workable system of justice. I agree with that submission, for which much authority in this Court and elsewhere could be cited. If the adversarial system is to remain workable, juries must be trusted to perform their role as the triers of fact [37] and trial judges must retain flexibility. [38] The second was that the applicant's case rested almost entirely on Gipp v. R., R. v. FJB and R. v. Pearce and that we had been invited to read those cases divorced from their facts and the wider body of case law of which they form part. That prompts the following observation. Several distinct topics are discussed in Gipp v. R. but, both in this State and in New South Wales [39], it is a decision that has proved hard to apply correctly. In most cases counsel would be well advised to steer clear of it. Like R. v. FJB and R. v. Pearce, it turns to no small extent on its own facts. [40]

Sentence

via

[37] RPS v. R. [2000] HCA 3 at [42-43].

R v Hunter and Clare [2000] QCA 59 -

